

**CENTRAL ADMINISTRATIVE TRIBUNAL
ERNAKULAM BENCH**

O.A No. 180/14/2023; O.A No. 180/92/2023; O.A No. 180/43/2025;
O.A No. 180/46/2025; O.A No. 180/70/2025;
O.A No. 180/252/2025; CP(C) No.33/2025 in OA No.252/2025;
O.A No. 180/495/2025; O.A No. 180/497/2025;
O.A No. 180/500/2025; O.A No. 180/501/2025; &
O.A No. 180/552/2025

Tuesday this the 10th day of February, 2026.

CORAM:

HON'BLE Mr. JUSTICE K. HARIPAL, JUDICIAL MEMBER

HON'BLE Mr. BRAJ MOHAN AGRAWAL, ADMINISTRATIVE MEMBER

O.A No. 180/14/2023;

1. Benoy K. Paulose, aged 38 years, S/o. K.K. Paulose, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam-683 501, Residing at Keerikkattil House, Airapuram.P.O., Koozhoor, Ernakulam-683 542.
2. Arun.P.B., aged 35 years, S/o. P.N. Balakrishna Pillai, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam-683 501, Residing at Puthukollil House, Muthalakodam.P.O., Thodupuzha, Idukki district, Pin 685 605.
3. Baburaj.V.K., aged 37 years, S/o. Krishnan Nair, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam-683 501, Residing at Vadakkedath House, Koodathai Bazar Post, Thamarassery (Via.), Calicut-673 572.
4. Eldho.M.George, aged 35 years, S/o. P. George, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam-683 501, Residing at Mukalath House, Valayanchirangara.P.O., Perumbavoor, Ernakulam 683 556.
5. Anoop.S.Pillai, aged 35 years, S/o. Sivar Sivan Pillai.P.R., Nursing Officer, ESIC Hospital, Asramam, Kollam, Residing at Santhi Bhavan, Edayaranmula West.P.O., Kozhenchery Taluk, Pathanamthitta-689 532.

6. Asha.B., aged 36 years, W/o. Sajithmon.T.S., Nursing Officer,
ESIC Hospital, Ezhukone, Kollam,
Residing at Sajith Bhavan, TKMC P.O., Kuttichira, Kollam-680724.
7. Asha R. Chandran, aged 37 years, D/o. G. Ramachandrakurup, 8.
Nursing Officer, ESIC Hospital, Asramam, Kollam,
Residing at Kizhakkidathu Veedu, Meenadu, Nedumgolam.P.O.,
Paravur, Pin-691 334.
8. Ashitha. P. George, aged 36 years, W/o. Ninoj Abraham.A.,
Nursing officer, ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Ayyanikkattu, Vimalanagar.P.O., Mananthavady,
Wayanad, Pin-670 645.
9. Bindu.V., aged 36 years, W/o. Shinu.R., Nursing Officer,
ESIC Hospital, Asramam, Kollam,
Residing at Kailasom, Kovoov Veedu, Thekkumkara,
Pullichira.P.O., Kollam 691 304.
10. Dersana.M.S., aged 38 years, D/o. K. Mohanan, Nursing Officer,
ESIC Hospital, Asramam, Kollam,
Residing at Valiyavilakom House, Pongumoodu,
MCPO, Thiruvananthapuram-695 011.
11. Jeessa. M. Francis, aged 36 years, W/o. Vergin. G.S.,
Nursing Officer, ESIC Hospital, Asramam, Kollam,
Residing at N.M. Bhavan, Venkulam, Nellimoodu.P.O, Pin 695 524.
12. Joby.C.J., aged 37 years, S/o. Jose C.L. (Late), Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Chulliparambil House, P.O. Ollur, Thrissur -680 306.
13. Lijy Jose, aged 38 years, D/o. Late Jose Mattathil, Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Mattathil House, Udayapuram Mandapam.P.O.,
Kasaragod District -671 326.

14. Neena Sarah Mathew, aged 41 years, W/o. Dipu, Nursing Officer, ESIC Hospital, Ezhukone, Kollam, Residing at Angel Bhavan, Nallila.P.O., Pazhangalam, Kollam-691 515.
15. Nithin Jayakumar, aged 34 years, S/o.V. Jayakumar, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam, Residing at Puthenpurackal House, Perumbillichira.P.O., Thodupuzha, Idukki-685 605.
16. Premkumar.M.K., aged 39 years, S/o. S. Mohanan, Nursing Officer, ESIC Hospital, Asramam, Kollam, Residing at Nenmanassery Puthen Veedu, ITI, Chakai, Pettah.P.O., Trivandrum-695 024.
17. Ramya.M.S., aged 37 years, W/o. Saju.S., Nursing Officer, ESIC Hospital, Ezhukone, Kollam, Residing at Resmy Bhavan, Ayirakuzhy.P.O., Ayirakuzhy, Pin-691 559, Kollam District.
18. Ranjith.C., aged 34 years, S/o. Achuthan.C., Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam, Residing at Chundalingal House, Arikkuzhi, Palakkalvetta.P.O., Malappuram, -679 327.
19. Reena.S. aged 36 years, W/o. Praveen.S., Nursing Officer, ESIC Hospital, Asramam, Kollam, Residing at Chakirikkudi Veedu, PNMRA E25, Koonthalloor, Chirayinkeezh.P.O., Pin-695 304.
20. Sahina.K., aged 36 years, W/o. Sudheer Ahamed.K., Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam, Residing at Kuzhiyengal House, Angadippuram.P.O., Malappuram District-679321.
21. Sandhya Mohanan, aged 35 years, W/o. Manudev.K.M., Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam, Residing at Kozhimamalayil House, Puliyannoor.P.O., Kottayam District-686 573.

22. Sandhya.V.S., aged 35 years, W/o. Premkumar.M.K.,
Nursing Officer, ESIC Hospital, Asramam, Kollam,
Residing at Sandhya Bhavan, High School Junction,
Karakulam.P.O., Trivandrum-695 564.
23. Shabnam.S.M., aged 37 years, W/o. Ershad Hassankunju,
Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Kolleedangu House, Arattupuzha North.P.O.,
Thrikkunnappuzha, Alappuzha-688 005.
24. Shiny John, aged 36 years, D/o. John Mathai, Nursing Officer,
ESIC Hospital, Asramam, Kollam, Residing at Kottisseril House,
Thodiyoor.P.O., Karungappally, Kollam, Kerala-690 523.
25. Shijy John, aged 47 years, D/o. T.K. John (Late), Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Thazhatha House, Kannamkulangara,
Koorkenchery, Thrissur-680 007.
26. Suja.G., aged 46 years, W/o. Sajimon.P.A., Nursing Officer,
ESIC Hospital, Ezhukone, Kollam,
Residing at Saji Bhavan, Manjakala.P.O., Kunnicode (Via),
Kollam, Kerala-691 508.
27. Veena.S., aged 36 years, W/o. Deepak.S., Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Kochuvilla House, Punnapra.P.O., Alappuzha-688 004.
28. Yaseena Beevi.M., aged 41 years, W/o. Royi.A.M., Nursing Officer,
ESIC Hospital, Ezhukone, Kollam, Residing at Thenmel Veedu,
Cheriyavelinalloor.P.O., Pin-691 516, Karingannoor, Kollam.
29. Akhil.P., aged 34 years, S/o. P.K. Purushan, Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Puthenkudy House, Koovappady.P.O.,
Ernakulam District, Pin 683 544.

30. Ambu.R. Sasankan, aged 36 years, S/o.Sasankan.R. (Late),
Nursing Officer, ESIC Hospital, Asramam, Kollam,
Residing at Uthram House, Kavara Venjaramood.P.O.,
Thiruvananthapuram District, Pin 695 607.
31. Anju.P.V., aged 35 years, W/o. Arundas.V., Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Vilangappara House, Monippally,
Monippally.P.O., Kottayam – 686 636.
32. Baiju.P.K., aged 37 years, S/o. Thamban.M.V.. Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Muthiravalappil House, Udinur.P.O., Kasaragod -671 310.
33. Didhin Kasyap.M.V., aged 35 years, S/o. Damodaran.M.V.,
Nursing Officer, ESIC Hospital, Asramam, Kollam,
Residing at Komalam, Pariyanaadu, Cherukulathur.P.O.,
Calicut -673 008.
34. Jackson. K. Francis, aged 36 years, S/o. K.A. Francis, Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Kattipallam House, Near Portincula Convent, N.A.D. Road,
Asokapuram.P.O., Aluva-683 101.
35. Jithin Gangadharan.K., aged 35 years, S/o. Gangadharan.K.,
Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Ganga, Kavilthazham, Moozhikkal Viruppil,
Chelavoor.P.O., Calicut 673 571.
36. Jyothis Chandra.S., aged 39 years, S/o. V.N. Sukumaran,
Nursing Officer, ESIC Hospital, Asramam, Kollam,
Residing at Valarkotte House, Chempilavu.P.O.,
Kottayam District-686 584.
37. Mayadevi.U.R., aged 35 years, W/o. Satheesh, Nursing Officer,
ESIC Hospital, Asramam, Kollam, Residing at Chinmayam, Ponguvila,
Perukavu.P.O., Trivandrum-695 573.

38. Rasheed.T., aged 35 years, S/o. Hussain.T., Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam, Residing at Thamarassery House, Kunnakkavu.P.O., Elamkulam, Malappuram, Kerala-679 340.
39. Shijina.P., aged 33 years, W/o. Akhil.P., Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam, Residing at Puthenkudy House, Koovappady.P.O., Ernakulam District-683 544.
40. Sivaprasad Unni.G., aged 35 years, S/o. P.V. Gopi, Nursing Officer, ESIC Hospital, Asramam, Kollam, Residing at Perumpillil House, Kothamangalam, Ernakulam-686 691.
41. Soumya Soman, aged 36 years, W/o. Syamlal.T.S., Nursing Officer, ESIC Hospital, Asramam, Kollam, Residing at Mullakkunnel House, Muniyara.P.O., Thinkalkad, Idukki District-685 571.
42. Suma.A.S., aged 35 years, W/o. Shanil Kumar.K., Nursing Officer, ESIC Hospital, Asramam, Kollam, Residing at Shanil Bhavan, Sooranadu South, Kakkakunnu.P.O., Kollam 690 522.
43. Vijimol Abraham, aged 35 years, W/o. Sinosh.E., Nursing officer, ESIC Hospital, Asramam, Kollam, Residing at Anugraha, CS Nagar-65, Cutchery.P.O., Kollam 691 013.
44. Vipin Mathew, aged 37 years, S/o. Mathew.K.M., Nursing Officer, ESIC Hospital, Asramam, Kollam, Residing at Kanjirammoottil House, Mananthavady.P.O., Cherupuzha, Wayanad District-670 645.
45. Muhammed Nizar.K., aged 36 years, S/o. Moideen Koya, Nursing Officer, ESIC SIC Hospital, Udyogamandal, Ernakulam, Residing at Kanchirathodiyil House, Ummalathoor, Medical College.P.O., Calicut-673 008.
46. Muhammed Sanu. T.S., aged 34 years, S/o. Saidhu Muhammed.K.H., Nursing Officer, DCBO Munnar, Residing at Thellikunnel House, Marthoma Gate, Edavetty.P.O., Thodupuzha, Idukki-685 588.

47. Rajesh.V.R., aged 37 years, S/o. Ramankutty, Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Vadayattu House, Chempakappara.P.O., Idukki 685 514.
48. Deepthi John, aged 34 years, D/o. John Paul.K., Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Kakkooran House, Iringole.P.O., Perumbavoor-683 548.
49. Chithira Nair.V.R., aged 35 years, W/o. Sreeju.P.S., Nursing Officer,
ESIC Hospital, Asramam, Kollam,
Residing at Sreemangalam, Irattakalunku, Malayinkeezhu.P.O.,
Thiruvananthapuram-695 571.
50. Latha.M., aged 40 years, W/o. Vinodkumar.V.V., Nursing Officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Velath Veedu, Kandakkai, Kandakkai Post,
Kannur-695 512.

- Applicants

[By Advocates : Mr. Elvin Peter P.J, SR & Mr. K.R. Ganesh]

V e r s u s

1. Union of India represented by its Secretary, Ministry of Labour &
Employment, Shram Shakthi Bhavan, Rafi Marg, New Delhi 110 001.
2. Employees' State Insurance Corporation, Represented by the Director
General, Employees' State Insurance Corporation,
Head Quarters Office, C.I.G. Road, New Delhi 110 001.
3. The Director General, Employees' State Insurance Corporation,
Head Quarters Office, C.I.G. Road, New Delhi - 110 001.
4. The Medical Commissioner (MA), ESI Corporation,
Panchdeep Bhavan, C.I.G. Marg, New Delhi-2.
5. The Medical Superintendent, ESIC Hospital, Udyogamandal,
Ernakulam - 683 501.

- Respondents

[By Advocate: Mr. Adarsh Kumar for Respondents 2 to 5]

O.A No. 180/92/2023;

1. Sherin N.B, aged 43 years,
W/o Biju V, Senior Nursing Officer,
ESIC Model Hospital, Asramam,
Kollam, Pin-691 002.
Residing at: Mehalayam, Alamukku,
Poovachal P.O. Thiruvananthapuram, Pin-695 575.
2. Diana Joseph, Aged 40 years,
W/o Ashok Eapen K, Senior Nursing Officer,
ESIC Model Hospital, Asramam, Kollam. Pin-691 002.
Residing at: AN 125, Adarsh Nagar,Pattom P.O.,
Thiruvananthapuram, Pin-695 004.
3. Sunitha S, aged 43 years,
W/o Shaji T.J., Senior Nursing Officer,
ESIC Model Hospital, Asramam, Kollam. Pin-691 002.
Residing at: Shaji Nivas, Mithranikethan P.O.
Thiruvananthapuram, Pin-695 543.
4. Kavitha Anand, Aged 46 years,
W/o Binulal S, Senior Nursing Officer,
ESIC Hospital. Ezhukone, Kollam, Pin-691 505,
Residing at : Krishnagadha, Kootikada P.O,
Kollam, Pin – 691 020.
5. Bindu S, Aged 47 years, W/o Jayaprakash K.
Senior Nursing Officer, ESIC Hospital.,Ezhukone, Kollam. PIN-691 505
Residing at: Manipuzha House, Padaharam, Thakazhy P.O.Alapuzha,
Pin-688 562.
6. Priya P. Aged 43 years, W/o M. Thilakan, Senior Nursing Officer,
ESIC Model Hospital, Asramam. Kollam, Pin-691 002.
Residing at: Sreethilakam, Poothakulam P.O.,
Kollam, Pin-691 302.

7. Soumya S, Aged 39 years.
D/o B. Sasidharan, Senior Nursing Officer,
ESIC Hospital, Ezhukone, Kollam, Pin-691 505.
Residing at: Sreyas, Gandhi Nagar-3, Chencheri Road,
Nalanchira P.O. Thiruvananthapuram. Pin-695 015.
8. Preetha S.V, Aged 40 years,
W/o Sajumon K, ESIC Model Hospital,
Asramam, Kollam. Pin-691 002.
Residing at: Uthram, KRA 10,
Kavottumukku. Kazhakuttam P.O.
Tiruvananthapuram, Pin-695 582.
9. Sijitha S, Aged 46 years,
W/o Sunil P.S, ESIC Model Hospital,
Asramam, Kollam, Pin-691-002.
Residing at: Puliullathodiyil House,
Kodalnadakkavu. Pantheerankavu P.O, Pin-673 019.
10. Vineetha Kumary T.K, Aged 39 years,
W/o G.K Shanoj Kumar, Senior Nursing Officer,
ESIC Hospital, Ezhukone, Kollam, Pin-691 505.
Residing at: Thraisham, Nettayam,
Manikandeswaram P.O. Thiruvananthapuram. Pin-695 013.
11. Binushma P.G, Aged 44 years,
W/o Sunil Kumar R. Senior Nursing Officer,
ESIC Model Hospital, Asramam, Kollam, Pin-691 002,
Residing at: Gokulam, TC 48/882(2),
Konchiravila, Manacaudu P.O., Pin-695 009.
12. Padmakumary, aged 50 years, W/o K.S Praveen Kumar,
Senior Nursing Officer, ESIC Model Hospital,
Asramam. Kollam, Pin-691 002
Residing at: Krishna, TC 21/1461,
Nedumcadu, Karamana P.O. Thiruvananthapuram, Pin-695 002.

13. Laisamma P.M., aged 47 years.,
W/o. Kurian T.C, Senior Nursing Officer, ESIC Model Hospital,
Asramam, Kollam, Pin 691 002.,
Residing at: Ebenezer House, Vattukulam P.O.,
Ettumanoor, Kottayam, Pin – 686 587.
14. Annie Pius, aged 47 years,
W/o Gracious K.E, Senior Nursing Officer,
ESIC Model Hospital, Asramam. Kollam. Pin-691 002
Residing at: Sharon Cottage, Chatholilkhakethil,
Maruthadi P.O. Kollam, Pin-691 003.
15. Surya K. aged 42 years, W/o Madhu P.P,
Senior Nursing Officer, ESIC Model Hospital,
Asramam. Kollam. Pin-691 002,
Residing at: Kareethara House, Chettimangalam,
Thekkenadu P.O, Vaikom. Kottayam, Pin-686 141 - **Applicants**

[By Advocates : Mrs. Sreekala T.N.]

V e r s u s

1. Union of India, Represented by the Secretary to the Government of
India, Ministry of Labour and Employment,
Shram Shakti Bhawan Rafi Marg, New Delhi-110 001
2. Employees State Insurance Corporation,
Represented by the Director General, Panchdeep Bhavan,
CIG Marg, New Delhi-110 002.
3. The Director General, Employees State Insurance Corporation,
Panchdeep Bhavan, CIG Marg. New Delhi-110 002.
4. The Regional Director, Employees State Insurance Corporation,
Panchdeep Bhawan, North Sawraj Round,
Thrissur, Pin-680 020. - **Respondents**

**[By Advocate: Mr. Brijesh A.S, ACGSC for R-1, Mr. T.V. Ajayakumar for R2
to R4]**

O.A No. 180/43/2025

1. Rohini P.B., aged 37 years,
D/o. P.Balakrishnan, Working as Nursing Officer ESIC Hospital,
Udyogamandal, Ernakulam,
Residing at Padinharoot (H) Red Gate Shornur-2, Palakkad Pin: 679 122.,
2. Shyam Rajitha P., aged 36 years,
S/D/o. Chachan Kutty P, Nursing officer ESIC Hospital,
Udyogamandal, Ernakulam,
Residing at Parappurath (H) Cheruvadi, Mavoor,
Kozhikode District, Pin:673 661.
3. Nisha John., aged 48 years,
W/o. Shibu Thomas, Nursing officer ESIC Hospital,
Udyogamandal, Ernakulam,
Residing at Pulimoothil(H), FNRA Annex 6, Eramdm,
Muppathadam Dam P.O., Aluva Pin: 683 110
4. Ajmal Javad C.K., aged 38 years,
S/o. Abdul Wahab C.K, Nursing officer ESIC Hospital, Asramam,
Residing at Rashid Manzil,Kavanur,P.O.,
Malappuram,Pin:673 639
5. Anju Ravi, aged 35 years,
W/o. Nishanth U.V, Nursing officer ESIC Hospital,Ezhukur,
Residing at Pulickal (H), Kodikalam P.O.,Thodupuzha, Idukki,PIN:685582.
6. Arjun N, aged 36 years,
S/o. N.Narendran, Nursing officer ESIC Hospital,
Asramam, Kollam, PIN:691002,
Residing at Souparnika, Eranthode, Anaadippuram, Valambur P.O.
Malappuram, Pin: 679 325

7. Blitz Mathew, aged 38 years,
S/o. P.V Mathew(late), Nursing officer ESIC Hospital,
Udyogamandal, Ernakulam,
Residing at Pulikunnel,Puthuvely P.O,
Kottayam District, Pin: 686 636
8. Deepa Mohan, aged 36 years,
W/o Anand T.N, Working as Nursing Officer ESIC Hospital,
Udyogamandal, Ernakulam,
Residing at Kalarikkal (H), Kizhakkekkara,Muvattupuzha, Pin: 686 661
9. Deepthi Mathew, aged 40 years,
W/o. Lyo Dominic, Working as Nursing Officer ESIC Hospital,
Udyogamandal, Ernakulam
Residing at Palakuzhy (H), Thazhyvankunnu P.O,
Kalloorkad, Muvattupuzha, Pin:686 668,
10. Fanza F, aged 37 years, W/o. Anvar P,Working as Nursing Officer,
ESIC Hospital, Ezhukore,
Residing at Pullanjukonam, Akkonam, Chadayamangalam P.O,
Kollam, Pin: 691 534,
11. Gopika A.C, aged 36 years,
W/o. Linu S.S, Working as Nursing Officer,
ESIC Hospital, Asramam, Kollam,
Residing at Valiyavila Puthen veedu,
Moonnukallin moodu,Neyyattinkara P.O,
Thiruvananthapuram, Pin: 695 121
12. Jince Jacob, aged 35 years,
D/o. Chacko Paul, working as Nursing officer, ESIC Hospital,
Udyogamandal, Ernakulam,PIN:683 501,
Residing at Puthiyedathu (H), South Vazhakulam P.O,
Ernakulam, Pin: 683 105,
13. Krishob K.M, aged 37 years,
S/o. Krishnan K.M(late),
Working as Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam,

Residing at Kizhakke Melethadathil(H), Karanthur P.O.,
Kozhikode, Pin: 673 571,

14. Nisha P.S.,aged 41 years,
W/o. Anu C.R, working as Nursing Officer ESIC Hospital,
Udyogamandal, Ernakulam
Residing at Variyath(H), V.K.C. P.O.,
Maniyatharamugal, Thevakkal, Ernakulam, Pin:682 021,
15. Pradeep S, aged 38 years,
S/o. Sasidharan, working as Nursing officer,
ESIC Hospital, Asramam.,
Residing at Venattu (H), Manapally P.O, Karunagappally, Kollam District,
Pin: 690 574,
16. Sagitha S, aged 36 years ,
W/o. Sujith Sudevan, working as Nursing officer
ESIM Hospital, Asramam,
Residing at Mudiylazhkathu Veedu, Thirippilazhikom P.O,
Kundara, Kollam District, Pin: 691 509,
17. Sancy Mohan, aged 38 years,
W/o Suneesh K.R, working as Nursing officer, ESIC Model & Super
Speciality Hospital, Asramam, Kollam District,
Residing at Sargam, Madathinkadavu,
Ottasekaramangalam P.O., Thiruvananthapuram, Pin: 695 125,
18. Sibin M.B, aged 39 years,
S/o. M.A. Basheer, working as Nursing officer,
ESIC Hospital, Udyogamandal, Ernakulam,
Residing at Manakilangara Parambil(H), Kobodinjammakkal P.O,
Thazhekkad, Thrissur District, Pin: 680 697,
19. Tintu Rajan,aged 36 years,
W/o.Rajith.R.,working as Nursing officer,
ESIC Hospital, Asramam,
Residing at Melevila, Aramthanam, Anakudy P.O., Vamanapuram,
Thiruvananthapuram, Pin: 695606,

20. Sandhya P.C, aged 47 years,
W/o. T.B. Jayaprakash, working as Nursing officer,
ESIC Model Hospital, Asramam, Kollam,
Residing at Parayil (H), Chelamattom, Okkal P.O., Perumbavoor,
Ernakulam District, Pin: 683 550 - **Applicants**

[By Advocates : Mr. V. Sajithkumar & Mr. Vivek A.V.]

V e r s u s

1. Employees State Insurance Corporation,
represented by its Director General,
Panchadweep Bhavan,
C.I.G. Road, New Delhi – 110 002.
2. The Regional Director,
Employees State Insurance Corporation,
Regional Office Thrissur, Panchadeep Bhavan,
North Swaraj Round, Thrissur, Pin: 680 020.
3. The Medical Superintendent,
ESIC Hospital, Udyogmandal, Ernakulam – 683 501.
4. The Medical Superintendent,
ESIC Hospital, Ezhukone, Kollam – 691 505.
5. The Medical Superintendent,
ESIC Hospital Asramam, Kollam – 691 002. - **Respondents**

[By Advocate: Mr. Adarsh Kumar]

O.A No. 180/46/2025

1. Bindumol M.N,
W/o. Surendran V.S, aged 52 years,
Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Vadakkedath House, Nandakshara, Muppathadom P.O,
Ernakulam 683 110.

2. Simi. N.D, W/o. Jiji Joseph, aged 51 years, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Pettah House, Olanad, Kuriapparamba, Varapuzha P.O., Ernakulam- 683 517.
3. Sophya Varghese, W/o. Binu P.A, aged 51 years, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Pallath House, Nellimattom P.O, Kothamangalam, Ernakulam 686 693.
4. Jamuna P.K., W/o. M.K. Shaju, aged 57 years, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Parappattu House, Pampakuda P.O, Ernakulam 686 667.
5. Elbymol Eldho,
W/o. Shajimon P.G, aged 51 years, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Parekudiyil House, Varapetty P.O, Kothamangalam, Ernakulam 686 691.
6. Naseema C.M,
W/o. Johnson Thomas, aged 44 years, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Karalil Johnson Villa, East Kallada P.O, Kollam 691 502.
7. Naseera. M.P,
W/o. Ali M.B, aged 44 years, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Manickal House, Manikkinar P.O, Paimuttom, Kothamangalam.
8. Sabida.P.S,
W/o. Pradeep K.S, aged 48 years, Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Kizhakkepokkathara, Vaikom P.O, Kottayam 686 141.

9. Pushpitha Poullose,
W/o. Joju V.R, aged 44 years, Nursing Officer, ESIC Hospital,
Udyogamandal, Ernakulam 683 501.
Residing at Vadayil House, Mathilakam P.O, Thrissur 680 685.
10. Treesa Stoy Palakkal,
W/o. Jiju T.V, aged 46 years,
Nursing Officer, ESIC Hospital,
Udyogamandal, Ernakulam 683 501.
Residing at Tharayil House, Poyya P.O, Thrissur District, PIN 680 733.
11. Shija C.R.,
W/o. U.V. Sahajan, aged 46 years,
Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Uttumadathil House, Near Chittukunnil Temple,
Muppathadom P.O, Aluva 686 141.
12. Sajitha Joseph,
W/o. Kunjumon Thomas, aged 50 Years,
Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Malarkattu House, Kanakkary P.O, Kottayam 686 632.
13. Jeena Saji,
W/o. Saji A.K, aged 46 years,
Nursing Officer, ESIC Hospital,
Udyogamandal, Ernakulam 683 501.
Residing at Adakkara House,
Thuruthy P.O, Perumbavoor, Ernakulam 683 545.
14. Minimol T.R,
W/o. P.K. Purushothaman, aged 52 Years, Senior Nursing Officer, ESIC
Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Puthuveettuveli, Charamangalam,
Muhamma P.O, Alappuzha 688 525.
15. Sujamol M.T, aged 49 Years,
Senior Nursing Officer, ESIC Hospital,

Udyogamandal, Ernakulam 683 501.
Residing at Puthiyaparambil House, 226 A,
Kureekad P.O, Chottanikkara, Ernakulam 682 305.

16. Shirly. P.M, aged 53 Years,
Senior Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Chalarackal House,
Vallarpadam P.O, Panambukad, Ernakulam 682 504.
17. Divya P Visal,
W/o. Aneesh M.J, aged 38 years,
Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Moolacheril House, Kuzhimattom P.O,Kottayam 686 533.
18. Margarat C L,
W/o. Biju Varghese, aged 53 years,
Senior Nursing Officer , ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Thottathian House, Allapra P.O, Perumbavoor.
19. Rethy T.G,
W/o. Babu K, aged 53 years, Senior Nursing Officer, ESIC Hospital,
Udyogamandal, Ernakulam 683 501.
Residing at Punartham House, West Kadungalloor, Muppathadam P.O,
Aluva 683 110.
20. Vijayamma. C.K.,
W/o. Raju K.K., aged 55 years,
Senior Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Kallingal House, Asamannoor P.O,
Cherukunnam, Ernakulam 683 549.
21. Hajara.O.H,
W/o. K.K. Azeez, aged 53 years,
Senior Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Kalangara House, Palathuruth, Chendamangalam P.O,
North Paravoor, Ernakulam 683 512.
22. Siby.T. Mathew,

W/o. Thankachan Joseph, aged 51 years,
Senior Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Avirappattu House, Kuruppampady P.O, Ernakulam 683 545.

23. Jessy. T.K.,
W/o. Sunil P Johns, aged 51 years, Senior Nursing Officer, ESIC Hospital,
Udyogamandal, Ernakulam 683 501.
Residing at Pittappillil House, Aimury P.O,
Koovappady, Ernakulam 683 544.
24. Shyni P,
W/o. Vipinchandran, aged 53 years,
Senior Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Sreenilayam House, Vadayar P.O,
Thalayolaparambu, Kottayam 686 605.
25. Sreerekha T.N.,
W/o. Sasi P.K, aged 56 years,
Senior Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Pappalil House, S. Marady P.O,
Muvattupuzha, Ernakulam 686 673.
26. Renjini E.K.,
W/o. Rejeesh Francis, aged 49 years,
Senior Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam 683 501.
Residing at Kanjirathinkal House, Malayidamthuruth P.O,
Chiravakkad Ernakulam – 6835 61

- Applicants

[By Advocates : Mr. Thampan Thomas, Mr. B.V. Joy Sankar, Ms. Nincy Mathew & Ms. Hena Bahuleyan]

V e r s u s

1. Employees State Insurance Corporation,
Panchadeep Bhavan, New Delhi 110 002,
Represented by its Director General.
2. The Medical Commissioner,

Employees State Insurance Corporation,
Panchadeep Bhavan, New Delhi 110 002.

3. The Additional Commissioner & Regional Director,
Employees State Insurance Corporation,
Regional Office, Panchadeep Bhavan,
N S Round, Thrissur -20.
4. The Medical Superintendent,
ESIC Hospital, Udyogamandal,
Ernakulam District, PIN 683 501.

- Respondents

[By Advocate: Mr. Adarsh Kumar]

O.A No. 180/70/2025

1. Sherin N.B, aged 43 years,
W/o Biju V, Senior Nursing Officer,
ESIC Model Hospital, Asramam,
Kollam, Pin-691 002.
Residing at: Mehalayam, Alamukku,
Poovachal P.O. Thiruvananthapuram, Pin-695 575.
2. Diana Joseph, Aged 40 years,
W/o Ashok Eapen K, Senior Nursing Officer,
ESIC Model Hospital, Asramam, Kollam. Pin-691 002.
Residing at: AN 125, Adarsh Nagar., Pattom P.O.,
Thiruvananthapuram, Pin-695 004.
3. Sunitha S, aged 43 years,
W/o Shaji T.J., Senior Nursing Officer, ESIC Model Hospital,
Asramam, Kollam. Pin-691 002.
Residing at: Shaji Nivas, Mithranikethan P.O.
Thiruvananthapuram, Pin-695 543.
4. Kavitha Aravind, Aged 46 years,

W/o Binulal S, Senior Nursing Officer, ESIC Hospital. Ezhukone,
Residing at : Krishnagadha, Kootikada P.O,
Kollam, Pin – 691 020.

5. Bindu S, Aged 47 years, W/o Jayaprakash K.
Senior Nursing Officer, ESIC Hospital.,
Kollam. PIN-691 505
Residing at: Manipuzha House,
Padaharam, Thakazhy P.O.
Alapuzha, Pin-688 562.
6. Priya P. Aged 43 years,
W/o M. Thilakan, Senior Nursing Officer,
ESIC Model Hospital, Asramam. Kollam, Pin-691 002.
Residing at: Sreethilakam, Poothakulam P.O.,
Kollam, Pin-691 302.
7. Soumya S, Aged 39 years.
D/o B. Sasidharan, Senior Nursing Officer,
ESIC Hospital, Ezhukone, Kollam, Pin-691 505.
Residing at: Sreyas, Gandhi Nagar-3, Chencheri Road,
Nalanchira P.O. Thiruvananthapuram. Pin-695 015.
8. Preetha S.V, Aged 40 years,
W/o Sajumon K, ESIC Model Hospital,
Asramam, Kollam. Pin-691 002.
Residing at: Uthram, KRA 10,
Kavottumukku. Kazhakuttam P.O.
Tiruvananthapuram, Pin-695 582.
9. Sijitha S, Aged 46 years,
W/o Sunil P.S ESIC Model Hospital,
Asramam, Kollam, Pin-691-002.
Residing at: Puliyullathodiyil House,
Kodalnadakkavu. Pantheerankavu P.O, Pin-673 019.
10. Vineetha Kumary T.K, Aged 39 years,
W/o G.K Shanoj Kumar, Senior Nursing Officer,

ESIC Hospital, Ezhukone, Kollam, Pin-691 505.
Residing at: Thraisham, Nettayam,
Manikandeswaram P.O. Thiruvananthapuram. Pin-695 013.

11. Binushma P.G, Aged 44 years,
W/o Sunil Kumar R. Senior Nursing Officer,
ESIC Model Hospital. Asramam, Kollam, Pin-691 002,
Residing at: Gokulam, TC 48/882(2),
Konchiravila, Manacaudu P.O., Pin-695 009.
12. Padmakumary, aged 50 years, W/o K.S Praveen Kumar,
Senior Nursing Officer, ESIC Model Hospital,
Asramam. Kollam, Pin-691 002
Residing at: Krishna, TC 21/1461,
Nedumcadu, Karamana P.O. Thiruvananthapuram, Pin-695 002.
13. Annie Pius, aged 47 years,
W/o Gracious K.E, Senior Nursing Officer,
ESIC Model Hospital, Asramam. Kollam. Pin-691 002
Residing at: Sharon Cottage, Chatholil kizhakethil,
Maruthadi P.O. Kollam, Pin-691 003.
14. Surya K. aged 42 years, W/o Madhu P.P,
Senior Nursing Officer, ESIC Model Hospital,
Asramam. Kollam. Pin-691 002,
Residing at: Kareethara House. Chettimangalam,
Thekkenadu P.O, Vaikom. Kottayam, Pin-686 141.
15. Ambili R. aged 54 years, W/o Cyril Chacko,
Senior Nursing Officer, ESIC Model Hospital,
Asramam. Kollam. Pin-691 002.
Residing at Kalluvila Veedu, Thannicodu,
Kundara P.O. Kollam, Pin-691 501.
16. Indu S. aged 48 years,
W/o padmakumar G. Senior Nursing Officer,
ESIC Hospital, Ezhukone, Kollam. Pin-691 505,
Residing at: Saphalya, Marwel E-17,

Melekkadu Lane. Maruthoorkadavu,
Karamana P.O, Thiruvananthapuram, Pin-695 002.

17. Suseela T, aged 56 years,
W/o Suresh Babu, Senior Nursing Officer,
ESIC Hospital, Ezhukone, Kollam. Pin-691 505,
Residing at: Saphalyam, Edavattam,
Vellimon P O, Kollam, Pin-691 511.
18. Sreelekha P B. aged 51 years.
W/o P. Radhakrishnan, Senior Nursing Officer,
ESIC Hospital, Ezhukone, Kollam, Pin-691 505,
Residing at: Anayadipadeettathil,
Pallarimangalam P.O. Mavelikkara,
Alappuzha, Pin-690 107.
19. Sheena H M, aged 46 years,
W/o Santhosh RP, ESIC Model Hospital,
Asramam, Kollam, Pin-691 002.
Residing at: Sheena Mandiram, Edathara P.O,
Kadakkal. Kollam, PIN-691 536

- Applicants

[By Advocate : Mrs. Sreekala T.N.]

V e r s u s

1. Union of India. Represented by the Secretary to the Government of India, Ministry of Labour and Employment,
Shram Shakti Bhawan Rafi Marg, New Delhi-110 001
2. Employees State Insurance Corporation,
Represented by the Director General, Panchdeep Bhavan,
CIG Marg, New Delhi-110 002.
3. The Director General, Employees State Insurance Corporation,
Panchdeep Bhavan, CIG Marg. New Delhi-110 002.

4. The Regional Director, Employees State Insurance Corporation,
Panchdeep Bhawan, North Sawraj Round, Thrissur, Pin-680 020.
5. The Medical Superintendent, Employees State Insurance Corporation,
Panchdeep Bhavan, CIG Marg, New Delhi-110 002.
6. The Secretary to the Government of India Ministry of Personnel &
Public Grievances. Department of Personnel & Training,
New Delhi, Pin-110 001. - **Respondents**

[By Advocates: Mr. V.A. Shaji, for R-1 & R-6; Mr. Adarsh Kumar for R-2 to R-5]

O.A No. 180/252/2025

1. Sivaprasad Unni G, aged 38 years,
S/o T.V. Gopi,
Nursing Officer, ESIC Hospital,
Udyogamandal, Ernakulam-683 501,
Residing at Perumpillil House,
Kothamangalam, Ernakulam District-686 691
2. Akhil P., aged 37 years,
S/o p.K. Purushan,
Nursing Officer, ESIC Hospital, Udyogamandal, Ernakulam-683 501,
Residing at Puthenkudy House,
Koovappady P.O., Perumbavoor,
Ernakulam District-683 544 - **Applicants**

[By Advocate : Mr. Elvin Peter, SR & Mr. K.R. Ganesh]

V e r s u s

1. Union of India- represented by its Secretary,
Ministry of Labour & Employment,
Shram Shakthi Bhavan, Rafi Marg,
New Delhi-110 001.

2. Employees' State Insurance Corporation,
Represented by the Director General,
Employees' State Insurance Corporation,
Head Quarters Office, C.I.G. Road,
New Delhi-110 001.
3. The Director General,
Employees' State Insurance Corporation,
Head Quarters Office, C.I.G. Road,
New Delhi-110 001.
4. The Medical Commissioner (MA),
ESI Corporation, Panchdeep Bhavan,
C.I.G. Marg, New Delhi-2.
5. The Medical Superintendent,
ESIC Hospital, Udyogamandal,
Ernakulam-683 501
6. Vīnu U.S, aged 39 years, S/o, Udayan.S,
Cheerankavu, Ezhukone, Kollam District, Kerala,
PIN-691 505,
Presently working as Nursing Officer at ESIC Hospital Tirunelveli,
Tamilnadu, Transferred under One Time Option to ESIC Hospital,
Ezhukone, Kollam District, Kerala
7. Aji John, aged 37 years, S/o. Mr. A. Johnkutty,
Kanjiramninna Karichal, Kazhivoor PO.
Thiruvananthapuram District, Kerala, PIN- 695526.
Presently working as Nursing Officer at ESIC Medical College,
Gulbarga, Karnataka, Transferred under One Time Option to ESIC
Hospital, Ezhukone, Kollam, Kerala
8. Nishanth U.V,aged 38 years, S/o, Unnukallel House,
Vadakkennirappu PO, Nezhloor, Kottayam,
Kerala, 686612,
Presently working as Nursing Officer at ESIC Hospital Tiruppur,
Tamilnadu, Transferred under One Time Option to ESIC Hospital,

Ezhukone, Kollam District, Kerala

9. Santhosh Soman, aged 39 years,
S/o Late.E.P Soman, Erumalayil House,
Angamaly South PO, Ernakulam District,
Kerala, PIN- 683573,
Presently working as Nursing Officer at ESIC Hospital Jhilmil,
Delhi, Transferred under One Time Option to ESIC Hospital,
Udyogmandal, Ernakulam District, Kerala
10. Muhammed Shereef M, aged 37 years,
S/o.Mr. Ahammed M. Kunnath House,
Pookottuchola, Chemrakkattur Post,
Areekod, Malappuram, Kerala, 673639,
Presently working as Nursing Officer at ESIC Hospital Tiruppur,
Tamilnadu, Transferred under One Time Option to ESIC Hospital,
Udyogmandal, Ernakulam District,
Kerala (SL.No.193 in the transfer order).
11. Umarali K, aged 37 years,
S/o. Mr. Abdurahiman, Alungaparamb House,
Chengara, Iruvetty Post, Areacode (via), Malappuram,
Kerala, 673639, Presently working as Nursing Officer at ESIC Hospital
Tiruppur, Tamilnadu, Transferred under one time option to ESIC
Hospital, Udyogmandal, Ernakulam District,
Kerala (SL.No.584 in the transfer order).
12. Akhil Parappuram, aged 39 years,
S/o, Parappuram House, Varanad PO,
Cherthala, Alappuzha, 688539,
Presently working as Nursing Officer at ESIC Model Hospital Noida,
Transferred under One Time Option to ESIC Model Hospital,
Asramam, Kollam District, Kerala (SL.No.630 in the transfer order).
13. Boben Joseph, aged 38 years,
S/o. Mr. Joseph Chacko, Vellamatharachira,
Venattukadu, Chathurthiakary PO. Alappuzha,
Kerala, PIN- 688502,

Presently working as Senior Nursing Officer at ESIC Model Hospital
Andheri, Mumbai, Maharashtra, Transferred under One Time Option
ESIC to Hospital, Udyogmandal, Ernakulam District,
Kerala

- Respondents

[By Advocates: Mr. M.K. Padmanabhan Nair, ACGSC for R-1, Mr. K.P. Harish for R-6 to R-13; Mr. Adarsh Kumar for R-2 to R5]

CP(C) No.33/2025 in O.A No. 180/252/2025

1. Sivaprasad Unni G, aged 38 years,
S/o T.V. Gopi,
Nursing Officer, ESIC Hospital,
Udyogmandal, Ernakulam-683 501,
Residing at Perumpillil House,
Kothamangalam,
Ernakulam District-686 691.
2. Akhil P., aged 37 years,
S/o P.K. Purushan,
Nursing Officer, ESIC Hospital,
Udyogamandal, Ernakulam-683 501,
Residing at Puthenkudy House,
Koovappady P.O., Perumbavoor,
Ernakulam District-683 544

-Petitioners

[By Advocates:Mr. K.R. Ganesh]

V e r s u s

1. Sri Asok Kumar Singh, IAS
(Age & Name of father is not known to the petitioners)
Director General,
Employees' State Insurance Corporation,
Head Quarters Office, C.I.G. Road,
New Delhi-110 001.
2. Dr. Kamles Harish

(Age & Name of father is not known to the petitioners)
Medical Commissioner (MA),
ESI Corporation, Panchdeep Bhavan,
C.I.G. Marg, New Delhi-2

3. Dr. Prasanta Kumar Maity,
Medical Superintendent,
E.S.I.C. Hospital, Udyogamandal,
Eloor, Ernakulam-683 501.

-Respondents

{Advocate: Mr. Adarsh Kumar }

O.A No. 180/495/2025

1. Soumya S, Aged 39 years, D/o B. Sasidharan,
Senior Nursing Officer, ESIC Hospital, Ezhukone,
Kollam, PIN-691 505. Residing at: Sreyas,
Gandhi Nagar-3, Chencheri Road, Nalanchira P.O.
Thiruvananthapuram, PIN-695 015.
2. Sherin N.B, aged 43 years, W/o Biju V,
Senior Nursing Officer, ESIC Model Hospital,
Asramam, Kollam. PIN-691 002
Residing at: Mehalayam, Alamukku, Poovachal P.O,
Thiruvananthapuram, PIN-695 575.
3. Diana Joseph, Aged 40 years, W/o Ashok Eapen K,
Senior Nursing Officer, ESIC Model Hospital,
Asramam, Kollam, PIN-691 002, Residing at:
AN 125, Adarsh Nagar, Pattom P.O,
Thiruvananthapuram, PIN-695 004.
4. Sunitha S, aged 43 years, W/o Shaji T.J,
Senior Nursing Officer, ESIC Model Hospital,
Asramam, Kollam, PIN-691 002,
Residing at: Shaji Nivas, Mithranikethan P.O,
Thiruvananthapuram, PIN-695 543.

5. Kavitha Aravind, Aged 46 years, W/o Binulal S,
Senior Nursing Officer, ESIC Model Hospital, Asramam,
Kollam, PIN-691 002, Residing at: Krishnagadha,
Koottikada P.O., Kollam, PIN – 691 020.
6. Bindu S, Aged 47 years, W/o Jayaprakash K.
Senior Nursing Officer, ESIC Hospital, Ezhukone.
Kollam, PIN-691 505, Residing at: Manipuzha House,
Padaharam, Thakazhy P.O. Alapuzha, PIN-688 562.
7. Priya P, Aged 43 years, W/o M. Thilakan,
Senior Nursing Officer, ESIC Model Hospital, Asramam.
Kollam, PIN-691 002, Residing at: Sreethilakam,
Poothakulam P.O. Kollam, PIN-691 302.
8. Preetha S.V, Aged 40 years, W/o Sajumon K.
ESIC Model Hospital, Asramam, Kollam, PIN-691 002.
Residing at: Uthram, KRA 10, Kavottumukku,
Kazhakuttam P.O, Thiruvananthapuram, PIN-695 582.
9. Sijitha S, Aged 46 years, W/o Sunil P.S
ESIC Model Hospital, Asramam, Kollam, PIN-691 002.
Residing at: Puliullathodiyil House,
Kodalnadakkavu, Pantheerankavu P.O, PIN-673 019.
10. Vineetha Kumary T.K, Aged 39 years, W/o G.K Shanoj Kumar,
Senior Nursing Officer, ESIC Model Hospital, Asramam,
Kollam, PIN-691 002. Residing at: Thraisham,
Nettayam, Manikandeswaram P.O,
Thiruvananthapuram, PIN-695 013.
11. Binushma P.G, Aged 44 years, W/o Sunil Kumar R,
Senior Nursing Officer, ESIC Model Hospital, Asramam,
Kollam, PIN-691 002. Residing at: Gokulam,
TC 48/882(2), Konchiravila, Manacaudu P.O., PIN-695 009.

12. Padmakumary, aged 50 years, W/o K.S Praveen Kumar,
Senior Nursing Officer, ESIC Model Hospital, Asramam,
Kollam, PIN-691 002, Residing at: Krishna, TC 21/1461,
Nedumcadu, Karamana P.O, Thiruvananthapuram, PIN-695 002.
13. Annie Pius, aged 47 years, W/o Gracious K.E,
Senior Nursing Officer, ESIC Model Hospital, Asramam,
Kollam, PIN-691 002 Residing at: Sharon Cottage,
Chatholilkizhakethil, Maruthadi P.O, Kollam, PIN-691 003.
14. Surya K, aged 42 years, W/o Madhu P.P,
Senior Nursing Officer, ESIC Model Hospital, Asramam,
Kollam, PIN-691 002 Residing at: Kareethara House,
Chettimangalam, Thekkenadu P.O. Baikom, Kottayam, PIN-686 141.
15. Ambili R, aged 54 years, W/o Cyril Chacko,
Senior Nursing Officer, ESIC Model Hospital, Asramam,
Kollam, PIN-691 002, Residing at: Kalluvila Veedu,
Thannicodu, Kundara P.O, Kollam, PIN-691 501.
16. Indu S, aged 48 years, W/o Padmakumar G,
Senior Nursing Officer, ESIC Hospital, Ezhukone,
Kollam, PIN-691 505, Residing at: Saphalya, Marwel E-17,
Melekkadu Lane, Maruthoorkadavu,
Karamana P.O. Thiruvananthapuram, PIN-695 002.
17. Suseela T, aged 56 years, W/o Suresh Babu,
Senior Nursing Officer, ESIC Hospital, Ezhukone,
Kollam, PIN-691 505, Residing at: Saphalyam, Edavattam,
Vellimon P O, Kollam, PIN-691 511.
18. Sreelekha P B, aged 51 years, W/o P. Radhakrishnan,
Senior Nursing Officer, ESIC Hospital, Ezhukone,
Kollam, PIN-691 505, Residing at: Anayadipadeettathil,
Pallarimangalam P.O, Mavelikkara, Alappuzha, PIN-690 107.

19. Beetta J, aged 49 years, D/o Jobi C,
Senior Nursing Officer, ESIC Model Hospital, Asramam,
Kollam, PIN-691 002, Residing at: B & B Villa,
People's Nagar-213A, Kadapakkada, Kollam,
PIN-691 001 - **Applicants**
[By Advocate: Mrs. Sreekala T.N.]

V e r s u s

1. Union of India, Represented by the Secretary to
the Government of India, Ministry of Labour and Employment,
Shram Shakti Bhawan Rafi Marg, New Delhi-110 001
2. Employees State Insurance Corporation,
Represented by the Director General, Panchdeep Bhavan,
CIG Marg, New Delhi-110 002.
3. The Chairman, Employees State Insurance Corporation,
Panchdeep Bhavan, CIG Marg, New Delhi-110 002.
4. The Director General, Employees State Insurance Corporation,
Panchdeep Bhavan, CIG Marg, New Delhi-110 002.
5. The Deputy Director (Medical Admin),
Employees State Insurance Corporation, Panchdeep Bhavan,
CIG Marg, New Delhi-110 002.
6. The Assistant Director (Medical Admin),
Employees State Insurance Corporation,
Panchdeep Bhavan, CIG Marg, New Delhi-110 002.
7. The Regional Director,
Employees State Insurance Corporation,
Panchdeep Bhawan, North Sawraj Round,
Thrissur, PIN-680 020. - **Respondents**

**[By Advocate: Mr. M.K. Padmanabhan Nair, ACGSC for R-1, Mr. Adarsh
Kumar for R-2 to R-7]**

O.A No. 180/497/2025

1. Aswathy C.S., aged 37 years,
W/o Vishnu Narayanan,
Nursing Officer, ESIC Hospital,
Udyogamandal, Kochi-683 501
Residing at Palackal House,
Thrikkalathoor P.O.,
Muvattupuzha-683 541
2. Sheejamol Santhosh, aged 48 years,
W/o Santhosh P. Bhaskaran,
Nursing Officer, ESIC Hospital,
Udyogamandal, Kochi-683 501
Residing at Padackal House,
Vazhithala P.O., Idukki-685 583
3. Sajeesh A.N., aged 40 years,
S/o Narayanan,
Nursing Officer, ESIC Hospital,
Udyogamandal, Kochi-683 501
Residing at Sreemangalam, CMC-1,
Cherthala P.O., Alappuzha-688 524
4. Sarath Kumar S., aged 39 years,
S/o Sasidharan Pillai,
Nursing Officer, ESIC Hospital,
Ashramam, Kollam-691 002
Residing at Haribhavan, Kumarapuram P.O.,
Haripad, Alappuzha-690 548
5. Arun C., aged 38 years,
S/o Chandra Mohanan Pillai,
Nursing Officer, ESIC Hospital,
Ashramam, Kollam-691 002
Residing at Sreepadmam, Dreams Villa,
Sarathy Junction, Karicode, Kollam-691 005

6. Rahul Krishnan K.A., aged 38 years,
S/o Bhaskaran M,
Nursing Officer, ESIC Hospital,
Ashramam, Kollam-691 002
Residing at Mangot House,
Melattur P.O., Malappuram-679 326
7. Vineeth Chandran, aged 39 years,
S/o Chandran K.V.,
Nursing Officer, ESIC Hospital,
Ashramam, Kollam-691 002
Residing at Chandrageetham, Iriverry P.O.,
Chakkarakkal, Kannur-670 631
8. Ratheeshlal S., aged 38 years,
S/o Sukumaran,
Nursing Officer, ESIC Hospital,
Ashramam, Kollam-691 002
Residing at Thiruvathiravilasam, Cheriya,
Alummoodu P.O., Kollam-691 577

- Applicants

[By Advocate : Mr. R. Sreeraj]

V e r s u s

1. Union of India represented by its Secretary
to the Government of India, Ministry of Labour and
Employment, Shram Shakti Bhawan,
Rafi Marg, New Delhi-110 069
2. The Director General,
Employees State Insurance Corporation(ESIC),
Panchdeep Bhawan, CIG Marg, New Delhi-110 002
3. The Chairman,
Employees State Insurance Corporation(ESIC),
Panchdeep Bhawan, CIG Marg, New Delhi-110 002

4. The Regional Director,
Employees State Insurance Corporation,
Regional Office, Thrissur, Kerala-680 001
5. The Medical Superintendent,
ESIC Hospital, Ashramam, Kollam-691 002
6. The Medical Superintendent,
ESIC Hospital, Udyogamandal,
Kochi-683 501

- Respondents

[By Advocate: Mr. Adarsh Kumar for R-2 to R-6]

O.A No. 180/500/2025

1. Bindumol M.N,
W/o. Surendran V.S, aged 52 years, Nursing Officer,
ESIC Hospital, Ezhukone, Kollam 691 505.
Residing at Vadakkedath House, Nandakshara, Muppathadom P.O,
Ernakulam 683 110.
2. Simi. N.D,
W/o. Jiji Joseph, aged 51 years,
Nursing Officer, ESIC Hospital, Ezhukone, Kollam 691 505.
Residing at Pettah House, Olanad,
Kuriapparamba, Varapuzha P.O., Ernakulam 683 517.
3. Sophya Varghese,
W/o. Binu P.A, aged 51 years, Nursing Officer,
ESIC Hospital, Ezhukone, Kollam 691505.
Residing at Pallath House, Nellimattom P.O, Kothamangalam,
Ernakulam -686 693.
4. Jamuna P.K.,
W/o. M.K. Shaju, aged 57years, Nursing Officer, ESIC Hospital,
Ezhukone, Kollam 691 505.
Residing at Parappattu House, Pampakuda P.O, Ernakulam 686 667.

5. Elbymol Eldho,
W/o. Shajimon P.G, aged 51 years, Nursing Officer, ESIC
Hospital, Ezhukone, Kollam 691 505.
Residing at Parekudiyil House, Varapetty P.O, Kothamangalam,
Ernakulam 686 691.
6. Naseema C.M,
W/o. Johnson Thomas, aged 44 years, Nursing Officer, ESIC Model &
Super Specialty Hospital, Asramam, Kollam 691 002
Residing at Karalil Johnson Villa, East Kallada P.O, Kollam 691 502.
7. Naseera. M.P,
W/o. Ali M.B, aged 44 years,
Nursing Officer, ESIC Model &Super Specialty Hospital,
Asramam, Kollam 691 002
Residing at Manickal House, Manikkinar P.O, Paimuttom, Kothamangalam.
8. Sabida.P.S,
W/o. Pradeep K.S, aged 48 years,
Nursing Officer, ESIC Model & Super Specialty Hospital,
Asramam, Kollam 691 002
Residing at Kizhakkepokkathara, Vaikom P.O, Kottayam 686141.
9. Pushpitha Poullose,
W/o. Joju V.R, aged 44 years,
Nursing Officer, ESIC Model & Super Specialty Hospital,
Asramam, Kollam 691002
Residing at Vadayil House, Mathilakam P.O, Thrissur 680 685.
10. Treesa Stoy Palakkal,
W/o. Jiju T.V, aged 46 years,
Nursing Officer, ESIC Model & Super Specialty Hospital,
Asramam, Kollam 691 002
Residing at Tharayil House, Poyya P.O, Thrissur District, PIN 680 733.
11. Shija C.R.,
W/o. U.V. Sahajan, aged 46years,

Nursing Officer, ESIC Model & Super Specialty Hospital,
Asramam, Kollam 691 002
Residing at Uttumadathil House, Near Chittukunnil Temple, Muppathadom
P.O, Aluva 686 141.

12. Sajitha Joseph,
W/o. Kunjumon Thomas, aged 50 Years,
Nursing Officer, ESIC Model & Super Specialty Hospital,
Asramam, Kollam 691002
Residing at Malarkattu House, Kanakkary P.O, Kottayam
13. JeenaSaji,
W/o. Saji A.K, aged 46 years,
Nursing Officer, ESIC Model & Super Specialty Hospital,
Asramam, Kollam 691 002
Residing at Adakkara House, ThuruthyP.O,Perumbavoor,
Ernakulam 683 545.
14. Divya P Visal,
W/o. Aneesh M.J, aged 38 years,
Nursing Officer, ESIC Model & Super Specialty Hospital,
Asramam, Kollam 691 002
Residing at Moolacheril House,
Kuzhimattom P.O, Kottayam 686 533.

- Applicants

[By Advocates : Mr. Thampan Thomas, Mr. B.V. Joy Sankar, Ms. Nincy Mathew & Ms. Hena Bahuleyan]

V e r s u s

1. Employees State Insurance Corporation,
PanchadeepBhavan, New Delhi 110 002,
Represented by its Director General.
2. The Medical Commissioner,
Employees State Insurance Corporation,
PanchadeepBhavan, New Delhi 110 002.

3. The Additional Commissioner & Regional Director,
Employees State Insurance Corporation,
Regional Office, Panchadeep Bhavan,
N S Round, Thrissur -20.
4. The Medical Superintendent,
ESIC Hospital, Udyogamandal, Ernakulam District, PIN 683 501.
5. The Medical Superintendent,
ESIC Hospital, Ezhukone, Kollam- 691505
6. The Medical Superintendent,
ESIC Hospital, Asramam, Kollam-691002.
7. Mrs. Bindu Jain,
Senior Nursing Officer, ESIC Hospital,
Block D, Jhilmil Colony, Jhilmil, Delhi - 110095
8. Mrs. Rani Antony,
Senior Nursing Officer,
ESIC. K.K Nagar, Chennai,Tamil Nadu 600078
9. Mrs. Jaissy Wilson
Senior Nursing Officer,
ESIC Model Hospital Noida - 201301
10. Mrs. Ajimol Abraham,
Senior Nursing Officer, ESIC Hospital,
Chettipalayam, Tiruppur, Tamil Nadu 641603.
11. Mrs. Dhanya Nambisseril Dhananjayan,
Senior Nursing Officer,
ESIC Model Hospital, Andheri, Mumbai 400 093.
12. Mrs. Pauly Abraham,
Senior Nursing Officer,
ESIC Hospital, Okhla, Industrial Area Phase I, Delhi 110020.

13. Mrs. Beena Murali,
Senior Nursing Officer, ESIC Hospital, Okhla,
Industrial Area Phase I, Delhi 110 020.
 14. Mr. Aravind Devarajan Babus,
Senior Nursing Officer, ESIC Model Hospital, Andheri, Mumbai 400 093.
 15. Mrs. Mini Benny,
Senior Nursing Officer,
ESIC Hospital, Okhla, Industrial Area Phase I, Delhi 110020.
 16. Mr. Boban Joseph,
Senior Nursing Officer,
ESIC Model Hospital, Andheri, Mumbai 400 093.
 17. Mrs. Rose Mary Bijoy,
Senior Nursing Officer,
ESIC Hospital, Okhla, Industrial Area Phase I,
Delhi 110020.
- Respondents**

[By Advocate: Mr. Adarsh Kumar, for R-1 to R-6; Mrs. Girija K. Gopal & Ms. Soorya Mariya Kurian for R- 7 to R-13, R15 & R17 and Mr. K.P. Harish, Ms. Reshma E & Ms. Atheena Antony for R-14 & R-16]

O.A No. 180/501/2025

1. Jomy Joby, aged 43 years, W/o.Shri. Joby John
presently working as Nursing Officer, ESIC Hospital,
Udyogmandal P.O, Ernakulam – 683 501, and R/o.
Paruthippillil House, PHED Road, Kothamangalam P.O.
Ernakulam-686669
2. Jishamol Mathew, aged 39 years, W/o. Shri. Bijoy M.V
presently working as Nursing Officer, ESIC Hospital,
Udyogmandal P.O, Ernakulam -683 501 and R/o.
Madhavasseril House, Atava P.O Kodithumula,
Ernakulam District, Pin – 683 101.

3. Shimmy Thomas, aged 52 years, presently working as Nursing Officer, ESIC Hospital, Udyogmandal P.O, Ernakulam – 683 501 and R/o. Myladiyil House, ULTRA-87, Unichira-Thaikavu road, Changampuzha Nagar P.O, Ernakulam-682 035
4. Sherly Babu, aged 56 years, W/o. Shri. Sahu A.M, presently working as Nursing Officer, ESIC Hospital, Udyogmandal P.O, Ernakulam 683 501 and R/o. Anthiyamkulam House, E-1, Block-3, V. B. Park, Thanapadam Road, Kakkanad P.O, Pin – 682 030
5. Muhamed A, 39 years, S/o Hussain A, presently working as Nursing Officer, ESIC Hospital, Udyogmandal P.O Ernakulam 683 501 R/o. Areekatt House, Thozhuvanoor PO Valanchery Via, Malappuram District, Kerala Pin 676 552
6. Sailal K S. S/o. Shri Sasidharan K. 38 years, presently working as Nursing Officer, ESIC Hospital, Udyogmandal P.O. Ernakulam-683 501, R/o. Kunnath House, Vettikkattiri.P.O. Thrissur – 679 531
7. Shereena N.U., aged 41 years, W/o. Seethy Ahammed Kutty, presently working as Nursing Officer, ESIC Hospital, Udyogmandal P.O., Ernakulam 683 501 and R/o. Alackal House, Nellimattom P.O.,Kavalangad P.O., Kothamangalam, Ernakulam – 686 693
8. Jemy Jose C., aged 39 years, S/o. Shri. Jencin O.S., presently working as Nursing Officer, ESIC Hospital, Udyogamandal P.O.,Ernakulam – 683 501 and R/o. Ottathengil House, Triikkaipetta P.O., Kalpetta – 673 577 Wayanad
9. Liya Paul, aged 40 years, D/o. late Shri. P.T. Paulase, presently working as Nursing Officer, ESIC Hospital, Udyogmandal P.O, Ernakulam 683 501, Njattumkala House, Pattimattom, Ernakulam 683 582
10. Maya Sreejith, 39 years, presently working as Nursing Officer,

ESIC Hospital, Udyogmandal P.O, Ernakulam 683 501 D/o. Shri.
Manoharan Pillai, Mukkathu House, Chittar P.O,
Pathanamthitta District – 689 663

11. Jayamol George, aged 51 years, presently working as
Nursing Officer, ESIC Hospital, Udyogmandal P.O,
Ernakulam 683 501 W/o. Shri. Shibu Sebastian,
Chennumkara House, Varapuzha P.O., Ernakulam – 683 517
12. Emilia Kathkleen Jesya, aged 39 years, presently working as
Nursing Officer, ESIC Hospital, Udyogmandal P.O, Ernakulam 683 501
W/o. Xavier K.P., & R/o. Dew Dala, Kadiparambil,
ERA-91, Manjummel, Eloor – 683 501
13. Ruba Meera George, aged 40 years, presently working as
Nursing Officer, ESIC Hospital, Udyogmandal P.O, Ernakulam – 683 501
& W/o. Shri Jans Thomas, 8A, Panakkappril House, Prathibha Nagar,
Paxackapprill House, Prathibha Nagar, Muppethadmam RO, Aluva,
Ernakulam Dist- 683 110
14. Jose John, aged 42 years, S/o. John. K, presently working as
Nursing Officer, ESIC Hospital, Ezhukone, Kollam Dt.- 691 505 and R/o.
Cheruvilla House, Veedu, Meengannur P.O, Kollam 691 537
15. Sreeja R Nair, aged 43 years, W/o. Shri. Prasanthk. A,
presently working as Nursing Officer, ESIC Hospital, Ezhukone,
Kollam Districtt.- 691 505 and R/o. Ayamkudiyil House,
Puliyannoor. P.O, Kottayam 686 573
16. Sandhya Ajesh, aged 42 years, W/o. Shri. Ajesh Mohan,
presently working as Nursing Officer, ESIC Hospital, Ezhukone,
Kollam District.- 691 505 and R/o. Madappallil House,
Vanchimala. P.O, Kanjirappally, Kottayam District-686 508
17. Indu I.P, aged 42 years, W/o.Shri. Renjith Kumar., presently working
as Nursing Officer, ESIC Hospital, Ezhukone, Kollam District.- 691 505
and R/o. R.13, "Rithu Sabari" Kakkolic, Kundera P.O, Kollam- 691 501

18. Lijo Leen, aged 41 years, S/o. Sri. Leen, presently working as Nursing Officer, ESIC Hospital, Ezhukone, Kollam District.- 691505 and R/o. Lija Nivas, Kannalloor P.O, Kollam 691 576 - **Applicants**

[By Advocates : Mr. K.P.S. Suresh]

V e r s u s

1. Union of India, Represented by its Secretary,
Ministry of Labour and Employment,
Shram Shakti Bhawan, Rafi Marg, New Delhi - 110069
2. The Director General,
Employees' State Insurance Corporation (ESIC), Panchdeep
Bhawan, C.I.G. Marg, New Delhi - Pin. 110002
3. The Regional Director,
Employees' State Insurance Corporation, Regional Office,
Thrissur, Kerala – Pin.680 001
4. The Medical Superintendent, ESIC Hospital,
Udyogmandal, Ernakulam, Pin. 683 501
5. The Medical Superintendent, ESIC Hospital,
Ezhukone P O, Kollam, Pin-691 505 - **Respondents**

[By Advocate: Mr. Adarsh Kumar, for Respondents 2 to 5]

O.A No. 180/552/2025

- 1 Boben Joseph, Aged 38 years,
S/o Joseph Chacko,
Senior Nursing Officer, ESIC Hospital Andheri Mumbai,
Permanent Residence at Vellamatharachira, Venattukadu,
Chathurthiakary P.O, Alappuzha-688 502

2. Akhil Parappuram, Aged 39 years,
S/o M. Kunjappan,
Nursing Officer, ESIC Hospital Noida Delhi NCR
Permanent residence at Parappuram House,
Varanad P.O. Cherthala, Alappuzha-688 539
3. Aji John, Aged 36 years,
S/o A. Johnkutty,
Nursing Officer,
ESIC Medical College, Gulbarga
Permanent residence at Kanjiramninna, Karichal,
Kazhivoor P.O., 695 526
4. Aravind Babu S, Aged 48 years,
S/o N.A. Devarajan,
Senior Nursing Officer,
ESIC Hospital Andheri Mumbai,
Permanent Residence at Surabhi House,
Kacheri Kadavu Vayaskara, Kottayam-686 001
5. Ancy Gijo@ Ancy Varghese, Aged 40 years,
W/o Gijo Uthupp,
Senior Nursing Officer, ESIC Hospital Andheri Mumbai,
Permanent residence at Madathiparambil, Pariyaram,
Meempara P.O., Puthencruz, Ernakulam-682 308
6. Subin S, Aged 38 years,
S/o Sudhakaran S,
Nursing Officer, ESIC Medical College Gulbarga,
Permanent Residence at Melvattor P.O, Varkala,
Thiruvananthapuram-695 312
7. Indu K.V, Aged 37 years,
D/o P.A. Vijayan,
Nursing Officer, ESIC Medical College
Rajaji Nagar, Karnataka,
Permanent residence at Kuttipalackal, Muthalakodam P.O.,

Thodupuzha, Idukki, Kerala -685 605

8. Mintu Mathew, Aged 37 years,
D/o Mathew Philippose,
Nursing Officer, ESIC Medical College
Rajaji Nagar, Karnataka,
Permanent residence at Akkattumundakkal,
Mallikassery P.O, Kottayam-686 577
9. Anusha S, Aged 38 years,
D/o Vijayarajan D,
Nursing Officer, ESIC Medical College
Rajaji Nagar, Karnataka,
Permanent residence at Panaikantazhikam, Edakidom,
Ezhukone, Kollam.
10. Seena G.R, Aged 39 years,
D/o Ramachandran Nadar,
Nursing Officer ESICH Tirunelveli,
Permanent residence at TC 54/3276(1) Kattakkal Gardens,
Attukal Bund Road, Karaman P.O,
Thiruvananthapuram-695 002
11. Nishamole V.K., Aged 40 years,
D/o Konjaru V.K,
Nursing Officer, ESICH Tirunelveli,
Permanent residence at Vadottumalil (House) Kottappady P.O,
Ernakulam-686 695
12. Remya J.R., Aged 38 years,
D/o R. Rajendran,
Nursing Officer, ESIC Medical College,
Rajaji Nagar, Karnataka,
permanent Residence at Chandrika Bhavan,
Karumkulam, Puthiyathura P.O,
Thiruvananthapuram-695 526
13. Reshma Sudha S., Aged 35 years,

D/o K. Sudhakaran,
Nursing Officer, ESIC Medical College,
Rajaji Nagar, Karnataka,
Permanent resident at Edavalathupadi House,
Anappara Kunnamangalam Post, Kozhikode-673 571

14. Soumya V.M, Aged 39 years,
D/o Mohandas V.,
Nursing Officer, ESIC Medical College,
Rajaji Nagar, Karnataka,
Permanent resident at Valath House, Nanminda P.O.,
Kozhikode, Kerala-673 613
15. Bincy Abdulkereem, Aged 38 years,
D/o O.V. Abdulkereem,
Nursing Officer, ESIC Medical College,
Rajaji Nagar, Karnataka,
Permanent resident at Chundattu House, Cheruvattoor P.O.,
Kothamangalam, Ernakulam-686 691
16. Abdul Rasheed P.C., Aged 39 years,
S/o Aboobacker,
Nursing Officer, ESIC Medical College,
Rajaji Nagar, Karnataka,
Permanent resident at Puthussery Chalil House Elettill P.O.,
Koduvally, Kozhikode-673 572

- Applicants

[By Advocates : Mr. K.P. Harish, Ms. Reshma E, Ms. Atheena Antony & Ms. Archana Sudheer]

V e r s u s

1. Union of India,
Ministry of Labour & Employment,
Shram Shakthi Bhavan,
Rafi Marg, New Delhi-110 001,
Represented by its Secretary

2. Employees State Insurance Corporation,
Head Quarters' Office,
Panchdeep Bhawan, C.I.G. Marg,
New Delhi-110 002, Represented by its Director General
3. The Director General,
Employees State Insurance Corporation,
Head Quarters' Office, Panchdeep Bhawan,
C.I.G. Marg, New Delhi-110 002
4. The Medical Commissioner (MA),
Employees State Insurance Corporation,
Head Quarters' Office, Panchdeep Bhawan,
C.I.G. Marg, New Delhi-110 002
5. The Deputy Director,
Employees Insurance Corporation,
Headquarters' Office, Panchadeep Bhawan,
C.I.G. Marg, New Delhi-110 001
6. Assistant Director,
Office of the Director General,
Employees Insurance Corporation,
Headquarters' Office, Panchadeep Bhawan,
C.I.G. Marg, New Delhi-110 001
7. The Regional Director,
Employees State Insurance Corporation,
Regional Office, Thrissur, Panchdeep Bhawan,
North Swaraj Road, Kerala-680 020
8. The Medical Superintendent,
ESIC Hospital,
Udyogamandal, Ernakulam District, PIN 683 501
9. The Medical Superintendent,
ESIC Hospital, Ezhukone, Kollam-691 505

10. The Medical Superintendent,
ESIC Hospital, Asramam, Kollam-691 002 - **Respondents**

[By Advocate: Mr. S.R.K. Prathap, ACGSC for R-1, Mr. Adarsh Kumar for R-2 to R-10]

These Original Applications having been heard on 13.11.2025, 14.11.2025, 02.12.2025, 12.12.2025, 15.12.2025, 16.12.2025 & 18.12.2025 the Tribunal on 10.02.2026 delivered the following:

ORDER

Per: Mr. Braj Mohan Agrawal, Administrative Member

Original Application Nos.14/2023, 92/2023, 43/2025, 46/2025, 70/2025, 252/2025, 495/2025, 497/2025, 500/2025, 501/2025 & 552/2025 were clubbed for hearing, being connected matters. Heard together. OA No.252/2025 is taken as the lead OA.

I. OA No.180/252/2025

The applicants are staff nurses in Employees State Insurance Corporation (ESIC) Hospitals, appointed in the State of Kerala against Annexure-A1 notification. The applicants cite important note-1 in Annexure-A1 as under:

“The vacancies are in various ESIC Hospitals of the ESI Corporation of the State. Those candidates who are willing to accept the posting anywhere specified in the State and are willing to be

transferred in any part of India on promotional posts, as per policy of ESIC, need apply. The candidates so appointed for the above mentioned posts shall be appointed in the State for which application is submitted and are liable to transferred in any Medical Institution/Establishment/SSMC Office in that State and also liable to be transferred in any part of India on promotional posts as per policy of ESI Corporation.”

2. As per Annexure-A2 and Annexure-A3 appointment order of the Applicants

1 & 2, paragraph 11 of the appointment order is reproduced below:-

“He/she will be posted to any of the Hospitals under the ESIC in the State of Kerala for the present. However, he/she is liable to be transferred to any other hospital of the ESI Corporation in the country during his/her service in the ESI Corporation.”

The applicants submit that the above condition read with Note-1 of Annexure-A1 makes it clear that they were liable for transfer within State of Kerala, but later on promotion, they will be liable to be transferred outside the State.

3. Applicants submit that *the Department of Personnel and Training vide its notification dated 01.01.2014 (Annexure-A5) amended the Central Civil Services (Classification, Control and Appeal) Rules 1965. As per this notification, DoPT had directed that Central Civil Services posts in the Pay Band-II of Rs.9300-Rs.34,800/- with Grade Pay of Rs.5400/-, Rs.4800/-, Rs.4600/- and Rs.4200/- shall be classified as Group 'B' posts. Under Sec.17(2a) of the Employees State*

Insurance Act, 1948, it is laid down that the method of recruitment, salary and allowances, discipline and other conditions of service of the members of the staff or the Corporation shall be such as may be specified in the regulations made by the Corporation in accordance with the rules and orders applicable to the officers and employees of the Central Government drawing corresponding scales of pay.

From the above provision contained in Sec.17 of the Act, it is clear that the applicants were appointed as Staff Nurses directly by the ESI Corporation and not by the Union Public Service Commission because it was in Group 'C' category and being in Group 'C' category, it was well within the powers of the Corporation to incorporate the important Note contained in Annexure-A1 notification that the appointment of the applicants will be in the State of Kerala and they will not be liable for transfer outside the State of Kerala until they are promoted. If Annexure-A5 is implemented in letter and spirit, then the post of Staff Nurse being in the Pay Band of Rs.9300-34800/- will have to be redesignated as Group 'B' post. However, such re-designation will not ipso facto make the applicants herein liable for transfer outside the State of Kerala because on re-designation of the post of Staff Nurse as Group 'B' category in accordance with Sec.17(3) of the ESI Act, 1948, the post of Staff Nurse thereafter will have to be filled up through the Union Public Service Commission. The Hon'ble Supreme Court in the decision

reported in AIR 1997 SC 2606 (Kuldip Chand v. State of H.P. And others) has held that the conditions offered at the time of appointment cannot be thereafter revised or tinkered with to the detriment or adversely affecting the employees who have accepted with open eyes the terms and conditions for appointment.

4. Applicants further submit that *in pursuance of the directions issued by CAT, Madras in OA No.310/1195/2017 the Headquarters of the ESIC issued an order dated 12.01.2018 (Annexure-A6). As per Annexure-A6 order, it is stated that the ESIC has approved to implement Annexure-A5 notification and to re-classify Staff Nurse from Group 'C' to Group'B category and it is also proposed to amend the draft recruitment regulations for the post of Staff Nurse and the same was uploaded in the website of ESIC.*

The post of Staff Nurse even after categorization as Group 'B' post has to be treated as a State-wise post and cannot be treated as a post falling under the All India level for the purpose of seniority. Applicants' contention is that they were appointed as Staff Nurse in accordance with the conditions offered in Annexure-A1 notification, wherein it was stated that their transfer would be confined within the State of Kerala and will be liable to be transferred outside Kerala only on promotion basis. The said condition which was incorporated in

accordance with the Recruitment Regulations of Staff Nurse as it existed in 2011 confers the applicants vested right to continue in the State of Kerala upto the category of Assistant Nursing Superintendent. Such a right vested in the applicants cannot be altered to their detriment by treating the post of Staff Nurse on re-designation and re-categorization as a Group'B' post.

5. Applicants plead that *the respondents without considering the objections raised by the applicants and other affected parties and without considering the question that vested right cannot be taken away even by a retrospective amendment and without complying the directions of the Hon'ble court in Annexure-A7 judgement, notified the Revised Recruitment Rules in the Gazette dated 19.10.2020 (Annexure-A8). In implementation of Annexure-A8, the 2nd respondent has directed to prepare an All India seniority list of Group 'B' and Group 'A' officers in the Corporation making the cadres of Nursing Officer, Senior Nursing Officer and Assistant Nursing Superintendent as a unified national cadre which was formerly regional cadre as per order dated 10.12.2020.*

It is submitted by applicants *that implementing Annexure-A8 regulations with retrospective effect treating the three categories of posts namely Nursing Officer, Senior Nursing Officer and Assistant Nursing Superintendent as a national*

cadre would result in invidious discrimination so far as the applicants and other similarly situated persons are concerned. Many persons who are appointed in other regions, though were appointed much later than the applicants and other similarly situated persons have got promotions to the higher categories of Senior Nursing Officers etc. on the basis of their seniority in the concerned region. Thus, it is clear that promotion to the higher category from the category of Nursing Officer was fortuitous based on the availability of promotional avenues in that particular region and on the basis of the seniority in that region.

6. Applicants further submit that *the 4th respondent Medical Commissioner (MA) issued Final Transfer Policy for transfer of Group-A and Group-B Nursing and Paramedical Cadre Employees as per its order dated 24.12.2022, Challenging the Transfer Policy, OA No.14/2023 and connected cases were filed before this Tribunal. This Tribunal admitted the applications and directed the respondents that no steps shall be taken pursuant to the Transfer Policy.*

While OA No.14/2023 was pending, the Director of Vigilance of the ESIC issued a Circular dated 14.02.2024, wherein it has been stated that in supercession of previous circulars on the subject of the sensitive posts identification, the above circular is being issued as per the recommendations of

the Committee constituted for the purpose and also to ensure its compliance strictly while affecting rotational and routine transfers(Annexure A-14).

Applicants further submit that Nursing Officer, Senior Nursing Officer and Assistant Nursing Superintendent are not sensitive posts as per Annexure-A13 dated 01.11.2019. Hence, it is not at all necessary that the applicants are to be transferred from one State to another.

The respondent ESI Corporation has thereafter issued a Transfer Policy dated 17.12.2024 (Annexure-A15). In Annexure-A15 Transfer Policy, it has been stated that the transfer policy is issued superseding the transfer policy issued on 24.12.2022.

7. Applicants contend that as Annexure-A8 regulations has come into effect only from the date of notification on 19.10.2020. Therefore, the Recruitment Regulations could be made applicable only prospectively to the employees who have been recruited and appointed on the basis of Recruitment Regulations 2020. Since it has been stated that it has no retrospective effect, the Recruitment Regulations of 2020 cannot be made applicable to the employees like applicants who have been appointed as early as in the year 2012.

On the basis of Annexure-A15 Transfer Policy, the respondent Corporation

has issued Circular dated 24.01.2025 calling upon the Nursing Officers including applicants to submit their request through online portal for transfer (Annexure-A16). The Deputy Director attached to the office of the 3rd respondent Director General issued a Circular dated 14.04.2025 calling upon the Nursing cadre employees to exercise their one time option for transfer and has also been advised to submit their order of preference for transfer or posting (Annexure-A17). Closely following Annexure-A17 Circular dated 14.04.2025, the Assistant Director attached to the office of the 3rd respondent has issued another Circular dated 25.04.2025 requesting all the Nursing Cadre employees to submit their order of preference on or before 30.04.2025 through online portal (Annexure-A18).

8. *The applicants submit that they have a definite case that the Transfer Policy and the Recruitment Rules of the year 2020 can be made applicable only to the employees who have joined in service after 2020. The applicants who have already joined in service in the year 2012 are bound by the Rules at the time of their entry in service and they are not bound by the transfer policy which are subsequently notified and that can be made applicable only to the persons who have been recruited and appointed after the Recruitment Regulations of 2020.*

hence, Annexures -A17 and A18 Circulars are absolutely illegal and are liable to be set aside.

9. Aggrieved, the applicants have approached this Tribunal by filing the Original Application and sought the following reliefs:-

(i) To call for the records leading to Annexure A15 Transfer Policy, Annexure-A17 Circular dated 14.04.2025 and Annexure A-18 Circular dated 25.04.2025 and set aside the same

(ii) To issue a direction to the respondent Corporation not to issue any orders of transfer of nursing cadre employees in the ESI Corporation on the basis of AnnexureA15 Transfer Policy, Annexure-A17 Circular dated 14.04.2025 and Annexure-A18 Circular dated 25.04.2025 to the State of Kerala from other regions of the country

10. Respondents 2,3 and 4 in their reply statement submit that *the primary challenge in the OA is against Annexure-A15 transfer policy, Annexure-A17 and Annexure-A18 circulars, hence it becomes clear that there is no specific cause of action for the OA to be maintained.* Respondents plead that *it is relevant to note that directions for interdicting future transfers based on the said documents are also sought for which therefore makes it luculent that the instant OA is filed in anticipatory fashion when no cause of action has accrued.*

11. *Respondents further submit that Annexure-A15 transfer policy and the consequent circulars are framed by the competent among the ESIC authorities within the realm of their administrative competence and expertise. The respondents submit that no legal right of the applicants is violated by the framing of the impugned transfer policy and no legal right accrues to the applicants on account of the framing and /or implementation of the Transfer Policy and in that view of the matter, sans proper allegations of violation of any mandatory provisions of law, mala fide or violation of statutory provisions, the omnibus challenge to the impugned transfer policy is clearly misconceived and the OA ought to be dismissed on this short ground.*

12. *Respondents plead that as per the settled legal position reiterated in a catena of decisions of judgments, especially in (2009) 15 SCC 178, unless a transfer is hit by malafides or arbitrariness the same is not to be interfered with. The applicants in the OA have no case to the said effect. In fact the instant OA is filed anticipating transfers that might or might not take place with respect to the applicants and therefore no cause of action has accrued in the instant matter. The respondents submit that the applicants in the OA do not set forth a specific case that the transfer policy is either mala fide or in violation of statutory*

provisions. In that view of the matter, it is not competent for this Tribunal to judicially review the said transfer policy in the light of a catena of judgments of the Hon'ble Supreme Court and the High Court.

Respondents argue that the specific contention taken in ground D by the applicants to the effect that the applicants who are on entry cadre posts if transferred to another State then there would arise communication gap issues are absolutely baseless, illogical and at the most merely an anticipated fear which lacks any legal bearing.

13. In the additional reply, respondents submit that *ESI Corporation issued new transfer policy dated 17.12.2024 with following objectives/principles:-*

- (i) To provide accessible and best medical care to the Insured Persons (IP's) and their dependents*
- (ii) Maintain equitable distribution of Nursing Cadre employees across institutions to ensure optimal functioning*
- (iii) To provide a satisfying career progression and varied exposure to the officers, it is desirable that officers are suitably rotated among various assignments and locations, wherever applicable. Accordingly, all Group A and Group B Nursing Cadre employees can be transferred anywhere within the country*
- (iv) Organizational interest shall be given highest consideration during the transfer and posting exercise. Transfer to a particular unit cannot be claimed as a matter of right.*

14. Respondents submit that *as per the notification dated 01.01.2014 the DoPT has directed that Central Civil Post in the Pay Band-2 of Rs.9300-34800 with Grade Pay of Rs.5,400/-, Rs.4800/-, Rs.4600/- and Rs.4200/- shall be classified as Group-B post. After the issuance of notification, the Government of India DoPT issued office memorandum dated 08.12.2017 regarding classification of civil post into Group A, B and C under CCS(CCA) Rules 1966. Likewise central civil posts carrying the pay in the pay band in the Pay Matrix at the level from 6 to 9 is classified as Group B. It is submitted by the respondents that after the enhancement of pay in the Nursing cadre, the post of Senior Nursing Officers carries higher pay in pay level 8. Accordingly, the above post was re-classified as Group B. ESIC has been rightly adopting the policy of the Government of India in this matter of classification.*

15. Respondents contend that *the applicants' argument that Annexure-A1 notification and in particular the Marginal Note, places a restriction on transferability of Staff Nurses is grossly misconceived and incorrect. The said argument is further belied and contradicted by the express condition in their offer of appointment Annexure A-2 and Annexure-A3, that conspicuously speak of*

transfer to any Hospital of ESI Corporation, sans any restriction whatsoever. It is submitted that the Marginal Note/advertisement is only a rider on who needs to apply and not an interpretational note/guide to reckon the question of transferability for Staff Nurses. In any event when Annexure-A2 and A-3 expressly mentioned that “he/she is liable to be transferred to any other hospital of the ESI Corporation in the country”, it is evident that the applicants have hence expressly acquiesced to all India transferability and have waived any objection to the same. It is submitted by respondents that the issuance of a policy is a prerogative of the ESIC, which administrative prerogative of the ESIC cannot be restricted or stifled on the mere surmise that previous litigations exist in respect of previous transfer policies.

It is submitted by respondents that All India Service liability constitutes service condition of Nursing Officers under the ESI Corporation. Consequently, the Corporation is vested with full authority to transfer nursing personnel to any part of India in public interest and functional necessity. All matters relating to transfer, posting and service conditions are regulated in accordance with extant Office memoranda of the Department of Personnel and Training (DoPT) as well as circulars issued by ESIC, including those governing seniority. The arguments of the applicants proceed on the fallacious premise that transferability was created

by re-designation, which is not the case as the original appointment order itself clearly provided that all India transferability would remain a fundamental condition of service. The transfer policy issued by the ESIC does not deal with seniority or promotion and does not concern itself with the said issues and therefore the assertions in the OA, regarding seniority and promotion are denied as extraneous to the subject matter OA.

16. Respondents plead that *in the light of the above mentioned factual matrix, grounds taken and legal reasoning, that every relief as well as the interim relief sought for by the applicants in the above OA respectively are untenable, arbitrary, baseless, unreasonable and bad in law and hence denied in toto.*

17. Respondent Nos.6 to 13, who were impleaded, are Nursing Officers of ESIC who have been transferred under one time option circular issued by ESIC on 14.07.2025 {Annexure-R6(a)} in compliance with Annexure-A17 and Annexure-A18 circulars. Respondent Nos.6 to 13 *are working as Nursing Officers and Senior Nursing Officers in various ESIC hospitals in different States in the country. Party respondents submit that all of them are natives of Kerala and are eagerly waiting for a regional transfer to Kerala and an opportunity to serve their*

organisation in their native place. It is submitted by them that the Nursing Cadre employees in ESIC were previously categorized under 'Group-C'. But as per the 6th CPC for Central Government Employees, as per the report in 2008, placed entry level Grade Pay of Nursing Officers in Rs.4600/-, the post was to be reclassified as 'Group-B'. Employees State Insurance Corporation under Ministry of Labour and Employment, Government of India, through a gazette notification dated 05.12.2020, have revised the Recruitment Regulations for Nursing Cadre employees and reclassified and redesignated the posts to Nursing Officers (erstwhile Staff Nurses), Senior Nursing Officers (erstwhile Nursing Sisters) in 'Group-B' cadre and Assistant Nursing Superintendent in 'Group A' cadre. Since then the cadre of Nursing Officers and Senior Nursing Officers are 'Group-B' officers having all India seniority and All India transfer liability.

Party Respondents further submit that it is the fact that in compliance with Annexure-A15 Transfer Policy, ESIC headquarters issued its first Annual General transfer order dated 29.03.2025 and all employees included in the transfer list have already been transferred and joined; hence the Annexure-A15 policy has been implemented. The transfer order is also implemented and no challenge is existing against that transfer order. Based on multiple representation and

deliberation with ESIC authority, ESIC Headquarters have introduced a One Time Transfer Option to the affected officer purely on request basis as per Annexure-A17 and Annexure-A18 circulars. ESIC Headquarters, in the Annexure-A17 and A18 circulars for One time Transfer Option itself, it is cleared that those who require the transfer only to fill the application and it will be purely based on request basis. Even after understanding that the applicants are not going to be disturbed by the present transfer process by anyway, the intention of filing OA 252/2025 challenging the Annexure-A17 and A-18 circulars seems to be purely unethical and unprofessional. The intention of the applicants seems that they will not let some of the similarly posted officers to get transferred into the institution/region at their own native place, which is an act against equality and natural justice.

18. Party respondents plead that *it is a fact that ESIC has not yet released All India Seniority list after the new Recruitment Rules and cadre re-classification, but as far as the transfer process is concerned as per Annexure-A15, the new transfer policy dated 17.12.2024, station seniority in terms of date of joining in a unit is the only consideration for taking a compulsory tenure transfer. In a similar case before this Tribunal, Bangalore bench, in OA No.170/654/2023, in a reply*

statement filed by ESIC, to a new MA No.75/2025 filed by applicant, it clearly states that,

"All India seniority could not be finalized due to court stay on regional seniorities in a few regions and the all India seniority will be prepared once the regional seniorities are updated up to the date of publication of the revised recruitment regulations. Transfer of Nursing officers will not unsettle their seniority as it is an all India cadre and has an all India service liability with an all India seniority."

It is further submitted by party respondents that on 14.07.2025, ESIC Headquarter issued a transfer order for 839 officers including Nursing Officers and Senior Nursing Officers under 'One Time Option'. It was long pending demand and justice to the officers working in various ESIC Hospitals across India for a long period of about 20 years. It may be noted that none of the officials have relocated/transferred without their will and no officers are transferred out of Kerala including the applicants in OA 252/2025.

19. The applicants in their rejoinder submitted that *the definite and consistent case of the applicants in the original application was that unless a seniority list of the employees of the ESI are prepared and maintained on national basis, no transfers can be ordered from one region to another region, since a situation will arise that a junior member who in fortuitous circumstances if promoted to higher*

cadres in one region and if is transferred on the basis of Annexure-A15 Transfer Policy to another region where all who entered service in ESIC before the said junior entered in service continuing in the original category, the junior member will come and join in the promoted cadre to which he was promoted and his admitted seniors who are working in the transferred place in the original cadre will stand as juniors. The applicants further submit that the Inter Region Transfer Policy which existed during the year 2013 in ESI Corporation (Annexure-A19), clause 5 of Annexure-A19 Transfer Policy provides as under:-

“5. Criteria for fixation of seniority of IRT cases will be as follows:-

(i) The seniority of the transferee will be fixed below all the employees appointed during the year in the recipient region.”

20. The party respondents 6 to 13 filed reply statement and submitted that while Annexure-A1 was only a general notification calling for employment, Annexure-A2 and A3 offers of appointment clearly lay down the conditions of appointment. Clause 11 of Annexure-A2 and Clause 9 of Annexure-A3 specifically provides that ;

“He/she will be posted to any of the hospitals under the ESIC in the State of Kerala for the present. However, he/she is liable to be transferred to any other hospital of the ESI Corporation in the country during his/her service in the ESI Corporation.”

It was, therefore, abundantly clear from the very inception of appointment that

the appointees were liable to be transferred anywhere in India and not restricted to transfers outside the State only on promotional grounds. Accordingly, the statement of the applicants in paragraph 2 of the OA, namely that they could be transferred outside Kerala only on promotion, is wholly incorrect, baseless and imaginary. Moreover, the recruitment notifications of Respondents 6,7 and 8 stipulate that transfers of candidates shall be on a promotional basis (Annexure-R(g) and R(h)). It is pertinent to note that all these respondents have been promoted, making them legally liable for transfer anywhere in India. The one time option they availed allowed them the opportunity to serve in their native region. Therefore, the respondents submit that maintaining the status quo regarding the Annexure-A15 Transfer Policy would adversely affect them in the instant original application.

21. The party respondents further submit that *the relevant pages of the recruitment notification and the respective appointment orders clearly demonstrate that the All India transfer liability was an accepted and integral condition of service from the very inception of their appointment. After years of service and persistent efforts, the present respondents were finally granted the long awaited opportunity to return to their native places*

in accordance with the One Time Transfer Option. Therefore, it is of grave concern that these respondents who have acted strictly within the framework of the Corporation's policy and the terms of their appointment, are now being unjustly restrained from availing a legitimate right conferred upon respondent Nos.6 to 13. The applicants on the other hand, have deliberately and explicitly signed their own appointment orders accepting the same All India transfer requirement and they are currently making an effort to back out of their contractual responsibilities.

Furthermore, the appointment orders marked as Annexure-A2 and A-3 categorically stipulate that the applicants shall be governed by the ESIC (Staff and Conditions of Service) Regulations 1959, along with any amendments made thereto from time to time. The 1959 Regulation clearly states under Rule 9 that all the employees of ESIC shall be under the control and superintendence of the Director General. The specific provision read as under:

“9. Control and Discipline- All employees of the Corporation shall be subject to the superintendence and control of the Director General and shall be governed by such rules of conduct, discipline and control as hereinafter provided or as the Director General may from time to time, by general or

special order, specify.”

This provision clearly establishes that the Director General of ESIC is vested with the authority to issue, modify and implement policies, including transfer policies, in the interest of administrative efficiency and organizational requirements. Accordingly, the issuance of the ESIC Transfer Policy, 2024 falls well within the powers conferred upon the Director General under the said Regulations.

22. *The party respondents contend that the impugned challenge, based on speculative fears and presumptions such as communication gaps or tenure restrictions, lacks any legal foundation. No legal right of the applicants stands violated by the formulations or implementation of the Transfer Policy and the allegations of illegality are baseless and rhetorical. The OA, therefore being anticipatory in nature and suffering from suppressio veri and suggestio falsi deserves to be dismissed in limine.*

23. *The party respondents 6 to 13 have filed additional reply statement and*

submitted that *it is a well- established principle of law that transfer matters are not amenable to judicial review unless vitiated by mala fides, violation of fundamental rights or public policy. A transfer policy, by itself, cannot be interfered with unless there exists a well-defined and legally sustainable grounds. There are no such warranting circumstances that were projected by the applicant to interfere in Annexure-A15, Annexure-A17 and Annexure-A18 by this Tribunal. The Hon'ble High Court of Kerala has reiterated this position in **Preethi G.V. Vs Anidarsa K.** { 2024 (4) KHC 377}. Paragraph 3 of the said judgement clearly states :-*

“.....merely for the reason that certain categories of teachers have not been accommodated, policy cannot be said to be arbitrary or discriminatory. The left out group may have genuine grievances; that does not mean policy is arbitrary and discriminatory. There is no fundamental right to claim for transfer to the place of their choice. Transfer policy can be only questioned on well-defined paramters while applying its norms in a homogeneous group.”

*The Hon'ble Apex Court in **Directorate of Film Festivals and others v. Gaurav Ashwain Jain and Others** {2007(2) KHC 434} held that courts or as a matter Tribunals cannot act as the appellate authority to see the correctness, suitability or appropriateness of policies issued by a statutory body unless the same is vitiated by malice or is against the fundamental rights of its citizens or against public policy.*

24. The party respondents further submit that Bangalore Bench of this Tribunal considered the arguments of the applicants therein in so far as Transfer Policy dated 17.12.2024 in OA No.654/2023 and after being heard has dismissed on 18.11.2025 (Annexure-R6(n)). The relevant paragraphs have been reproduced:-

“8. We are not inclined to adjudicate on the challenge made to the Transfer Policy dated 17.12.2024 (Annexure-A42) issued by the 3rd respondent, mainly for the reason that no transfer orders issued to the applicants are challenged herein. Transfer order affecting the rights of the applicants being *sine quo non*, in the absence of challenge to the transfer order, there is no cause of action for the applicants to challenge the Transfer Policy. Transfer Policy cannot be challenged in vacuum. Transfer Policy being a guideline, no direct infringement on a specific individual's legal right could be inferred unless it is translated into action with a specific transfer order. Hence, the OA is premature and is not maintainable.

11. Hence, by way of collective action, no blanket order could be claimed. There being no scope for us to analyse the legality of the impugned Transfer Policy sans any cause of action shown by the applicants, this application deserves to be dismissed. Moreover, the impugned Transfer Policy relates to transfer/posting of Group 'A' and 'B' Nursing and Para Medical cadre employees having All India Service transfer liability in ESIC. The said policy is not challenged in its entirety. The challenge is based on lack of competency/approval of the competent authority, but is confined to prescribing the All India transfer of Group 'B' officers who have completed the tenure of 9 years. Acceptance of the transfer policy with respect to the other guidelines, if assumed to be valid notwithstanding such

incompetency, the same cannot be construed as invalid only with respect to one aspect, merely on the ground of inconvenience caused to some of the employees.”

II. CP No.180/33/2025 in OA No.252/2025

The petitioners are the applicants in OA No.252/2025. The Contempt of Court Case has been filed for the wilful disobedience of the directions contained in the order issued by this Tribunal dated 25.06.2025 in OA No.252/2025 whereby this Tribunal directed the respondents to maintain status quo in relation to Annexure-A15 Transfer Policy. However, the respondents in violation of the interim order has issued order dated 25.04.2025 transferring large number of Nursing Officers and other employees

III OA No.180/14/2023

The applicants were appointed as Staff Nurse as per Annexure-2 to Annexure-5 orders, while the said post was State-wise post. The applicants submit that as per the provisions contained in Sec.17 of the ESI Act, the posts of Staff Nurse were filled up directly by the Corporation and not through the UPSC notwithstanding the fact that as per Annexure-A6, the Staff Nurse post was

included in Group 'B' category posts. As per Annexure-A10 judgement, the Hon'ble High Court of Kerala directed the 3rd respondent to consider the representations filed by the applicants before finalization of the revised Recruitment Rules. However, without considering the representations filed by the applicants and also in violation of Annexure-A10 judgement of the Hon'ble High Court of Kerala, the respondents issued Annexure-A11 revised Recruitment Rules.

2. The applicants further submit that *if a seniority list as directed by the 2nd respondent is prepared by the 3rd respondent, treating the cadre of Nursing Officer as national cadre instead of regional cadre and unless the persons who were promoted from the category of Senior Nursing Officers are also reverted and treated as Nursing Officer, invidious discrimination will be meted out to the applicants. The 4th respondent Medical Commissioner (MA) has issued Final Transfer Policy for transfer of Group-A and Group-B Nursing and paramedical cadre employees as per Annexure-A20 Transfer Policy dated 24.12.2022. Annexure-A20 Transfer Policy is absolutely illegal, improper, arbitrary, unfair, unreasonable, discriminatory and is liable to be set aside.*

3. The applicants submit that *the post of Nursing Officer cannot be treated as*

a sensitive post. There is no logic in including the Nursing Officer as sensitive post. Hence, Annexure A29A has been issued with a mala fide intention to harass the Nursing Officers like the applicants and hence Annexure A29A to the extent it included Nursing Officer as a sensitive post is absolutely illegal and is liable to be set aside. Based on Annexure-A30 new Transfer Policy, the respondent Corporation has issued Annexure-A31 Circular dated 24.01.2025 calling upon the Nursing Officers to submit their request through online between 24.01.2025 to 30.01.2025. When Annexure-A20 transfer policy itself is under challenge before this Tribunal, in supersession thereof, Annexure A-30 transfer policy has been issued and thereafter Annexure-A31 has been issued calling upon the persons like applicants to submit their request through online.

4. Aggrieved, the applicants have approached this Tribunal and sought the following reliefs:

- (i) To call for the records leading to Annexure A20 transfer policy and set aside the same to the extent it applies to the applicants
- (ii) To call for the records leading to Annexure-A29A, A30 Transfer Policy and A31 Circular dated 24.01.2025 and set aside the same
- (iii) To issue a direction to the respondents 2 to 4 not to implement Annexure-A20 transfer policy to the applicants

(iv) To issue a direction to the respondent Corporation not to transfer the applicants on the basis of Annexure-A30 Transfer Policy.

(v) To declare that the applicants are liable to be transferred within the State of Kerala alone in accordance with Annexure-A1 notification and their appointment orders

(vi) To declare that Annexure-A20 transfer policy is illegal and void

5. Respondents 2 to 5 through their reply statement submit that *it is pertinent to notice at first that the applicants are admittedly liable to be transferred to any other hospital of the ESI Corporation as evident from the Annexure-A2 to A-5 and of similar appointment orders which govern their conditions of service.* Paragraph 11 of Annexure-A5 order is reproduced below:-

“11. He/She will be posted to any of the hospitals under the ESIC in the State of Kerala for the present. However, he/she is liable to be transferred to any other hospital of the ESI Corporation in the country during his/her service in the ESI Corporation.”

On the basis of the above condition incorporated in the appointment orders read in the light of the note incorporated in Annexure-A1 would make it clear that the applicants were liable to be transferred within the State of Kerala, but later on promotion, they will be liable to be transferred outside the State is absolutely wrong, misleading and unsustainable, hence the same is emphatically

denied. It is submitted by respondents that in tune with Annexure-A1 Note mentioned above it is stated therein that he/she will be posted to any of the hospitals under the ESIC in the State of Kerala for the present. However, it is further clearly stated therein that he/she is liable to be transferred to any other hospital of the ESI Corporation in the country during his or her service in the ESI Corporation.

6. *As per Annexure-A6 notification the DoPT has directed the Central Civil Post in pay band-2 of Rs.9300-34,800/- with Grade Pay of Rs.5400/-, Rs.4800/-, Rs.4600/- and Rs.4200/- shall be classified as Group-B post. As stated by the applicants Sec.17(2)(a) of the Employees State Insurance Act, 1948 stipulated that the method of recruitment, salary and allowances, discipline and other condition of services of the members of the staff of the Corporation shall be such as may be specified in the regulations made by the Corporation in accordance with the rules and orders applicable to the officers and employees of the Central Government drawing corresponding scales of pay etc. It is submitted by respondents that after the enhancement of pay in the Nursing cadre, the post of Nursing Officers carries higher pay in the pay level 7 (i.e. Rs.44,900- 1,42,400). Accordingly, the above post was reclassified as Group 'B'. It is submitted that*

ESIC has been rightly adopting the policy of the Government of India in this matter of classification.

7. In exercise of the powers conferred by sub-section(1) of Sec.97 read with clause (xxi) of sub-section(2) and sub-section(2-A) of that Section and sub-section (2) of Sec.17 of the Employees State Insurance Act 1948, the Employees State Insurance Corporation has, with the approval of the Central Government, made ESIC (Staff & Conditions of Service) Regulations 1959. As per Schedule 5 of these Regulations, the Director General, ESIC is the appointing and disciplinary authority for all Group A and B posts in ESIC. Accordingly, employees of Group A and B level are liable for transfer to anywhere in India. As the post of Nursing Officer carries the pay in the pay level 7, the post was reclassified as a Group B post in the Annexure-A11 revised Recruitment Regulations of 2020.

8. In the above circumstances a draft policy for regulating the transfer and posting of such Group A and B level nursing and paramedical officers involving all India service liability was issued vide Annexure-A18 OM dated 21.04.2022. After duly considering those suggestions/comments received, the Annexure-A20 policy was issued by the ESI Corporation vide letter dated 24.12.2022, addressed to the

all concerned for achieving the objectives of the ESIC as stated therein. Hence it is submitted that the Annexure-A20 transfer policy which is in accordance with the provision of the ESI Act and ESIC (Staff & Conditions of Service) Regulations 1959 is legally valid and sustainable in law. The transfer/posting policy has been issued with approval of the Hon'ble Minister for Labour and Employment/ Chairman of the ESI Corporation and came into force with immediate effect.

9. *The Staff Nurses originally belonged to Group C as per classification. Prior to the re-classification of certain nursing and para-medical posts from Group C to Group-A and Group B, transfer/postings of employees in these cadres were governed by the regional transfer/posting issued vide Headquarters Office letter No.A-33/12/2/2011-Med.VI dated 27.02.2013. Consequent upon their re-classification to Group A and Group B which involved All India transfer liability and also in compliance of Ministry of Labour and Employment, Government of India instructions issued vide OM No.Z-11025/01/2022-Admn.I dated 04.02.2022, transfer/posting in respect of these reclassified cadres have been revised to achieve the aforesaid objectives.*

10. *The contention raised by the applicants in para 4 that the Hon'ble*

Supreme Court in the decision reported in AIR 1997 SC 2606 has held that condition offered at the time of appointment cannot be thereafter revised or tinkered with to the detriment or adversely affecting the employees who have accepted with the open eyes the terms of condition on appointments is not disputed. In this context it is submitted that aforesaid condition stipulated in para 11 of the orders appointing the applicants as Staff Nurse as evident from the Annexure A2 to A5 have been accepted by the applicants. Hence the above terms of transfer provided in their appointment orders that they are liable to be transferred to any other hospitals of the ESI Corporation in the country during his or her service in the ESI Corporation is valid and legally sustainable.

11. It is settled law that the transfer is an incidence of service and it is not liable to be interfered by the Court unless it is shown to be clearly arbitrary or visited by mala fide or infraction of any prescribed norms of principles governing the transfer. Who should be transferred and posted where is matter for the administrative authority to decide. The respondents have cited the following judgements of the apex Court in this context- (2001) 8 SCC 574, (2004) 4 SCC 245 & (2009) 15 SCC 178.

12. Respondents contend that *with respect to their contention that many persons who are appointed in other regions though they were appointed much later than the applicants and other similarly situated persons have secured promotions to the higher categories Senior Nursing Officer etc on the basis of the seniority in the concerned region is misleading. There are certain States where there are more avenues for promotion. It is also submitted that it is an incidence of service. On that basis it cannot be contended that the vested right of the applicants are prejudicially affected. Earlier promotion in the nursing cadre (being Regional Cadre) has been done on the basis of existing RRs, prevailing at the time. Now as per new RRs employees will have equal opportunities and this type of situation will not arise in the future where employees of some regions are getting faster promotion and some at slow pace.*

13. Respondents plead that *the present transfer policy (Annexure A20) has nothing to do with the seniority in cadre as it contemplates tenure completion transfer. Para 4.2 of the Annexure A20 states that Annual General Transfers shall consist of three categories namely Tenure completion transfer, Request transfer, compassionate ground transfers. It is submitted that above circular (Annexure-A20) was issued by the ESIC as per CVC guideline to identify sensitive posts in all*

the Government organization so that official can be rotated on periodical basis.

The aforesaid sensitive post were identified are those prone to corruption and malpractices in ESIC. Therefore, non-inclusion for the nursing post in list of sensitive post is not a valid ground for challenging Annexure-A20 transfer policy.

14. Through their rejoinder the applicants have reiterated that the applicants who were appointed under the Recruitment Regulations of 2010 have thus acquired a vested right to continue in the State where they were appointed. On the basis of the issuance of Revised Recruitment Regulations in the year 2020, the vested right thus acquired by the applicants cannot be, taken away. Besides, Annexure A11 Regulations would allegedly specify that it only operates prospectively. Therefore, it is clear that Annexure A11 Regulations would be applicable only to those persons who have joined duty in ESIC after coming into force of Annexure A11 Regulations.

15. *The Recruitment Regulations of the year 2010 specifically provides that the appointments of Staff Nurse would be on regional basis and their recruitment is also on the basis of regional cadre and they are liable to be transferred only within the State. In the light of the above conditions in the Recruitment*

Regulations of the year 2010, the Respondents 2 and 3 cannot incorporate a clause stating that a Staff Nurse who is appointed in the year 2011 is bound to transfer in any of the ESI Hospitals in the Country.

16. The applicants have submitted appointment orders Annexures A-26 to A-28 wherein it is stated that the applicant would be posted within the State of Andhra Pradesh, Karnataka and Haryana respectively. *It is not correct to state that the conditions laid down in the appointment orders are binding on the applicants since it has already been substantiated that the said condition is against the then rules. The dictum of the Apex Court in 2022(2) SCC 301 is not applicable to the facts of this case.*

17. The applicants further submit that *it is not possible to prepare an All India Seniority List of the Staff Nurse and Senior Staff Nurse etc. because in some states those who have entered in service as a Staff Nurse, due to fortuitous circumstances, got promotions as Senior Staff Nurse and also as Assistant Nursing Superintendent. Therefore, if an All India Seniority List is to be prepared, then those persons who have already promoted to the higher categories in various States have to be reverted back to their original cadre and Seniority List*

has to be prepared on All India basis on the basis of entry in service of the employees in the ESIC.

18. The Respondents 2 to 5 filed additional reply statement and submit that *mere pendency of cases pertaining to transfer of nursing officers to various Tribunals across the country as well as the mere existing challenges against the prior transfer policy i.e. Annexure-A20 will not preclude the ESIC authorities from issuing Annexure-A30 new Transfer Policy and thereby carrying out further consequential proceedings. It is further relevant to note that inclusion of the above said post as sensitive post is an administrative prerogative as the same was carried out to suit the medical needs and exigencies which are faced. It is submitted that All India Service Liability constitutes service condition of Nursing Officers under the ESI Corporation. Consequently, the Corporation is vested with full authority to transfer nursing personnel to any part of India in public interest and functional necessity.*

IV. OA No.180/92/2023

The applicants are working Senior Nursing Officers in various Employee State Insurance Corporation hospitals. The applicants were appointed by 2nd

respondent Employees State Insurance Corporation against notification advertised in 2008 and appointed vide memorandum dated 28.01.2009 issued to the 6th applicant (Annexure-A2) and other applicants were also served with similar orders. Subsequently, they were promoted to Nursing Sisters in Level 8 of the CCS (Revised Pay) Rules 2016 on 9.10.2020 (Annexure-A3)

2. The applicants submit that ESIC issued revised Recruitment Regulations 2020 in supersession of the Employees State Insurance Corporation (Nursing cadres/posts) Recruitment Regulations, 2010. Following which, the nomenclature and classification for the post of Nursing cadre has been revised vide Annexure-A5. It is stated that as per ESIC norms, Group B and Group A posts carry all India seniority in respect of nursing cadre officers (Annexure-A6 dated 16.12.2021).

3. *The applicants also submit that there is no final seniority of Nursing Officers and Senior Nursing Officers after 2008. It is due to the numerous litigations pending in various judicial fora regarding their inter-se seniority in the Staff Nurse cadre. As a result, employees who joined as Staff Nurses in other regions much later than the applicants were promoted much sooner and when all*

India Seniority Lists are published, they will be senior to the applicants.

4. *Simply referring them as 'Group B' non-ministerial does not change their status. Hence, when the draft transfer policy was issued, the 1st applicant submitted objections (Annexure-A7). The difficulties that the employees could face when all India transfers are implemented are highlighted in Annexure-A7. All these applicants were promoted much later than their counterparts in other States and if they were transferred and posted to those regions, they would be forced to work under their juniors, which would be an embarrassing situation. However, the 2nd respondent Corporation is now inviting options from the employees for effecting the all India transfer vide circular dated 31.01.2023 (Annexure-A8). The applicants submit that no all India Seniority List has yet been published. Transfers on all India basis are only possible based on the all India Seniority List.*

5. The applicants are aggrieved by the Annexure A1 Transfer Policy issued by the 2nd respondent, which confer them an all India transfer liability in the place of of an *intra* region transfer liability. The applicants are also aggrieved by Annexure A-8 circular issued by the 2nd respondent Corporation inviting options

from the employees for effecting the all-India transfer.

6. Aggrieved the applicants have filed this Original Application and sought the following reliefs:-

(i) Call for records leading to the issue of Annexure-A1 and A8 and quash the same to the extent it applies to Group 'B' Non-ministerial Senior Nursing Officer cadre declaring it as illegal and unconstitutional.

(ii) Declare that Group 'B' Non-ministerial Senior Nursing Officers have no All India transfer liability.

7. Respondents 2 to 4 filed reply statement and submit that *condition no.12 in the Annexure-A2 memorandum offering appointment, clearly stated :*

"He/she is liable to be transferred to any other hospitals of the ESI Corporation anywhere in India during his/her service in the ESI Corporation".

Hence, it can be seen that the applicants are liable to be transferred to anywhere in India even when they were initially appointed as Staff Nurses itself in the year 2009. Hence, in view of the above admission itself, the above OA filed for declaration that the applicants have no All India transfer liability is liable to be dismissed and the applicants are not entitled to get the aforesaid reliefs prayed for in this OA.

8. *Contention of the applicants that though classification of Senior Nursing Officer has been changed from Group 'C' to Group 'B' Non-Ministerial, there has been no change in pay is absolutely misleading and unsustainable. It is submitted by respondents that as stated earlier the post of Pay Level 6 to 9 were classified as Group 'B' level post in view of the substantial enhancement made in the salary of the Staff Nurse. It is submitted that the post of Staff Nurse/Nursing Officer is situated in Pay Level 7 and the post of Senior Nursing Officer is in the Pay Level 8 in view of the further increase in their pay. Hence, the above posts were re-classified as Group 'B'.*

It can be seen from Annexure-A4 that the above Recruitment Regulations 2020 have been issued by the ESIC in exercise of powers conferred by sub-section(a) of Sec.97, read with clause(xxi) of sub-section(2) and sub-section(2A) of the said section and sub-section(2) of Sec.17 of the Employees' State Insurance Act, 1948 (34 of 1948) with the approval of the Central Government. Hence, it is submitted that the Annexure-A4 Regulations have been issued following the required procedures in accordance with the law. In this context it is also relevant to notice that there is no challenge against Annexure-A4 Regulations in this OA, hence there is no merit in making such allegations.

9. Respondents further submit that *it is true that numerous litigations were/are pending in various judicial fora regarding the inter-se seniority including in the Hon'ble Supreme Court. In this context it is also submitted that the issuance of final seniority list of Nursing Officers has nothing to do with the reliefs claimed for in this OA. Hence, there is no bonafides in the aforesaid contention also.*

It is clearly stated in Annexure-A1 Transfer Policy that the transfer is effected, considering the continuous stay in a region for a specific period, irrespective of the posts/ESIC institutions within the same region as stated in para 2.4. Para 4.2. provides that Annual General Transfer consists of three categories mainly Tenure Completion Transfer, Request Transfer and Compassionate Ground Transfer.

10. Respondents contend that *it is settled law that it is not open to the Court to interfere with the policy of the Government or instrumentality of the State taken by the competent authority unless it is violative of any Constitutional provisions. In this case, the impugned Annexure-A1 transfer is not violative of any Constitutional provisions. Hence, the challenge made against the Annexure-A1*

transfer policy is wrong and unsustainable in law.

11. The applicants through rejoinder, produced a copy of the Intra Region Transfer Policy dated 07.12.2022 (Annexure-A9) and submit that *as a result, two transfer policies are not required to achieve the same objectives. Additionally, ESIC has an inter regional transfer policy in effect. It is further submitted that because the Regional Director is still the cadre authority for the cadre of Senior Nursing Officers, the All India Service Liability imposed on them is without any application of mind.*

12. The applicants submit that *only directions contained* (OM dated 04.02.2022, Annexure-A10) *are to revise the existing transfer policy and to develop a portal for transfers in order to effect the annual general transfers in the middle of March every year. It should be noted that Annexure-A9 intra-region transfer policy was also issued in accordance with Annexure-A10.* Whereas respondents relying upon this very OM have issued a new transfer policy (Annexure-A1).

13. The applicants plead that in supersession of Annexure-A4 Regulations the

respondents propose to make new Employees State Insurance Corporation (Nursing Cadre Posts) Recruitment Regulation 2023 (Annexure A-11).

V OA No.180/43/2025

Applicants are Staff Nurses in the ESIC Corporation and submit that they joined the Respondents in terms of the specific condition in Annexure A2 notification limiting the transfer liability for employees till their promotion to Assistant Superintendent Cadre. The attempt of the Respondents to implement transfers outside the State overlooking the conditions agreed upon at the time of initial appointment, and in the absence of a valid seniority list of employees, already pending challenge before this Court in O.A. No. 34/2023, 522/2023 and connected cases. The undertaking made by the Respondents before this Tribunal on 09.11.2023 still remains valid.

Overlooking the pending original applications as well as the undertaking as regards the inability to pass any transfer orders except with the leave of this Tribunal, the Respondents are attempting to bypass this Tribunal by issuing new transfer policy and consequential online transfer process. The actions on the part of the Respondents in issuing fresh transfer policy (Annexure-A1) and circular inviting online applications (Annexure-A2) for transfer without the leave of this

Tribunal is highly improper, if not contemptuous and illegal.

2. The applicants submit that the marginal note of Annexure A2, it was stated as follows:

"The vacancies are in various ESIC Hospitals of the ESI Corporation of the State. Those candidates who are willing to accept the posting anywhere specified in the State and are willing to be transferred in any part of India on promotional posts, as per policy of ESIC, need apply. The candidates so appointed in the State for which application is submitted and are liable to be transferred in any Medical Institution/Establishment/SSMC Office in that State and also liable to be transferred in any part of India on promotional posts as per policy of ESI Corporation."

The regional Seniority List is maintained upto the post of Assistant Nursing Superintendent (Annexure-A3). In the instant case, the conditions of service offered and accepted at the time of appointment in Annexure-A2 specifically limited the transfer liability within State, except for promotional posts. Overlooking the above, the respondents presently rely on the notification dated 01.01.2014 promulgated in pursuant to the amendment of the Central Civil Services (Classification, Control and Appeal) Rules 1965 to redesignate the 'Group C' posts held by the Applicants as 'Group B', thereby introducing, insisting and implementing all India Transfer liability to the Applicants herein. There is no specific statute, rule, notification or order mandating the ESIC to adopt the

amendments made to CCS(CCA) Rules.

3. Applicants further submit that *the delegation of powers and the re-designation of posts would evidence that inspite of classifying the posts as "Group B", they are still considered as regional posts in the absence of a valid all India seniority list and the powers vested on the Regional Director. Furthermore, the Applicants are appointed in accordance with Annexure-A1 notification with an assurance that their transfer will be confined within the State till their promotion above the post of Assistant Nursing Superintendent. The said condition which was incorporated in accordance with the Recruitment Regulations of Staff Nurse as it existed in 2011 confers a vested right on the Applicants to continue in the State of Kerala as long as they have not reached the promotional post of Assistant Nursing Superintendent. Such a right vested in the applicants cannot be altered to their detriment by redesignating/reclassifying the post of Staff Nurse which is in the Group 'C' to Group 'B'.*

4. Applicants contend that *it is not practically possible to effect transfer of officials without having an All India Seniority list. The ESIC has not framed policy to determine merger of region wise seniority lists so far. In all regions other than*

Kerala, persons having less length of service have already been promoted to the higher category. Thus, in case of compulsory transfer outside the regions, the applicants would have to work under the juniors occupying the higher post. This would result in serious illegalities.

5. The applicants contend that *respondents had issued a communication dated 31.01.2023 (Annexure-A12) directing the submission of options for transfer before 15.02.2023, overlooking the undertaking and the submissions made before this Tribunal (Annexure-A11). To safeguard the interest of the applicants herein, this Tribunal had permitted the respondents to accept the transfer requests made by the applicants, but no orders were to be issued in pursuant to the processing of their transfer applications(Annexure-A13). The applicants herein filed OA No.522/2023 challenging the Transfer Policy as well as the new communication inviting applications. The matter was considered by this Tribunal on 09.11.2023 and on the same day, the learned Standing Counsel made an undertaking which was recorded by this Tribunal:*

“.....The learned Standing Counsel submitted that in the light of the order passed on 14.02.2023 in the connected cases, the respondents cannot pass any orders of transfer until further orders. We record the submission....” (Annexure-A16).

6. The applicants further submitted *that the contentions raised by the Applicants as well as the transfer policy are pending consideration of this Tribunal in O.A. No. 34/2023 and connected cases. While the matters stood for hearing in the disposal list on 04.02.2025 as per of order dated 03.12.2024, the Respondents herein published the new Annexure A1 Transfer Policy on 17.12.2024 overlooking the pendency of the Original Applications as well as the undertaking made before this Tribunal. The respondents published a circular on 24.01.2025 directing the employees to submit their options for transfer in the online portal between 24.01.2025 and 30.01.2025 (Annexure-A21). It is submitted that the attempt of the respondents to effect/implement transfers of employees without finalizing the Seniority Lists and in total disregard to the undertaking made before this Tribunal in the pending original applications, is highly illegal, arbitrary and unjust, if not contemptuous.*

7. The applicants approached this Tribunal and sought the following reliefs:-

- (i) *To quash Annexure-A1 and Annexure- A21.*
- (ii) *To declare that attempt to enforce Annexure A1 before revising the promotions of the Staff Nurse/Nursing Officer to Nursing Sister/ Senior Nursing Officer based on All India Seniority list of Staff Nurses is highly illegal and unjust.*
- (iii) *To direct the 1st Respondent to recall Annexure A1 and to*

revise the promotions of the Staff Nurses/Nursing Officers to Nursing Sisters/ Senior Nursing Officers based on All India Seniority list of Staff Nurses before framing All India Transfer Policy.

8. The respondents in their reply statement highlighted the objectives of the Transfer Policy and the difference between the two Transfer Policies dated 17.12.2024 and previous Transfer Policy dated 24.12.2022 and submitted that new Transfer Policy is a well considered policy, which was framed with certain objectives having no connection or bearing with any Original Applications before this Tribunal. The respondents in their reply statement have reiterated their submissions, almost on similar lines, as submitted in OA No.252/2025

9. It is submitted by Respondents *that the present OA impugning the subject matter transfer policy is not maintainable de hors a consequential order and in that view of the matter; the challenge to Annexure A1 transfer policy and Annexure A21 de hors a consequential order of transfer is not maintainable and the OA is liable to be dismissed on this ground alone as the applicants have no cause of action and are not aggrieved persons- who are not competent to file the Original Applications.*

It is submitted that in pursuance of CVC guidelines, a high level committee under the chairmanship of Financial Commissioner was set up by the Director

General of ESI Corporation to identify the sensitive posts prone to corruption and malpractice. Accordingly the committee recommended sensitive posts in ESI Corporation in which Nursing Officers who posted in OT, Ward & Ward stores/ any such critical areas/ In-charge of Stores in OPD Ward and Casualty/All Officials involved in distribution of drugs were also included.

10. The respondents have highlighted paragraph 11 of Annexure-A3 (offer of appointment of the applicants) :-

"He/she will be posted to any of the hospitals under the ESIC in the state of Kerala for the present. However, he/she is liable to be transferred to any other hospitals of the ESI Corporation in the country during his/her service in the Corporation".

At the time of recruitment the Nursing Officer cadre erstwhile Staff Nurse was Group C Cadre with regional seniority and regional transfer policy. Later the Recruitment Regulation for the Nursing cadre changed vide Govt. of India Gazette notification dated 05.12.2020 changing Nursing Officer cadre from Group C to Group B having All India service liability.

11. It is submitted by the respondents that the present transfer policy has nothing to do with the seniority in cadre as it contemplates tenure completion transfer. Point No.4 of the transfer policy dated 17.12.24 states that "(a) In

respect of administrative and other sensitive posts, the tenure shall be up to three years, or as otherwise directed by the instructions issued by the Central Vigilance Commission (CVC) from time to time. (b) Apart from (a) above, for the other posts, the tenure for a nursing cadre employee at a ESIC medical establishment shall be up to ten years. However, as far as possible, in the interest of continued availability of clinical care, the total number of transfers to be carried out in a transfer year will be limited up to 10% of total in-position strength of Nursing Cadre Employees in a unit."

The Annexure-A10 circular is issued by ESI Corporation in continuation to previous transfer policy dated 24.12.2022. The previous transfer policy has been cancelled by issuing new transfer policy dated 17.12.2024 and hence the said circular has no relevance now.

The seniority list of Group 'B' Nursing Officer cadre has nothing to do with the current transfer policy dated 17.12.2024. The transfer is laid down on tenure completion, not on seniority. It is clear that drawing of all India seniority list of Nursing officers or other cadres is not at all required to effect transfer to other hospitals in South Zone.

12. The respondents contend that the Headquarter Office, ESI Corporation

vide Circular dated 30.01.2025 has clarified that the published vacancies are based on Committee's report which constituted for the purpose of transfer. The Committee's report was based on Bed Occupancy Rate (BOR) considering the functional requirement vis-a vis number of available nursing cadre employees. Hence, the vacancy published is not actual vacancies of the ESIC institutions across the country.

The respondents also contend that *All India Service Liability constitutes service condition of Nursing Officers under the ESI Corporation. Consequently, the Corporation is vested with full authority to transfer nursing personnel to any part of India in public interest and functional necessity.* It is further submitted by the respondents that *a significant number of serving nursing personnel have been awaiting transfers to stations of their choice on medical grounds, caregiver grounds (parents/spouse suffering from terminal illnesses), spouse-ground postings, and on grounds of disability (PwD). It is imperative that such requests be given effect prior to filling vacancies through direct recruits, so that the choice-stations of existing employees are not irreversibly filled by fresh appointees.*

VI. OA No.180/46/2025

The applicants are Nursing Officers(erstwhile Staff Nurse) and Senior

Nursing Officers(erstwhile Nursing Sister), now working in the Udyogamandal ESIC Hospital under the respondents 1 to 4. The applicants were initially appointed to vacancies in the ESI Hospital, Udyogamandal and were absorbed by the Employees' State Insurance Corporation (ESIC) in accordance with the terms of absorption w.e.f. 02.11.2009. The applicants submit that *terms of absorption were structured in accordance with the Central Civil Services (CCS) Rules, 1972 and FRSR (Annexure-A1). However, at a later stage, the agreed upon terms of absorption were modified and they had to opt State seniority in regional cadre Group C. Based on these terms of absorption an option was submitted and technical resignation option was exercised by the applicants (sample format Annexure-A2).*

2. *The ESIC Headquarters vide letter No.U-11/Misc/Jaipur/1/2006-Med VI dated 11.07.2008 have declared priority of absorbees to higher posts in absorbed hospitals (Annexure-A4). Based on Hon'ble Supreme Court order in Civil Appeal No.207 & 208 of 2017, Respondents issued final absorption order dated 30.03.2021 giving absorption w.e.f. 02.11.2009. Based on the judgement of Hon'ble High Court of Kerala (Annexure-A6) in OP(CAT) 51/2020 dated 05.11.2020, final Seniority List of Staff Nurses absorbed/direct recruits and*

transferred under IRT was issued on 03.11.2021 (Annexure-A9).

The date of promotion is effected from 09.10.2020 instead of 02.11.2011.

Out of 26 applicants only 9 applicants were given promotion as per Annexure-A16, while the promotions of the remaining applicants are yet to be finalized.

3. *Batch cases challenging the transfer policy issued on 24.12.2022 filed by the direct recruits and absorbed staff are pending before this Tribunal in OA Nos.305/2024, 34/2023, 73/2023, 76/2023, 92/2023 and 522/2023. While the same being under consideration of this Tribunal and when there is status quo in OA No.76/2023 and other connected matters, the respondents have issued new Transfer Policy Comp. No.849968 File No.Z-11011/9/2024-MED VI dated 17.12.2024 (Annexure-A19). Meanwhile, the respondents had taken steps to make intra regional transfers in Kerala region. The said intra Regional Transfer order No.222 of 2024 dated 23.07.2024 was challenged by some of the applicants as OA No.397/2024, which is pending before this Tribunal to be heard along with OA No.85/2023.*

4. *The applicants submit that they are entitled for the reliefs claimed in this Original Application as the grievances of the applicants are not considered by the*

concerned authority and the reliefs claimed in OA No.85/2023 will become infructuous and the directions issued by the Headquarters vide Annexures-A14 and A15 (conduct of DPC) will become unenforceable.

5. Aggrieved, applicants filed this Original Applications and sought for the following reliefs:-

(i) To call for the records in the case and set aside Annexures A19 and A21 orders

(ii) To direct the respondents to consider Annexure-A20 grievances before transferring the applicants.

6. Respondents in their reply statement submit that *the applicants in the OA do not set forth a specific case that the Transfer Policy is either without authority, in violation of any provision of law, mala fide or in violation of statutory provisions. In that view of the matter, it is not competent for this Tribunal to judicially review the Transfer Policy, particularly when the applicants do not set forth a specific case to what provisions of the Transfer Policy are bad in law. Furthermore, the applicants do not canvass any cause of action for the purpose of the OA. In the light of the aforesaid, the respondent submit that no legal right of the applicants is violated by the framing of the impugned Transfer Policy and no legal right accrues to the applicants on account of the framing and/ or*

implementation of the Transfer Policy. The respondents submit that the applicants have filed multiple cases alleging that they cannot be transferred, pending consideration of their claim for promotion.

The foundational premise behind the challenge appears to be that if Annexure-A19 is implemented, OA 85/2023 filed in the matter of an alleged claim of promotion and OA 397/2024 filed in the matter of an actual transfer would be rendered infructuous. The said premise is erroneous and unsustainable. Furthermore the transfer forming the subject matter of OA 397/2024 has already been effected and the applicants and their counterparts have already joined the respective places, which fact is recorded in the order in MA 298/2025 of OA 397/2024- where the request of the OA applicants therein to reopen OA 397/2024 has been declined.

7. Respondents contend that the Annexure-A4 letter dated 11.07.2008 was addressed to Medical Superintendent, ESIC Model Hospital regarding absorption of Rajasthan Government employees, which has no applicability to the facts in hand. In any event of the matter, the said letter was issued on 11.07.2008, that is prior to the decision of the ESIC to dissolve 'Institutional Seniority'. It is submitted by the respondents that instructions mentioned in the letter dated 11.07.2008

pertains to the erstwhile prevalent rule of Institutional Seniority, which rule cannot be followed when the absorbed staff is placed in the State Seniority List.

The Hon'ble High Court of Kerala passed an interim order on 04.08.2021 directing either compliance with the judgement in OP(CAT) 51/20 or to produce any stay order passed by the Hon'ble Supreme Court. In compliance with the above judgement, this office had issued final seniority list of Nursing Officers as on 06.08.2018 (the date from which Institutional seniority has been dispensed with) on 08.11.2021. However, the Hon'ble Supreme Court stayed further proceedings in Contempt case(c) No.376 of 2021 on 15.11.2021 in SLP(C) No.17363-17364/2021 filed by Smt. Bindhu M. Thomas and others (direct recruits of 2009) whereas the stay is only for the contempt case and not for the judgement in OP(CAT) 51/20.

Respondents submit that the above facts are merely for the sake of record and without prejudice to their contention that the issue of seniority cannot be conflated with the issued of transfer under the Transfer Policy.

8. Respondents further submit *that after the enhancement of pay in the Nursing cadre, the post of Nursing Officers carries higher pay in pay level 7(i.e. Rs.44,900- Rs.1,42,400). Accordingly, the above post was re-classified as Group B*

as per DoPT OM. It is submitted that ESIC has been rightly adopting the policy of the Government of India in this matter of classification.

Since there was no stay, in any of the legal forum, against the seniority list dated 08.11.2021, Regional Office, ESIC, Thrissur conducted Review DPC to review the promotions already granted to the directly recruited Nursing Officers who are now placed much below the absorbed Nursing Officers in the seniority list dated 08.11.2021. The Review DPC conducted on 09.05.2024 and the committee recommended cancellation of 29 promotions granted on 09.10.2020 which was before this Tribunal's judgement in OA(CAT) 51/2020. On the basis of the recommendations of the DPC, Office Order No.139 of 2024 was issued on 13.05.2024 cancelling 29 promotions in the cadre of Senior Nursing Officer. Furthermore Office Order No.140 of 2024 was issued on 13.05.2024 granting promotions to 40 Nursing Officers by the Competent Authority.

9. Respondents plead that the *New Transfer Policy dated 17.12.2024 has been issued with the following objectives/ principles:-*

- (i) To provide accessible and best medical care to the Insured Persons (IP's) and their dependents*
- (ii) Maintain equitable distribution of Nursing Cadre employees across institutions to ensure optimal functioning*

(iii) *To provide a satisfying career progression and varied exposure to the officers, it is desirable that officers are suitably rotated among various assignments and locations, wherever applicable. Accordingly, all Group A and Group B Nursing Cadre employees can be transferred anywhere within the country*

(iv) *Organizational interest shall be given highest consideration during the transfer and posting exercise. Transfer to a particular unit cannot be claimed as a matter of right.*

With reference to the contentions in Ground D of the OA regarding conduct of DPC in compliance of Annexure-A14 and A-15 directives, the respondents submit that since various cases are pending before High Court of Kerala regarding seniority and absorption, the respondents were hitherto incapacitated from finalising the All India seniority list and promotion in a timely fashion. It is submitted that the present transfer policy has nothing to do with the seniority in cadre as it contemplates tenure completion transfer.

The terms of absorption pertaining to the applicants in the instant OA itself provide for All India transferability. It is noteworthy that a plain reference to the Terms of Absorption germane to the applicants, itself would indubitably establish that the appointment of the applicants incurs all-India transfer liability. It is submitted that having acquiesced to the same, the applicants have waived objection to the all-India transfer liability and the principles of acquiescence, waiver and estoppel would squarely militate against any claims raised by the

applicants in the OA.

The cadre of Nursing Officer in ESIC is an all India cadre with an all India service liability. Transfer is an exigency of service and the institutional interests for their smooth functioning in the best interest of the ESIC beneficiaries is of prime importance. Hence, the provision of transfers in 'public interest' is rightly incorporated in the transfer policy dated 17.12.2024.

10. The applicants have reiterated the contentions in the rejoinder and submit that as per the final seniority list of both cadres, the applicants are among the senior-most officials who are yet to receive their due promotion with effect from 02.11.2011 in accordance with Recruitment Regulations and the Terms of Absorption, whereas several of their juniors have already been promoted as Nursing Sisters/Senior Nursing Officers with effect from 22.11.2016 and 09.10.2020.

11. Applicants while opposing the contention of the respondents that the applicants have opted for All India seniority submit that the Annexure-A2 option clearly reflects that the applicants had opted for absorption with State level seniority and not all India seniority. Applicants submit that the contention of the

respondent that seniority is wholly irrelevant to the validity of transfer policy is incorrect and denied. The Annexure-A19 Transfer Policy deals with tenure completion transfer based on station seniority and hence seniority cannot be kept away while implementing the transfer policy.

It is submitted by applicants that the new Transfer Policy (Annexure-A19) suffers from several serious infirmities both in substance and procedure. The policy has done away with all welfare-oriented provisions that existed under the earlier framework, including compassionate and priority-based transfers for vulnerable categories such as unmarried women, widows, single parents, and employees with dependent children. The widening of zonal jurisdictions has resulted in postings far beyond the original regional limits, defeating the basis of absorption and regional seniority. Moreover, the absence of any grievance-redressal mechanism and the absolute discretion conferred on the competent authority to transfer employees even without committee recommendations render the policy arbitrary and devoid of transparency.

Applicants plead that submission of the Respondents that there exist provisions for relaxation at the time of submitting transfer applications does not cure or compensate for the non-constitution of a Transfer Grievance Redressal Committee under Annexure A-19 All India Transfer Policy, which governs a major

section of employees in the ESIC. The absence of such a mandatory redressal mechanism renders the operation of the policy arbitrary and contrary to the principles of natural justice.

VII OA No.180/70/2025

The applicants are working as Senior Nursing Officers in various Employee State Insurance Corporation hospitals. The 6th applicant was appointed vide memorandum dated 28.01.2009 (Annexure A-2), other applicants were also appointed by similar memos. Applicants submit thereafter, in supersession of the Employees State Insurance Corporation (Nursing cadres/Posts) Recruitment Rules, 2010, the 2nd respondent enacted the Employees State Insurance Corporation (Nursing Officer, Senior Nursing Officer and Assistant Superintendent) Recruitment Regulations 2020. The applicants further submit that although the classification of Senior Nursing Officers has been changed from Group 'C' to Group 'B', non-Ministerial, there has been no change in pay however, the bonus of Rs.14,000/- they were receiving has been withdrawn.

2. The applicants also submit that there is no final seniority of Nursing Officers and Senior Nursing Officers after the 2008. It is due to the numerous

litigation pending in various judicial fora regarding their *inter-se* seniority in the Staff Nurse cadre. As a result of these disputes, there is no final seniority published after 2008 and no promotions were granted on time. As a result, employees who joined as Staff Nurses in other regions much later than the applicants were promoted much sooner and when the all India Seniority Lists are published, they will be senior to these applicants.

3. The applicants are aggrieved by the Transfer Policy, Annexure-A1 which states that they are subject to All India transfer liability due to their classification change from Group 'C' to Group 'B' in the revised Recruitment Rules and sought the following reliefs:-

- (i) Call for the records leading to the issue of Annexure-A1 and quash the same to the extent it applies to Group 'B' Non-ministerial Senior Nursing Officer cadre declaring it as illegal and unconstitutional
- (ii) Declare that Group 'B' Non-ministerial Senior Nursing Officers have no All India transfer liability.

4. The Respondents 2 to 5 in their reply statement submit that *a plain reference to clause (12) of Annexure-A2 itself would indubitably establish that the appointment of the applicants incurs all-India transfer liability. It is submitted that having acquiesced to the same, the applicants have waived any objection to*

the all-India transfer liability and in that view of the matter, the applicants cannot be heard to canvass that Group B Non-Ministerial Senior Nursing Staff, have no all India transfer liability as the principles of acquiescence, waiver and estoppel would squarely militate against any such claim.

Para 10 of Annexure-A2 stipulates that “He/she will be governed by the Employees' State Insurance Corporation (Staff and Conditions of Service) Regulations 1959, as amended from time to time.”

5. The respondents further submit that *Annexure-A1 transfer policy ensures tenure completion transfer. As per the transfer policy, minimum tenure is three years for in respect of administrative and other sensitive posts. For the other posts, the tenure for a nursing cadre employee at a ESIC medical establishment shall be upto ten years. It is clear that an employee can continue in their location for a period upto 10 years. The employees who exceeded the maximum tenure only need to submit the options for transfer. In addition to that, in the new transfer policy the respondents provided an option for mutual transfer. Employees who have been transferred in the same year AGT and have joined their place of posting shall be eligible to be considered under mutual request ground in the following years' AGT.*

6. The respondents have further elaborated beneficial aspects to the Group 'A' and 'B' Nursing cadre employees in the New Transfer Policy 2024. The respondents submit that *drawing of all India seniority list of Nursing officers or other cadres is not at all required to effect transfer to other regions. Therefore, the contention raised by the applicant in this regard is manifestly misconceived, misleading and untenable and hence same is liable to be rejected.*

7. (i) **MA No.971 of 2025 in OA No.70/2025:-** The miscellaneous applicants/ party respondents 7 to 12 submit that pursuant to Annexure-A1 Transfer Policy dated 17.12.2024, the Annual General Transfer order dated 29.03.2025 was duly issued and has already been implemented across the Corporation. They point out that the said Transfer Order has not been challenged in the present original application and consequently, the Annexure-A1 policy stands fully acted upon. However, none of the employees who were included in the said Annual General Transfer Order has been arrayed as parties to the above Original Application. The miscellaneous applicants herein awaiting transfer are also directly and substantially affected by the outcome of the proceedings.

From the various judicial pronouncements, including the decision of the

Hon'ble Supreme Court in **State of UP and others v. Gobardhan Lal** {(2004) 11 SCC 402}, the settled legal position is that transfer is an incident inherent in the terms of employment and an essential condition of service, unless expressly excluded by statute or service Rules.

The party respondents also submit that *the applicants in OA 70/2025 are not facing any transfer and have failed to produce any evidence of malafide intent on the part of the respondent. The present one time transfer option on the basis of transfer policy is a long pending demand and a matter of justice for the officers serving in various ESIC Hospitals across India for several years. Many of these officers have been working away from their native places for periods extending upto 10-20 years. Party respondents point out that no official has been transferred or relocated without their consent and no officer, including the original petitioners has been transferred out of Kerala.*

(ii) *The applicants have objected the MA No.971/2025 and submit that following Annexure-A1 Transfer Policy, ESIC issued Annual General Transfer year 2025 on 28.03.2025, Annexure MA1. Further the miscellaneous applicants are not included in Annexure-MA1 but their concern is that none of the employees included in MA 1 have been arrayed as parties to the original application.*

Further, neither one time transfer option nor the consequential transfers are challenged in the original application. These miscellaneous applicants are confused and mixing basic facts. The miscellaneous applicants make no indication of their status as affected parties. The fact that they are included in some transfer order under one time transfer option is only mentioned in the cause title, but they have not produced any transfer order either.

(iii) The Miscellaneous Applicants/party respondents submit that Annexure R7(c) document contain the name of 839 employees, including the miscellaneous applicants, who were granted transfers vide Office Order dated 14.07.2025. The issues pleaded by the Miscellaneous Applicants/respondents in this OA have been dealt with in detail vide discussions in OA No.500/2025.

VIII OA No.180/495/2025:-

The applicants are working as Senior Nursing Officers in various Employee State Insurance Corporation hospitals. The applicants are aggrieved by the circulars issued by the Deputy Director (Medical Admin) inviting one time option from Nursing Cadre Employees in ESIC (Annexure-A10 & A-11) which applicants submit are without jurisdiction, without authority of law, highly illegal and in

malafide exercise of power.

2. The applicants are aggrieved by the consequential transfer order to the extent transferring Senior Nursing Officers to Asramam and Ezhukone, which will badly affect the seniority of these applicants. The applicants submit that the Deputy Director (Medical Admin) has no authority to issue an order of transfer/posting Nursing Cadre employees, which is a Group B post.

3. Aggrieved, the applicants have approached this Tribunal and sought the following reliefs:-

(i) Call for records leading to issue of Annexure-A10, A-11 and A-12 and quash the same to the extent it applies to Group'B' Senior Nursing Officers

(ii) Award costs of and incidental to this application

4. The preliminary reply statement filed by the respondents 2 to 7 is in line with the reply statement filed in OA No.501/2025.

IX OA No.180/497/2025:-

The applicants are Nursing Officers currently working in ESIC Hospitals at

Udyogamandal and Asramam respectively. They joined ESIC on different dates in the year 2009, except the 2nd applicant who joined ESIC way back in the year 1999. The applicants, thereafter, came on inter regional transfer to Kerala region on different dates during the period between 2013 and 2016. It is submitted that they are due for promotion as Senior Nursing Officers, considering their seniority and the vacancy position available here at Kerala Region.

2. Their submissions are on lines of the applicants in OA No.252/2025 regarding seniority of Nursing Officers and Senior Nursing Officers who were hitherto in regional cadre became all India basis on reclassification pursuant to promulgation of the new Recruitment Regulations, throwing open the possibility of vacancies in the cadres of Senior Nursing Officers, both existing and future to be filled up from all India seniority list which intriguingly is yet to materialise. For that matter, there is not even a proper regional seniority list now. After 2008, no proper regional seniority list has been prepared by the respondents due to various reasons including long pending litigations.

3. The applicants submit that *in Kerala region, for reasons known to the respondents alone, necessary financial sanction was delayed upto 2023 though*

the necessary administrative sanction was there from a much earlier date, thereby denying the applicants and other Nursing Officers promotion as Senior Nursing Officers before re-classification. Without even referring to the new transfer policy and de hors the power conferred as per the new transfer policy, an incompetent authority has initiated the process for All India Transfer of Nursing cadre officers via a one time option by issuing circulars (Annexures-A3 and A-4) which were void ab initio. The move resulted in the issuance of a transfer order containing the names of several Nursing cadre officers, but since the transfer policy (Annexure-A2) is sub-judice, the transfers have not yet been implemented.

4. In these circumstances, the applicant have approached this Tribunal and sought the following reliefs:-

- (i) Quash Annexure A-2, A-3 and A-4 in so far as those relate to the Nursing Officers cadre
- (ii) Direct the respondents to fill up the vacancies in the cadre of Senior Nursing Officer in the Kerala region strictly in accordance with the statutory recruitment rules i.e. 100% by promotion from among the eligible Nursing Officers based on their regional seniority.
- (iii) Declare that the inward inter regional transfers to the posts in the Nursing Officer cadre under Annexure-A2, A-3 and A-4 are void *ab initio*.

5. The respondents submit that the ESI Corporation has issued Annexures A3

and A4 circulars dated 14.04.2025 and 25.04.2025 respectively calling upon the Nursing Cadre employees to exercise their One-time option for transfer/posting and they were advised to submit their order of preferences for transfer or posting. But the contention of the applicants that those circulars are liable to be set aside on the ground that the transfer policy is in the seizen of this Tribunal is not legally sustainable. Those circulars were issued by the ESI Corporation providing a one-time option for transfer/ posting in online mode for Nursing Cadre employees working in ESI Corporation. As stated earlier it is clearly mentioned in the said circular that "this is one-time option for Nursing Cadre Officers and it cannot be quoted as precedent in future". It is pertinent to notice that in the above circulars there was no mention about Annexure A2 transfer policy. The respondent Corporation issued the above circulars for the employees who want transfers to their desired location as an one-time option and same has been clearly mentioned in the Ext.P4 circular as "Only nursing officials who are willing for transfer are requested to fill the online option". Since the respondent Corporation issued the Annexure A3 circular dated 14.04.2025 for considering the requested transfers only, the same has no connection with the latest transfer policy. Moreover, in the above circular dated 14.04.2025, since this was a one-time chance, the respondent Corporation has directed the officials to submit

their documents as per DoPT guidelines (Compassionate ground/ PwDs/ Medical illness/ Spouse ground etc.) in support of their transfer request, which is not entertained in transfer policy. Hence the respondent Corporation's decision to transfer the Nursing Cadre staffs under "One Time Option" is correct and legal.

Further contention in the reply statement filed by the respondents 2 to 6 is in line with the reply statement filed in other OAs.

X OA No.180/500/2025:-

The present Original Application is filed by the applicants who are absorbed as Nursing Officers (erstwhile Staff Nurses) working under the respondent Corporation. The applicants were absorbed in public interest upon the takeover of the ESIC Hospital, Udyogamandal, along with other hospitals. The applicants claim that as per clause 3 of the Annexure-4, " as a basic principle of the Corporation the absorbees shall have a first right to higher vacant post in the absorbed hospital." They submit that the official respondents have duly acknowledged and implemented this principle in other absorbed hospitals such as ESIC Hospital, Andheri (Mumbai), ESIC Hospital, Vapi and ESIC Hospital, Ashramam, wherein absorbed nursing staff were granted promotion within their respective institutions on completion of two years of service. However, contrary

to this binding and admitted principle the official respondents have failed to extend the similar treatment to the applicants. Instead, while Annexure-A9 Status Quo order on the All India Transfer Policy was in force in OA 46/2025 dated 25.06.2025, the Corporation issued Annexure-A10 transfer and posting orders appointing Senior Nursing Officers from other regions/station to occupy the higher posts of Senior Nursing Officer in the absorbed ESIC Hospital, Udyogamandal.

2. The applicants claim that the above action of the respondents is in violation of Annexure-A1 terms of absorption and status quo order granted by this Tribunal Annexure-A9 dated 25.06.25 and Annexure-A4. The applicants claim that being seniors in the Kerala region and are continuing in the entry cadre of Staff Nurse/Nursing Officer for more than 15 years, they became eligible for promotion on completion of two years of regular service, as per the accepted principles contained in the ESIC (Recruitment) Regulations, 2010 governing the Group 'C' (Nursing cadre). However, despite having rendered more than 15 years of continuous service in the entry cadre of Nursing Officer, the applicants have been unjustly denied their rightful promotion by the respondents.

3. Applicants plead that Annexure-A8 transfer policy dated 17.12.2024 introduced All India transfer liability, which is in direct contravention to the terms and conditions of absorption and options submitted by the applicants as contained in Annexure A-1. The said transfer policy was challenged and the Tribunal vide its order dated 25.06.2025 directed the respondents to maintain status quo in relation to the operation of the impugned transfer policy (Annexure A-9) . Despite Annexure-A9 orders the official respondents have proceeded to issue transfer and posting orders appointing nursing staffs from other region/States to higher posts in the absorbed hospital (ESIC Hospital, Udyogmandal), thereby depriving the applicants of their rightful claim for promotion.

4. Aggrieved, the applicants have sought the following reliefs:

- (i) Call for the records in this case and quash Annexure-A10, the impugned transfer and posting orders issued by the official respondents, with respect to party respondents 7 to 17 transferring to the post of Senior Nursing Officer in ESIC Hospital, udyogamandal.
- (ii) Declare that the applicants are entitled for right of the absorbees to the higher post in the absorbed hospital i.e. ESIC Hospital, Udyogmandal in accordance with the principles laid down in Annexure-A4.
- (iii) Direct the respondents not to fill up 14 posts of Senior

Nursing Officer in the absorbed hospital by way of transfer

(iv) Declare that any appointment or posting to the posts of Senior Nursing Officers in ESIC Hospital, Udhogamandal, shall be treated solely as deputation, and that such deputationists shall be reverted to their parent units once the applicants entitlement is implemented.

5. Respondents 1 to 6 have filed preliminary objections and submitted that the applicants are challenging Annexure-A10 transfer order and thereby the applicants are seeking a relief to the tune of right to higher post and promotion in ESIC Hospital, Udyogamandal which in turn are absolutely unconnected and inconsistent with the transfer order under challenge and act contrary to the Transfer Policy under challenge. The official respondents further submit that *the transfer order under challenge pertains to transfers being effected under one time option of the ESIC and therefore de hors any challenge to a promotion order with respect to the parties in the party array; the instant OA seeking for relief to the tune above stated is absolutely far-fetched, unsustainable and hence is liable to be dismissed for lack of cause of action. Respondents further submit that besides it is relevant to note that Annexure-10 transfer order under challenge does not in any manner whatsoever fix or decide the promotion rights of the applicants or the party respondents herein and hence by means of the instant OA the applicants are attempting to raise an issue which is anticipatory in nature.*

The respondent pleads that no legal right of the applicants is violated by the issuance of Annexure-A10 transfer order. Thus the challenge to the impugned transfer order without impleading all those private parties who are necessary parties and thus who are likely to be affected by the said order is clearly misconceived and not maintainable and the OA ought to be dismissed in limine.

6. Party respondents 7 to 13, 15 & 17 represented by Adv. Girija K. Gopal submit that at the outset that classification of posts in the Central Government into different groups is notified by the DoP&T after revision of pay structure following implementation of each Central Pay Commission recommendations. In exercise of the said power, notification dated 1.1.2014 was issued by the Department of Personnel and Training whereby classification of civil posts was done as belonging to Groups A, B, C and D depending on pay attached to each post{Annexure R11(A)}. Subsequently, Office Memorandum bearing No.F.No.11012/10/2016-Estt.A-III dated 8.12.2017 was also issued by the Department of Personnel and Training, Government of India, Ministry of Personnel, Public Grievances and Pensions, Government of India whereby classification of civil posts under CCS(CCA) Rules 1965 was done based on level in pay matrix (Annexure-R11(B). It is submitted that the conditions of service of the

staff of ESI Corporation is governed by Employees State Insurance Corporation (Staff and Conditions of Service) Regulations, as amended from time to time (Annexure-R11(C)).

Later as per notification No.A-27/17/1/7th CPC/2016-E.III dated 23.11.2016 (Annexure-R11(D) posts of Staff Nurse and Nursing Sister earlier included in Group 'C', the draft to the proposed revised Recruitment Regulations to the posts of Staff Nurse, Nursing Sister and Assistant Nursing Superintendent was issued vide ESIC memorandum dated 04.05.2017. Thereafter as per notification dated 19.10.2020 issued by ESIC and published in Gazette of India dated 05.12.2020 (Annexure R-11(E) revised Recruitment Rules for the posts of Nursing Officer, Senior Nursing Officer and Assistant Nursing Superintendent was notified. Consequent upon notification of the Revised Recruitment Rules as per Annexure R11(E) dated 19.10.2020 the nomenclature and classification of erstwhile Staff Nurse and Nursing Sister, was redesignated to that of Nursing Officer and Senior Nursing Officer, Group B non-ministerial and Assistant Nursing Superintendent, Group-A, non-ministerial, respectively. ESIC Regulations 1959 was later superseded by the ESIC (Staff and Conditions of Service) Regulations, 2023 (Annexure R11(G) clearly show that at present the posts of Nursing Officer and Senior Nursing Officer comes under Level 7 and Level 8 respectively.

As can be understood from a combined reading of Annexures R11(A) to Annexure-R11(G), the posts of Nursing Officer and Senior Nursing Officer (erstwhile Staff Nurse and Nursing Sister respectively) are now classified as Group B posts duly taking into account the pay attached to the said post in the pay matrix at level 7 and 8 in tune with the instructions issued by the DoP&T in this regard. Annexure R11(E) would also make it evident that on and from 05.12.2020, the date of publication of same in the official gazettee, it is the said Recruitment Rules that govern the method of recruitment to the posts of Nursing Officer, Senior Nursing officer (erstwhile Staff Nurse and Nursing Sister respectively) and Assistant Nursing Superintendent in ESI Corporation. All appointments and promotions to the posts covered by Annexure-R11(E) can now be made only in accordance with the said Recruitment Rules and not otherwise. As such, while the Group B post of Nursing Officer is now to be filled up by direct recruitment through advertisement by the UPSC, the Group B non-ministerial post of Senior Nursing Officer is a selection post, to be filled up based on the recommendations of a duly constituted Departmental Promotion Committee only, with the added requirement that consultation with UPSC is necessary on every occasion.

7. The respondents have brought to our notice Regulation 24 (other conditions of service), ESIC (Staff and Conditions of Service) Regulations 1959, which stipulates that:-

“In respect of all other matters relating to the conditions of service of employees, for which no provision or insufficient provisions has been made in these regulations, the rules applicable from time to time to the corresponding category of Central Government servants shall apply.”

8. The party respondents further submit that the respondents who are directly recruited in ESIC also had a specific clause in the appointment order to the fact that the appointment will be subject to the terms and conditions in the offer of appointment and such other terms and conditions that are contained in ESIC regulations 1959 amended from time to time. Going by appointment order the respondents who have come over to Group 'B' are also liable for All India transfer. Being liable for All India transfer they are equally eligible to seek for transfer to any place. The very fact that appointing authority for the above Nursing Officer and Senior Nursing Officer in Annexure-R11(G) is shown as Director General, as distinct from appointing authority of the said posts in Annexure-R11(c) is by itself indicative of the fact that the said post are manned at an All India level. All these respondents 7 to 13, 15 and 17 bring out the fact that all of them have joined ESIC as Staff Nurse prior to the applicants in this OA

deemed date of absorption.

Moreover, it is also pertinent a fact that Annexure-A2 order of absorption of the applicants as Staff Nurse has even been issued much later than the respondents herein being promoted as Senior Nursing Officers. As such, the applicants who are still not promoted as Senior Nursing Officers cannot be permitted to challenge the option for transfer given to the respondents herein the post of Senior Nursing Officer, which is a Group B post with All India Transfer liability.

9. Respondents further submitted that applicants *reliance on clause 3 of Annexure-A4 to contend that they as absorbees have a right to be promoted in the absorbed unit to the exclusion of transferees in the higher post of Senior Nursing Officers is palpably unsound for reasons more than one (a) that Annexure A4 is not in respect of absorption of applicants instead is in respect of erstwhile employees of Rajasthan who were absorbed by ESIC, the terms of which cannot be taken aid of by the applicants (b) apparently Annexure-A1 draft terms of absorption as also Annexure-A2 order of absorption in respect of the applicants do not contain any such recital (c) in contrast to the recitals at Annexure-A4, Clause 10 of Annexure-A1 draft terms of absorption as regards the applicants*

contain the specific recital that “an official on absorption in ESI Corporation service will be governed by ESIC (Staff and Conditions of Service) Regulations from time to time.”

Moreover, in the Annexure to the document produced as Annexure-A2, a clear undertaking was also required to be given by the applicants and other absorbed individuals to the effect that “I also undertake and accept that I shall be placed in All India Seniority if the analogous post offered to me and accepted by me is placed in Group B or Group A as applicable to directly recruited employee of the Corporation.”

10. Party respondents further plead that *the contention raised by the applicants to the effect that they who were absorbed in public interest and who have rendered more than two decades of unblemished service in the respondent Corporation, have a vested right to continue and be considered for promotion within the absorbed hospital is unacceptable both in law and fact. ESIC Recruitment Regulations 2010 cannot anymore govern the promotion process of the applicants including eligibility criteria to the post of Senior Nursing Officer. As such, applicants can be considered for promotion to the post of Sr. Nursing Officer only in accordance with the procedure contemplated in Annexure-R11(e) revised*

Recruitment Rules and that they cannot claim any superior right for being promoted as Senior Nursing Officers on the strength of their purported terms of absorption in the ESI Corporation.

11. *In the light of the Apex Court judgement in **State of Himachal Pradesh v. Rajkumar**, (2023) 3 SCC 773 wherein it is held that 'It is now a settled proposition of law that a candidate has a right to be considered in the light of the existing Rules, which implies the 'rule in force' as on the date consideration takes place. The right to be considered for promotion occurs on the date of consideration of the eligible candidates" the applicants who are yet to be promoted as Senior Nursing Officers can be promoted only in tune with Annexure-R11(E).*

12. The party respondents have cited the judgement of the Hon'ble Apex Court in **Rajkumar's** case{ (2023) 3 SCC 773} in this context:

"10. The principle laid down in Roshan Lal Tandon's case is followed in a number of decisions of this Court. The following are the propositions emanating from the principles laid down in these precedents.

(i) Except as expressly provided in the Constitution, every person employed in the civil service of the Union or the States holds office during the pleasure of the President or the Governor (Article 310). Tenure at pleasure is a constitutional

policy for rendering services under the State for public interest and for the public good, as explained in Tulsiram Patel (supra).

(ii) The Union and the States are empowered to make laws and rules under Art. 309, Art.310 and Art.311 to regulate the recruitment, conditions of service, tenure and termination. The rights and obligations are no longer determined by consent of the parties but by the legal relationship of rights and duties imposed by statute or the rules. The services, thus, attain a status.

(iii) The hallmark of status is in the legal rights and obligations imposed by laws that may be framed and altered unilaterally by the Government without the consent of the employee.

(iv) In view of the dominance of rules that govern the relationship between the Government and its employee, all matters concerning employment, conditions of service including termination are governed by the rules. There are no rights outside the provision of the rules.

(v) In a recruitment by State, there is no right to be appointed but only a right to be considered fairly. The process of recruitment will be governed by the rules framed for the said purpose.

(vi) Conditions of service of a public servant, including matters of promotion and seniority are governed by the extant rules. There are no vested rights independent of the rules governing the service.

(vii) With the enactment of laws and issuance of rules governing the services, Governments are equally bound by the mandate of the rule. There is no power or discretion outside the provision of the rules governing the services and the actions of the State are subject to judicial review.

11. In view of the above principles, flowing from the

constitutional status of a person in employment with the State, we have no hesitation in holding that the observations in Rangaiah that posts which fell vacant prior to the amendment of Rules would be governed by old Rules and not by new Rules do not reflect the correct position of law. We have already explained that the status of a Government employee involves a relationship governed exclusively by rules and that there are no rights outside these rules that govern the services. Further, the Court in Rangaiah's case has not justified its observation by locating such a right on any principle or on the basis of the new Rules. As there are a large number of judgments which followed Rangaiah under the assumption that an overarching principle has been laid down in Rangaiah, we have to necessarily examine the cases that followed Rangaiah..."

As reiterated by the Hon'ble Apex Court promotion and seniority shall be reckoned only from the date of appointment of the candidate and not retrospectively. The applicants having not been actually promoted to the post of Senior Nursing Officers yet, they can neither claim seniority in the said post from an anterior date, much less prevent persons like the applicants who already stand promoted as Senior Nursing Officers from claiming seniority or other benefits for the period they weren't actually promoted.

13. Party respondents contend that *Annual General Transfer for the transfer year 2025 has already been issued vide Annexure R11(L) dated 28.03.2025 and has already been implemented. It is further submitted by them that since many*

serving nursing personnel throughout the country have been long awaiting transfer to stations of their choice based on grounds permissible under the guidelines issued by the Department of Personnel and Training (like compassionate ground, mandatory posting of working spouses at the same station, care givers of differently abled dependents, medical illness posting of physically handicapped candidates and parent of mental retarded children etc), the ESI Corporation decided to provide a one time option for transfer/posting of such candidates in online mode for nursing cadre employees working across the country. Accordingly after completion of Annual General Transfer for the Transfer Policy 2025, circular dated 14.04.2025 was issued by ESIC whereby onetime option for transfer posting was provided for Nursing Officers (Annexure R11(M).

14. Party respondents further plead that they are natives of Kerala, who have been working outside the State for long years. Annexure-A10 order dated 14.07.2025 was issued permitting the transfer, as the applicants who are only Nursing Officers cannot be said to have any cause of action to challenge Annexure-A10 transfer orders. The applicants and respondents being in two different posts, transfer of the respondents to vacancies in the same posts cannot be viewed infringing any of the legal rights of the applicants.

15. *The respondents also submit that in the light of the settled legal principle that unless the order of transfer is shown to be an outcome of a malafide exercise of power or violative of any statutory provision (an Act or Rule) or passed by an authority not competent to do so, the same cannot be lightly interefered with for any or every type of grievances sought to be made. The applicants, who are Nursing Officers, do not have either any cause of action or any locus standi to challenge Annexure-A10 by which the respondents herein have been transferred as part of one time transfer facility offered by the ESI Corporation duly taking into account their pressing needs and the fact that they have been serving outside Kerala for quite long.*

16. Respondents 14 and 16 joined ESIC in the State of Maharashtra Annexures-R14a & 14b. In their reply statement, their submissions are similar to that of party respondents 7 to 13 , 15 and 17. Party respondents 14 & 16 highlighted that *the applicants were transferred out of their parent institution pursuant to Office Order No.222 of 2024, No.54.A.22/15/3/2023-Med. Adm dated 23.07.2024, issued by the ESIC Regional office, Thrissur (Annexure R-14k). This operationalizes the very transfer liability they accepted under the terms of*

absorption. Accordingly, their claim to promotional posts in the parent institution is rendered unsustainable. They further submitted that the draft terms of absorption clearly provides that the absorbees shall be liable for all India transfer. Under Clause 5 it clearly states that “employees on absorption would continue to work at ESIC Model Hospital _____ at the discretion of the Corporation, but they would be under all India transfer liability except for those who have opted for institutional seniority as stated in para 4 above.”

Moreover, ESIC vide its order dated 06.08.2018 had replaced institutional seniority with State level seniority in terms of absorption in respect of hospitals taken over in 2006 (Annexure-R14(I)). The current existing vacancies of the Senior Nursing posts in Kerala are all-India vacancies which are not bound for a local DPC, instead those vacancies can equally be claimed by all the eligible candidates from all-India level. It is submitted by them that these respondents got transferred to ESIC Hospital, Udyogmandal upon those all-India vacancies. Respondents 14 & 16 further submit that this Tribunal's order dated 25.06.2025 in OA No.46/2025 directing status quo pertains exclusively to Annexure-A19 i.e Transfer Policy dated 17.12.2024. *However, the transfers impugned by the respondents were issued under the One-time Option Transfer Scheme, HQ Circular No.Z-11011/9/2024-MED-VI (MED-VII), Comp. No.849968 dated*

14.04.2025. This One-time Option Transfer Scheme was not covered by the status quo direction issued therein. Furthermore, no applicant in OA No.46/2025 or OA No.500/2025 was transferred out of their station pursuant to the One Time Option Transfer Order. Therefore, the contention that the status quo order prohibits the respondents from effecting the transfers under the said scheme is misconceived, incorrect and legally untenable. Moreover, the applicants have no locus standi to challenge a transfer order which does not affect them. In fact they are not even the parties who got transferred in the first place.

XI OA No.180/501/2025:-

Applicants in this Original Application are Nursing Officers in the Kerala region of Employees State Insurance Corporation (ESIC). Applicants along with other similarly situated Nursing Officers, joined the Kerala region on Inter-Regional Transfer from other regions. All of them joined this region during 2011-2016, on joining in the new region (Kerala), the applicants were placed at the bottom of the seniority list, a matter which is sub judice before this Tribunal in OA No.124/2022. The New Transfer Policy is introduced while the previous policy was under challenge before this Tribunal.

2. The applicants contend that *the new transfer policy, if implemented in the present form, will result in an influx of SNOs/ANS migrating to Kerala region. This would lead to depletion of posts available for promotion to the applicants in the region. Though the additional number of SNO were granted financial sanction in 2023, the posts are deemed to be there way back in 2010 itself. The administrative approval/sanction for increased number of SNOs were in place from 2010. Hence, the applicants have substantial/vested rights for promotion to the post of SNOs.*

3. The applicants hold that new transfer policy and subsequent transfer is in direct contravention of the statutory Recruitment Rules which mandates 100% promotion to the post of Senior Nursing Officers and have assailed certain clauses under the new Transfer Policy specifically as under:-

(c) Upgradation to Group B cadre, does not bring any inherent all India service liability. AIIMS like institutions maintain regional seniority for their Group B Nursing Officers

(d) Appeal provision against transfer is absent in the new policy

(e) Stands relieved as and when transfer order is issued is arbitrary

(f) Policy allows 365 days of transfer as a general rule

(g) Transfer Committee recommendations can be overturned by the administrative authorities without assigning any reason.

4. Aggrieved, the applicants have filed this Original Application and sought the following reliefs:-

(a) Quash and set aside the impugned Transfer Policy issued by the Respondent Corporation (ESIC Hq) vide Comp.No.849968 in file No.Z-11011/9/2024-MED-VI dated 17.12.2024 (Annexure-A1) as it is illegal, arbitrary and unconstitutional to the extent of grievances cited herein.

b) Quash and set aside the subsequent Circular No.Z-11011/9/2024-MED-VI(Med.VII)1 dated 4-04-25 (Annexure A4).

c) Quash and set aside the Order No. 17 of 2025 in file No.Z-11011/9/2024-MED-VI (Med.VII) dated 14-07-2025 (Annexure A4(a)

d). Direct the Respondents to fill up the existing /available vacancies under SIU norms of 2010 order (Annexure A2) in the promotional posts of Senior Nursing Officer and Assistant Nursing Superintendent in the Kerala region strictly in accordance with the statutory Recruitment Rules, i.e., by 100% promotion from amongst the eligible Nursing Officers of the region.

e). Declare that any inward inter-regional transfers that occupy 100% promotional posts of Senior Nursing Officer and Assistant Nursing Superintendent to the Kerala region under the impugned transfer order in Annexure A4 are void *ab initio* and non-est in law

5. The respondents in their reply statement have reiterated their submissions, almost on similar lines, as submitted in OA No.252/2025 and stressed the following points in their reply statement in this original application:-

(i) The new Transfer Policy is clearly well considered policy which was framed with certain policy objectives as already stated in their reply in OA No.252/2025.

(ii) The new Transfer Policy provides the total number of transfers to be carried out in the transfer year will be limited upto 10% of total in position strength of Nursing Cadre employees in a unit.

6. The respondents submit that the contention of the applicants that *the Transfer Policy permits transfer throughout the year is grossly erroneous and misleading. Contrary to the said assertion it is submitted that the Policy envisages transfer/posting to be done in two stages, as per the clearly delineated procedure in clause 6. The said procedure is clear, fair and transparent and also non-arbitrary. The fact that after issuing AGT orders, there could be a second round to consider any vacancy during the first round of service, is in fact to ensure that clinical services are not impacted.*

7. Rebutting the applicant's submission regarding the fact of relieving from the date of issuance of transfer order, the respondents submit that *the issuance of transfer order is not arbitrary as the converse would be a situation where the*

concerned officer, takes advantage of a ex-post effective date of transfer to delay and stifle the taking effect of an immediate transfer. The said clause is inserted to ensure that operational necessities are not without delay. This is particularly critical in delivery of clinical services, where continuity and officering are vital. By having the same, ESIC ensures that there is minimal disruption in the matter of delivery of clinical services and also ensures that responsibilities of transferred employee are taken over promptly. The plea of applicants that all India transferability can be implemented only after an all India seniority is drawn, is again clearly erroneous and misleading. The Transfer Policy is not concerned with the "Seniority or Promotion" of officers and therefore to assert that all India Transfers should be done after framing of all India Seniority Policy is doubly unsustainable and misleading. Furthermore, when the applicants assert they are beneficiaries of the Inter-Regional Transfer from other regions, they cannot be heard to agitate that All India transfer can happen only after drawing an All India Seniority List. The respondent submits that even as 'Seniority' and 'Promotion' are radically different from transfer order the impugned transfer policy, the respondent herein has been so far unable to finalize an All India Seniority List on account of the multiple cases before multiple fora across the country.

8. Respondents further contend that *the argument of the applicants regarding promotion in clause (ix) of para 4.5 of their OA is again incorrect and misleading as the posting by transfer is not the equivalent of a recruitment much less a transfer by absorption.* Respondents further submits that *Transfer Policy is in violation of the Recruitment Rules, is an assertion that causes violence to both logic and commonsense. The Transfer Policy does not deal with fresh recruitments and conversely Recruitment Rules do not deal with the subject matter of administrative transfers and therefore when the Transfer policy and the Recruitment Rules operate in distinct spheres, the attempt of the applicants to conflate the same and argue and insinuate imaginary violation of Recruitment Rules is completely misleading.*

9. It is submitted by Respondents *that the issuance of a policy is a prerogative of the ESIC, which administrative prerogative of the ESIC cannot be restricted or stifled on mere surmise that previous litigations exist in respect of previous transfer policies. It is submitted that All India Service liability constitutes service condition of Nursing Officers under the ESI Corporation. Consequently, the Corporation is vested with full authority to transfer nursing personnel to any part of India in public interest and functional necessity. The attempt by the applicants*

to conflate issue of the validity of Transfer Policy with the issue of seniority and promotion, even as they are unconnected and occupy separate fields, is only a subterfuge to keep the issue of transfer in suspended animation by indefinitely delaying the implementation of the Transfer Policy.

XII OA No.180/552/2025:-

The applicants, all natives of Kerala, are Nursing Officers and Senior Nursing Officers serving in various ESIC hospitals across Maharashtra, Karnataka, Tamil Nadu, and Delhi. They submit that they were recruited directly to posts that expressly carried an all-India transfer liability under the recruitment notifications and appointment orders, and have since been serving outside their home state for periods ranging from 12 to 16 years. Following the reclassification of Nursing Officers to the Group B cadre under the 6th CPC and the Gazette Notification dated 05.12.2020, ESIC revised the Recruitment Rules and introduced a new Transfer Policy for Group A and B nursing and paramedical employees, who now hold all-India seniority and transfer liability. In continuation thereof, ESIC issued the Annexure A16 Transfer Policy dated 17.12.2024, followed by circulars dated 24.01.2025, 14.04.2025, and 25.04.2025, including a voluntary One-Time Transfer Option. The applicants submitted their options for transfer to Kerala, and

ESIC issued Annexure A21 One-Time Transfer Order dated 14.07.2025, transferring 839 officers including the applicants.

2. *The applicants submit that meanwhile, two officers in Kerala filed OA 252/2025 challenging the Transfer Policy, leading to Annexure A22 interim order of this Tribunal dated 25.06.2025 directing status quo; however, the Transfer Policy had already been implemented through the Annexure A18 general transfer order dated 29.03.2025.*

The demand for finalisation of the all-India seniority list before transfers is untenable, as the Policy relies only on station seniority for compulsory transfers, while Kerala regional seniority itself is under litigation. In these circumstances, the applicants seek implementation of Annexure A21 transfer order.

3. *Applicants further submit that ESIC has not yet released the All-India Seniority List following the implementation of the new Recruitment Rules and cadre re-classification. However, as far as the transfer process is concerned, Annexure-A16 clearly provides that station seniority, in terms of the date of joining a unit, is the sole criterion for undertaking compulsory tenure transfers.*

4. *It is further submitted by the applicants that some of the employees of the ESIC challenged the previous transfer policy dated. 24.12.2022 in OA/654/2023 Krishna K.S. and others vs. Employees State Insurance Corporation (ESIC), before the Bangalore Bench. Subsequently they put forth an MA 75/2025 to amend the Original Application challenging the transfer policy dated 17.12.2024. The true copy of the order of the Tribunal, Bangalore Bench dated 18.11.2025 in OA No.654/2023 dismissing the OA is produced as Annexure-A28.*

5. *Applicants submit that transfer policy itself cannot be interfered unless there is a well defined ground. Therefore, the interim order passed by this Tribunal is arbitrary and is against the well established principles of law . The same has been reiterated by the Hon'ble High Court of Kerala in **Preethi G.V. v. Anidarsa K.** { 2024(4) KHC 377}. Paragraph 3 specifically quotes as follows:*

“....Merely for the reason that certain categories of teachers have not been accommodated, policy cannot be said to be arbitrary or discriminatory. The left out group may have genuine grievances; that does not mean policy is arbitrary and discriminatory.....”

*The impugned Transfer Policy Annexure-A16 is neither a misuse of statutory powers nor enacted with malafide intent. The same was observed by the Apex court in **Union of India and others vs. S.L. Abbas** {(1993) 4 SCC 357}. The relevant paragraph read as under:*

"7. Who should be transferred where, is a matter for the appropriate authority to decide. Unless the order of transfer is vitiated by mala fides or is made in violation of any statutory provisions, the court cannot interfere with it. While ordering the transfer, there is no doubt, the authority must keep in mind the guidelines issued by the Government on the subject...."

The Hon'ble Apex court in **Directorate of Film Festivals and Others v. Gaurav Ashwin Jain and Others** {2007 (4) SCC 737} held that courts or as a matter Tribunals cannot act as the appellate authority to see the correctness, suitability or appropriateness of policies issued by a statutory body unless the same is vitiated by malice or is against the fundamental rights of its citizens or against public policy. Reiterating the same the Supreme court held in paragraph 14 the following;

"14. The scope of judicial review of governmental policy is now well defined. Courts do not and cannot act as Appellate Authorities examining the correctness, suitability and appropriateness of a policy. Nor are Courts Advisors to the executive on matters of policy which the executive is entitled to formulate. The scope of judicial review when examining a policy of the government is to check whether it violates the fundamental rights of the citizens or is opposed to the provisions of the Constitution, or opposed to any statutory provision or manifestly arbitrary. Courts cannot interfere with policy either on the ground that it is erroneous or on the ground that a better, fairer or wiser alternative is available. Legality of the policy, and not the wisdom or soundness of the policy, is the subject of judicial review"

6. Aggrieved, the applicants have approached this Tribunal and sought the following :-

- (a) Direct the respondents to implement the Annexure-A21 transfer order to the extent it applies to the applicants
- (b) Direct the Respondent Nos.8 to 10 to permit the applicants to join in their respective posts as per Annexure-A21 transfer order
- (c) Declare that the transfer of the applicants are valid, legal and in accordance with the recruitment notification, appointment orders, recruitment regulations as well as the re-classification of nursing cadre employees from Group C to Group A and Group B
- (d) Declare that Annexure-A19 and Annexure-A20 circulars are independent of the Annexure-A16 policy.

XIII

1. From the above pleadings the applicants in these OAs may be categorised in four groups of employees of ESIC:-

- (i) Nursing Officers /Senior Nursing Officers directly recruited by ESIC in Kerala region
- (ii) Nursing Officers/ Senior Nursing Officers who were absorbed by ESIC following takeover of certain ESI hospitals in Kerala by ESIC
- (iii) Nursing Officers/Senior Nursing Officers who were recruited by ESIC joined in the States other than Kerala and came on Inter-region Transfer
- (iv) Nursing Officers /Senior Nursing Officers who have been under order of transfer following one time option circular promulgated by ESIC dated 14.04.2025.

2. Following issues emerge from their pleadings for adjudication:-

- (a) All India Transfer liability of the applicants who were directly recruited by ESIC or absorbed by ESIC, following take over of few ESI hospitals in Kerala by ESIC
- (b) Validity of Transfer Policy issued in the year 2022 and 2024 and its judicial review, identification of sensitive post, change of nomenclature and classification of nursing cadre officers
- (c) Circular calling for One time option dated 14.04.2025 and subsequent transfer order : validity
- (d) Issue of likely impact on the seniority of the Nursing Officers/Senior Nursing Officers already working in Kerala, arising out of implementation of New Transfer Policy and One Time option circular and subsequent transfer order dated 14.07.2025

It is noted by us that there has been no challenge to Revised Recruitment Rules 2020, effective from 19.10.2020, ESIC (Staff and Conditions of Service) Regulation 2023 and Annual General Transfer order dated 28.03.2025 issued following new Transfer Policy 2024.

3. Groups of employees falling under (i) have challenged Transfer Policy issued on 24.12.2022 (Annexure A-20 in OA No.14/2023), which was superseded by New Transfer Policy dated 17.12.2024 (Annexure-A15 in OA No.252/2025), besides Annexure A-17 and Annexure A-18 (in OA 252/2025) circular regarding one time option for transfer posting and subsequent order Annexure-A10 (in OA

500/2025).

Groups of employees falling under (ii) have also challenged New Transfer Policy and one time option- transfer circular and subsequent transfer orders

Groups of employees falling under (iii) have also challenged New Transfer Policy and one time option- transfer circular and subsequent transfer orders.

Whereas employees falling under group (iv) pleaded for implementation of transfer orders issued under one time option (Annexure-A10 in OA 500/2025)

4. Citations relied upon by the learned counsel for the applicants on the issue of seniority:-

(i) Judgement of the Hon'ble Supreme Court in **Pratap Singh v. The Registrar, IGIT, others** {2001 (9) SCC 273} dated 15.12.2000:-

“7. Inter se seniority in the grade/cadre is an important condition of service, if the appellant's claim for encadrement with effect from the date he held the post of cashier on regular basis is accepted then it becomes necessary to consider its effect on the inter se seniority position. This aspect of the matter has not been considered by the High Court.”

(ii) Judgement of the Hon'ble Supreme Court in **K. Anjaiah and Ors. v. K. Chandraiah and Ors** { (1998) 3 SCC 218} dated 03.03.1998:-

"8.....We find considerable force in this argument and reading down the provision of Regulation 9(2) we hold that while determining the inter se seniority of the deputationists in the new cadre under the Commission after they are finally absorbed, their past services rendered in the Government have to be taken into account. In other words the total length of service of each of the employees would be determinative factor for reckoning their seniority in the new service under the Commission....."

(iii) Judgement of the Hon'ble Supreme Court in **Nirmal Kumar Choudhary and Ors. v. State of Bihar and Ors.** {AIR 1988 SC 394} dated 16.12.1987-

"4 It is a well-settled position in law that seniority would ordinarily depend upon length of service subject, of course, to rules holding the field. That view has been taken by this Court in several cases and it is unnecessary to refer to all of them. In A. Janardhana v. Union of India MANU/SC/0318/1983: (1983) 2 SCR 936: AIR 1983 SC 769, the situation was somewhat the same as here. The Court found that the method adopted for fixing seniority overlooked the character of appointments and pushed down persons validly appointed below others who had no justification to be given higher place. At page 960 (of SCR) : (at P. 781 of AIR), the Court observed:

It is an equally well recognised canon of service jurisprudence that in the absence of any other valid rule for determining inter se seniority of members belonging to the same service, the rule of continuous officiation or the length of service or the date of entering in service and continuous uninterrupted service thereafter would be valid and would satisfy the tests of Article 16"

(iv) **Siemens Aktiengesellschaft and Siemens Ltd. Vs. DMRC Ltd. And Ors -**

{(2014) 11 SCC 288} dated 14.02.2014. To buttress their argument regarding impropriety on the part of respondents in issuing new Transfer Policy 2024 while Transfer Policy 2022 was under challenge in this Tribunal.

“28. Mr. Parasaran argued that the Committee's proceedings did not amount to sitting in appeal over the judgment of the High Court. The Committee may have not said anything adverse to view taken by the High Court but if the Committee were to find fault with the evaluation process which the High Court has held to be valid it indirectly amounted to putting a question mark on the judgment of the High Court itself. **Suffice it to say what the Government ought to have stayed its hands once the matter landed in the Court.** In as much as the Government did nothing of this kind, it did not act properly. Beyond that we do not consider it necessary or proper to say anything at this stage.”

5. Citations relied upon by the learned counsel for the respondents on the issues of conditions of service, seniority and transfer:

(i) Judgement of the Hon'ble Supreme Court in **Dhole Govind Sahebrao v. Union of India**, dated 26.03.2015 {(2015) 6 SCC 727}-

"22.....(i) First of all, we may advert to the decision rendered by this Court in State of Maharashtra & Anr. v. Chandrakant Anant Kulkarni & Ors.,(1981) 4 SCC 130, wherein a three Judge Bench of this Court held as under:-

"16. Mere chances of promotion are not conditions of service and the fact that there was reduction in the chances of promotion did not tantamount to a change in the conditions of service. A right to be considered for promotion is a term of service, but mere chances of promotion are not. Under the Departmental Examination Rules for STOS, 1954, framed by the former State Government of Madhya Pradesh, as amended on January 20, 1960, mere passing of the departmental

examination conferred no right on the STIs of Bombay, to promotion. By passing the examination, they merely became eligible for promotion. They had to be brought on to a select list not merely on the length of service, but on the basis of merit-cum-seniority principle. It was, therefore, nothing but a mere chance of promotion. In consequence of the impugned orders of reversion, all that happened is that some of the STIs, who had wrongly been promoted as STOS Grade III had to be reverted and thereby lost a few places. In contrast, the conditions of service of ASTOs from Madhya Pradesh and Hyderabad, at least so far as one stage of promotion above the one held by them before the reorganisation of States, could not be altered without the previous sanction of the Central Government as laid down in the Proviso to sub-section (7) of Section 115 of the Act."

(ii) Reference may also be made to the decision of this Court in *Palaru Ramkrishnaiah & Ors. v. Union of India & Anr.*, (1989) 2 SCC 541, wherein a three Judge Bench of this Court held as under:-

"12. In the case of Ramchandra Shankar Deodhar, (1974) 1 SCC 317, the petitioners and other allocated Tahsildars from ex-Hyderabad State had under the notification of the Raj Pramukh dated September 15, 1955 all the vacancies in the posts of Deputy Collector in the ex-Hyderabad State available to them for promotion but under subsequent rules of July 30, 1959, 50 per cent of the vacancies were to be filled by direct recruitment and only the remaining 50 per cent were available for promotion and that too on divisional basis. The effect of this change obviously was that now only 50 per cent vacancies in the post of Deputy Collector being available in place of all the vacancies it was to take almost double the time for many other allocated Tahsildars to get promoted as Deputy Collectors. In other words it resulted in delayed chance of promotion. It was, inter alia, urged on behalf of the petitioners that the situation brought about by the rules of July 30, 1959 constituted variation to their prejudice in the conditions of service

applicable to them immediately prior to the reorganisation of the State and the rules were consequently invalid. While repelling this submission the Constitution Bench held: (SCC p. 329, para 15)

"All that happened as a result of making promotions to the posts of Deputy Collectors divisionwise and limiting such promotions to 50 per cent of the total number of vacancies in the posts of Deputy Collector was to reduce the chances of promotion available to the petitioners. It is now well settled by the decision of this Court in State of Mysore v. G. B. Purohit, 1967 SLR 753, that though a right to be considered for promotion is a condition of service, mere chances of promotion are not. A rule which merely affect chances of promotion cannot be regarded as varying a condition of service. In Purohit case (supra), the districtwise seniority of sanitary inspectors was changed to Statewise seniority, and as a result of this change the respondents went down in seniority and became very junior. This, it was urged, affected their chances of promotion which were protected under the proviso to Section 115, sub-section (7). This contention was negatived and Wanchoo, J., (as he then was), speaking on behalf of this Court observed: 'It is said on behalf of the respondents that as their chances of promotion have been affected their conditions of service have been changed to their disadvantage. We see no force in this argument because chances of promotion are not conditions of service. It is, therefore, clear that neither the Rules of 30-7-1959, nor the procedure for making promotions to the posts of Deputy Collector divisionwise varies the conditions of service of the petitioners to their disadvantage.'"

15. It cannot be disputed that the Director General of Ordnance Factories who had issued the Circular dated November 6, 1962 had the power to issue the subsequent Circular dated January 20, 1966 also. In view of the legal position pointed out above the aforesaid circular could not be treated to be one affecting adversely any condition of service of the Supervisors 'A'. Its only effect was that the

chance promotion which had been accelerated by the Circular November 6, 1962 was deferred and made dependent on selection according to the Rules. Apparently, after the coming into force of the order dated December 28, 1965 and the Circular dated January 20, 1966 promotions could not be made just on completion of two years' satisfactory service under the earlier Circular dated November 6, 1962 the same having been superseded by the later circular. It is further obvious that in this view of the matter Supervisors 'A' who had been promoted before the coming into force of the order dated December 28, 1965 and the Circular dated January 20, 1966 stood in a class separate from those whose promotions were to be made thereafter. The fact that some Supervisors 'A' had been promoted before the coming into force of the order dated December 28, 1965 and the Circular dated January 20, 1966 could not, therefore, constitute the basis for an argument that those Supervisors 'A' whose cases came up for consideration for promotion thereafter and who were promoted in due course in accordance with the rules were discriminated against. They apparently did not fall in the same category."

"31.(iv).....Justice S. Saghir Ahmad concurred with the view expressed by Justice K. Ramaswamy. A dissenting view was recorded by Justice G.B. Pattanaik. On the subject in hand, however, there was no dissent. The conclusions recorded by Justice G.B. Pattanaik were to the following effect:-

"199. To the said effect the judgment of this Court in the case of State of Punjab v. Kishan Das, (1971) 1 SCC 319, wherein this Court observed an order forfeiting the past service which has earned a government servant increments in the post or rank he holds, howsoever adverse it is to him, affecting his seniority within the rank to which he belongs or his future chances of promotion, does not attract Article 311(2) of the Constitution since it is not covered by the expression reduction in rank.

200. Thus to have a particular position in the seniority list within a cadre can neither be said to be accrued or vested

right-of a government servant and losing some places in the seniority list within the cadre does not amount to reduction in rank even though the future chances of promotion get delayed thereby....."

(ii) Pubi Lombi v. State of Arunachal Pradesh {2024 SCC Online SC 279} dated 13.03.2024

"9. In the case of Union of India and others Vs. S.L. Abbas; 1993 (4) SCC 357, **it is clearly observed by this Court that the scope of judicial review is only available when there is a clear violation of statutory provision or the transfer is persuaded by malafide, non-observation of executive instructions does not confer a legally enforceable right to an employee holding a transferable post.** The relevant paragraph reads as under:

"7. Who should be transferred where, is a matter for the appropriate authority to decide. Unless the order of transfer is vitiated by mala fides or is made in violation of any statutory provisions, the court cannot interfere with it. While ordering the transfer, there is no doubt, the authority must keep in mind the guidelines issued by the Government on the subject....."

9.1. Further, following the footsteps of S.L. Abbas (supra) this Court in the case of Union of India and another Vs. N.P. Thomas; 1993 Supp (1) SCC 704 held that the interference by the Court in an order of transfer on the instance of an employee holding a transferable post without any violation of statutory provision is not permissible."

(iii) Judgement of the Hon'ble High Court of Kerala in Preethi G.V. v. Anidarsa K.{2024 (4) KHC 377} dated 13.06.2024

"3.....There is no fundamental right to claim for transfer to the

place of their choice. Transfer policy can be only questioned on well defined parameters while applying its norms in a homogeneous group. If the Government chooses or prefers a few as against others in the same group overlooking the objective of norms, then it can be said action is arbitrary, but norms continue to be valid.....”

6. Citations relied upon by the learned counsel for the respondents on the issue of policy:-

(i) Judgement of the Hon'ble Supreme Court in **Reserve Bank of India and**

Ors. v. N.C. Paliwal and others- {(1976) 4 SCC 838}

"19.....It is entirely a matter for the State to decide whether to have several different cadres or one integrated cadre in its services. That is a matter of policy which does not attract the applicability of the equality clause. The integration of non-clerical with clerical services sought to be effectuated by the Combined Seniority Scheme cannot in the circumstances be assailed as violative of the constitutional principle of equality."

(ii) **Directorate of Film Festivals and others v. Gaurav Ashwin Jain and others-** {2007 (4) SCC 737} dated 11.04.2007

"14. The scope of judicial review of governmental policy is now well defined. Courts do not and cannot act as Appellate Authorities examining the correctness, suitability and appropriateness of a policy. Nor are Courts Advisors to the executive on matters of policy which the executive is entitled to formulate. The scope of judicial review when examining a policy of the government is to check whether it violates the fundamental rights of the citizens or is opposed to the provisions of the Constitution, or opposed to any statutory provision or manifestly arbitrary. Courts cannot interfere with policy either on the ground that it is erroneous or on the ground that a better, fairer or wiser alternative is available. Legality of the policy, and not the wisdom or soundness of the policy, is the subject of judicial review (Vide -

Asif Hameed v. State of J and K, 1989 Supp (2) SCC 364 (AIR 1989 SC 1899: 1989 (3) SLR 735); Shri. Sitaram Sugar Co. Ltd. v. Union of India, 1990 (3) SCC 223 (AIR 1990 SC 1277); Khoday Distilleries v. State of Karnataka, 1996 (10) SCC 304 (1996 KHC 1276: AIR 1996 SC 911), Balco Employees Union v. Union of India, 2002 (2) SCC 333 (2002 KHC 238: 2002 (1) KLT SN 41: AIR 2002 SC 350), State of Orissa v. Gopinath Dash, 2005 (13) SCC 495 (2006 KHC 164: 2006 (1) KLT SN 56: 2006 SCC (LandS) 1225: AIR 2006 SC 651 2006 (1) SLR 401: 2006 (1) LLN 853) and Akhil Bharat Goseva Sangh v. State of Andhra Pradesh, 2006 (4) SCC 162 (2006 KHC 568: 2006 (4) SCC 162: JT 2006 (4) SC 482)).”

(iii) Siemens Aktiengesellschaft and S. Ltd. Vs. DMRC Ltd. And Ors -{(2014) 11 SCC 288} dated 14.02.2014:- Rebutting arguments of applicants in respect of their submission citing Hon'ble Apex court's observation in para 28 of its order which inter alia conveys that the Government ought to have stayed its hands once the matter landed in the court. As in instant case, once 2022 Transfer Policy was stayed by this Tribunal, ESIC should not have come out with a new Transfer Policy 2024 without permission of this Tribunal; Respondent drew our attention to para 26 of this judgement.

“26. That brings us to the question whether the Government of India was justified in appointing a Committee to test the evaluation of bids and, if so, whether this Court ought to look into the Report of the Committee. There is more than one aspect that needs to be kept in view in this regard. The first and foremost is the fact that the Committee was appointed at a stage when the matter was already pending before the High Court. Considerable time was spent by learned Counsel for the parties in debating whether the constitution of the Committee by the Government

itself tantamounted to interference with the course of justice, hence contempt. We do not, however, consider it necessary to pronounce upon that aspect in these proceedings especially because we have not been called upon to initiate such contempt proceedings. **All that we need say is that once the Government had known that the entire issue regarding the validity of the process adopted by DMRC including the transparency and fairness of the process of evaluation of the bids was sub judice before the High Court of Delhi and later before this Court, it ought to have kept its hands off and let the law take its course.** It could have doubtless placed all such material as was relevant to that question before the High Court and invited a judicial pronouncement on the subject instead of starting a parallel exercise. The Government could even approach the High Court and seek its permission to review the process of evaluation either by itself or through an expert Committee if it felt that any such process would help the Court in determining the issues falling for consideration before the Court more effectively. Nothing of that sort was, however, done. On the contrary even when the Secretary to the MoUD pointed out that the matter is sub judice and any further action in the matter could await the pronouncement of the Court, the Hon'ble Minister heading MoUD directed the constitution of the Committee with the following terms:.....”

Respondents argue that the context here was different, as the Hon'ble High Court was already seized of the issue regarding the validity of the process adopted by DMRC including the transparency and fairness of the process of evaluation of the bids was sub judice before the High Court of Delhi despite that Government appointed a Committee to test the evaluation of bids. Therefore, the Hon'ble Supreme Court observed that Government should not have appointed the Committee.

(iv) Judgement of the Hon'ble Supreme Court in **Jacob Puliyel v. Union of India**

{2022 (3) KLT SN 55(Case No.43) dated 02.05.2022:-

“21. We shall now proceed to analyse the precedents of this Court on the ambit of judicial review of public policies relating to health. It is well settled that the Courts, in exercise of their power of judicial review, do not ordinarily interfere with the policy decisions of the executive unless the policy can be faulted on grounds of mala fide, unreasonableness, arbitrariness or unfairness etc. Indeed, arbitrariness, irrationality, perversity and mala fide will render the policy unconstitutional (Ugar Sugar Works Ltd. v. Delhi Administration (2001) 3 SCC 635 :: 2001 ICO 211. It is neither within the domain of the courts nor the scope of judicial review to embark upon an enquiry as to whether a particular public policy is wise or whether better public policy can be evolved. Nor are the courts inclined to strike down a policy at the behest of a petitioner merely because it has been urged that a different policy would have been fairer or wiser or more scientific or more logical (Villianur Iyarkkai Padukappu Maiyam v. Union of India (2009) 7 SCC 561:: 2009 ICO 1155). Courts do not and cannot act as appellate authorities examining the correctness, suitability and appropriateness of a policy, nor are courts advisors to the executive on matters of policy which the executive is entitled to formulate. The scope of judicial review when examining a policy of the Government is to check whether it violates the fundamental rights of the citizens or is opposed to the provisions of the Constitution, or opposed to any statutory provision or manifestly arbitrary (Directorate of Film Festivals v. Gaurav Ashwin Jain (2007) 4 SCC 737 :: 2007 ICO 1911).”

“23.....It was further held therein that the policy decision is subject to judicial review on the following grounds:-

- (a) if it is unconstitutional
- (b) if it is de hors the provisions of the Act and the regulations
- (c) if the delegatee has acted beyond its power of delegation

(d) if the executive policy is contrary to the statutory or a larger policy”

(v) Judgement of the Hon'ble High Court of Punjab and Haryana in **Suchalal v.**

The Punjab State Power Corporation Ltd. and others dated 19.09.2022:-

"Findings

(13) In the case in hand, the petitioner has not alleged that impugned Regulation has been framed by an incompetent authority or it is violative of any provision of Constitution other than Article 14 or it is contrary to any particular provision of 1948 Act under which Regulation has been framed. The only bald averment and contention of petitioner is that impugned Regulation is arbitrary. It is settled proposition of law that any action whether executive or Legislative, which is arbitrary is violative of Article 14 because arbitrariness and reasonableness are sworn enemies. Reasonableness is facet of fundamental right of equality before law as well as rule of law which governs our nation. A provision cannot be declared invalid merely on assertion that it is arbitrary. The petitioner has miserably failed to point out that as to how impugned Regulation is violative of Constitution of India or 1948 Act or it is arbitrary.

(14) Applying the afore-stated judgments, we are of the considered opinion that petitioner has failed to point out any infirmity in the impugned Regulation which could compel us to declare the impugned Regulation invalid. Even otherwise, it is settled proposition of law that Legislature knows the need of its people and Courts must be loath in interfering in Legislative and policy matters. Burden lies upon a person who claims any provision invalid. The Courts are supposed to presume alleged provisions are constitutional and valid. It is duty of the person who challenges validity of the provision to prove that provision is unconstitutional....."

Question No.2: Whether impugned circular is retrospective and

has violated rights of the petitioner?

15.1) From the reading of mandate of aforesaid judgments, it is quite evident that rules framed by Legislature may be prospective as well retrospective. There is no bar in framing rules/regulations with retrospective effect provided the rules are not abridging vested or fundamental rights of parties concerned and length of retrospective is unreasonable. It is also evident that conditions of service which include avenues of promotion may be changed. The appointment of an employee may at the first instance be outcome of a contract, however, as soon as an employee is appointed, he holds a status and is governed by rules and regulations applicable to post held by employee concerned. A rule which operates in futuro so as to govern future rights of those already in service cannot be assailed on the ground of retroactivity as being violative of Article 14 and 16 of the Constitution. A rule cannot deprive an employee from promotion which he has already got. As soon as an employee is promoted, right accrues and by way of retrospective amendment he cannot be demoted.

Question Nos.(iii); Whether promotion is vested right of an employee? And (iv) Whether employer can change criteria of eligibility of a post?

(16) Question Nos.(iii) and (iv) are inter-twined, thus, are adjudicated jointly

In Chairman, Railway Board and others vs. C.R. Rangadhamaiah and others: Hon'ble Supreme Court held :-

16. It is no doubt true that once a person joins service under the Government the relationship between him and the Government is in the nature of status rather than contractual and the terms of his service while he is in employment are governed by statute or statutory rules, which may be unilaterally altered without the consent of the employees. It has been so held by this Court in Roshan Lal Tandon (supra) and State of Jammu & Kashmir v. Triloki Nath Khosa, [1974] 1 SCR at pp. 779, 780. It may, however, be mentioned that in Roshan Lal Tandon (supra) the petitioner was invoking his rights under the contract

of service and the said contention was rejected by the Court with the observations: "We are therefore of the opinion that the petitioner has no vested contractual right in regard to the terms of his service and that the counsel for the petitioner has been unable to make good his submission on this aspect of the case." (p. 196) (emphasis supplied).

*"20.....In **Roshan Lal Tandon and another versus Union of India and another** {AIR 1967 SC 1889}, a five Judge Bench of Hon'ble Supreme Court while dealing with validity of a notification issued by Railway Board in so far as it granted protection to the existing Apprentice Train Examiners and laid down the procedure to fill upgraded vacancies, has opined that origin of government service is contractual. There is an offer and acceptance in every case. But once appointed to his post or office the Government servant acquires a status and his rights and obligations are no longer determined by consent of both parties, but by statute or statutory rules which may be framed and altered unilaterally by the Government... In other words, the legal position of a Government servant is more of status than of contract. The hall-mark of status is the attachment to a legal relationship of rights and duties imposed by the public law and not by mere agreement of the parties. The emoluments of the Government servant and his terms of service are governed by statute or statutory rules which may be unilaterally altered by the Government-without the consent of the employee. It is true that Article 311 imposes constitutional restrictions upon the power of removal granted to the President and the Governor under Article 310. But it is obvious that the relationship between the Government and its servant is not like an ordinary contract of service between a master and servant. The legal relationship is something entirely different, something in the nature of status. It is much more than a purely contractual relationship voluntarily entered into between the parties. The duties of status are fixed by the law and in the enforcement of these duties society has an interest. In the language of jurisprudence status is a condition of membership of a group of which powers and duties are exclusively determined by law and not by*

agreement between the parties concerned.

A two Judge Bench of Hon'ble Supreme Court in a little recent judgment in **Union of India and others versus Krishna Kumar and others** {2019(4) SCC 319}, after noticing its earlier judgments in **Deepak Aggarwal versus State of U.P.** {2011(6) SCC 725} and **State of Tripura versus Nikhil Ranjan Chakraborty** {2017 (3) SCC 646} has concluded that right to be considered for promotion accrues on the date of consideration of the eligible candidates. There is no rule of universal or absolute application that vacancies are to be filled invariably by the law existing on the date when the vacancies arose. A candidate has right to be considered in the light of existing rules which implies 'rule in force' on the date the consideration takes place. In the absence of mandate that vacancy must be filled invariably by the law existing on the date when vacancy arose, no right accrues in favour of an employee and State has right to stipulate that vacancy shall be filled in accordance with amended rules

From the perusal of judgments of Hon'ble Supreme Court in *Yogendra Shrivastava*, *T.R.Kapur*, *Raman Lal Keshav Lal Soni*, *C.R. Rangadhamaiah*, *Wing Commander J. Kumar*, *Roshan Lal Tandon* and *Krishna Kumar*, it can be culled out that an employee may be appointed against a contract, however, as soon as an employee is appointed, he acquires a status and his right and obligations are no longer determined by consent of both parties but by statute or rule made thereunder which may be altered unilaterally by the government. The right of seniority or promotion do not accrue on the basis of rules and regulations applicable on the date of joining of an employee whereas rules and regulations which are in force at the time of consideration of promotion are applicable. The service conditions pertaining to seniority are always liable to alteration. An employee who has already been promoted can claim his right as accrued right whereas no employee has right to claim his right as a vested or accrued right unless he has already been promoted. The rules/regulations existing on the date of consideration for promotion are applicable, thus, no right on the basis of rules existing on the date of joining of an employee or arising of vacancy accrues or can be claimed."

(17) In view of above observations, we hold:

(i) Impugned circular No. 10/2012 dated 4.10.2012

(Annexure P-2) is neither violative of Article 14 of Constitution of India nor any provision of 1948 Act read with Regulations made thereunder.

(ii) The impugned Regulation is not retrospective.

(iii) Promotion is not right of an employee and he cannot challenge change of criteria of promotion unless he has already been promoted and there is retrospective amendment."

7. Learned counsel for the official respondents relied on the judgement of the Hon'ble Supreme Court in **M/s Gammon India Ltd. v. Commissioner of Customs, Mumbai**{ 2011(12) SCC 499} dated 06.07.2011:-

"24. Before parting, we wish to place on record our deep concern on the conduct of the two Benches of the Tribunal deciding appeals in the cases of IVRCL Infrastructures & Projects Ltd. (supra) & Techni Bharathi Ltd. (supra). **After noticing the decision of a co-ordinate Bench in the present case, they still thought it fit to proceed to take a view totally contrary to the view taken in the earlier judgment, thereby creating a judicial uncertainty with regard to the declaration of law involved on an identical issue in respect of the same Exemption Notification. It needs to be emphasised that if a Bench of a Tribunal, in identical fact-situation, is permitted to come to a conclusion directly opposed to the conclusion reached by another Bench of the Tribunal on earlier occasion, that will be destructive of the institutional integrity itself. What is important is the Tribunal as an institution and not the personality of the members constituting it.** If a Bench of the Tribunal wishes to take a view different from the one taken by the earlier Bench, the propriety demands that it should place the matter before the President of the Tribunal so that the case is referred to a larger Bench, for which provision exists in the Act itself. In this behalf, the

following observations by a three Judge Bench of this Court in Sub-Inspector Rooplal & Anr. Vs. Lt. Governor & Ors. are quite apposite:

"At the outset, we must express our serious dissatisfaction in regard to the manner in which a Coordinate Bench of the Tribunal has overruled, in effect, an earlier judgment of an-other Coordinate Bench of the same Tribunal. This is op-posed to all principles of judicial discipline. If at all, the subsequent Bench of the Tribunal was of the opinion that the earlier view taken by the Coordinate Bench of the same Tribunal was incorrect, it ought to have referred the matter to a larger Bench so that the difference of opinion between the two Coordinate Benches on the same point could have been avoided. It is not as if the latter Bench was unaware of the judgment of the earlier Bench but knowingly it proceeded to disagree with the said judgment against all known rules of precedents. Precedents which enunciate rules of law form the foundation of administration of justice under our system. This is a fundamental principle which every presiding officer of a judicial forum ought to know, for consistency in interpretation of law alone can lead to public confidence in our judicial system. This Court has laid down time and again that precedent law must be followed by all concerned; deviation from the same should be only on a procedure known to law. A subordinate court is bound by the enunciation of law made by the superior courts. A Coordinate Bench of a Court cannot pronounce judgment contrary to declaration of law made by another Bench. It can only refer it to a larger Bench if it disagrees with the earlier pronouncement."

We respectfully concur with these observations and are confident that all the Courts and various Tribunals in the country shall follow these salutary observations in letter and spirit.

8. Examination of issues for adjudication:-

8.1 All India Transfer liability:-

- (i) The applicants primarily take recourse to Recruitment notification of ESIC of the year 2011 (Annexure-A1 in OA 252/2025), which is reproduced below:-

“The vacancies are in various ESIC Hospitals of the ESI Corporation of the State. Those candidates who are willing to accept the posting anywhere specified in the State and are willing to be transferred in any part of India on promotional posts, as per policy of ESIC, need apply. The candidates so appointed for the above mentioned posts shall be appointed in the State for which application is submitted and are liable to be transferred in any Medical Institution/Establishment/SSMC Office in that State and also liable to be transferred in any part of India on promotional posts as per policy of ESI Corporation.”

As per this recruitment notification the candidates are to be posted anywhere only in the State and liable to transfer in any part of India on promotion posts elsewhere as per policy of ESIC. Whereas official respondents state that as per the appointment order duly accepted by these applicants they have all India transfer liability as per clause 4 and 11 of their appointment offers (Annexures-A2 and A-3 of OA No.252/2025):-

“4. He/She will be governed by the Employees' State Insurance Corporation (Staff and Conditions of Service) Regulations 1959, as amended from time to time.”

“11. He/She will be posted to any of the hospitals under the ESIC

in the State of Kerala for the present. However, he/she is liable to be transferred to any other hospital of the ESI Corporation in the country during his/her service in the ESI Corporation.”

The above makes it abundantly clear that offer of appointments incorporated all India transfer liability clause since the very beginning of their appointment and appointees were required to abide by ESIC (Staff and Conditions of Service) Regulations 1959 as amended from time to time. We also note that ESIC (Staff and Conditions of Service) Regulations 1959 has been amended through gazette notification dated 12.06.2023 bearing No. Z-24/14/1/2020-DPC (E.I), issued.

In exercise of the powers conferred by sub-section (1) of section 97 read with clause (xxi) of sub-section (2) and sub-section (2A) of that section and sub-section (2) of section 17 of the Employees' State Insurance Act, 1948 (34 of 1948), and in supersession of the Employees' State Insurance Corporation (Staff and Conditions of Service) Regulations, 1959, except as respects things done or omitted to be done before such supersession, the Employees' State Insurance Corporation, hereby makes the following regulations, namely:-

1. Short title and commencement. (1) These regulations may be called the Employees' State Insurance Corporation (Staff and Conditions of Service) Regulations, 2023.

(2) They shall come into force on the date of their publication in the Official Gazette.

It is also noted by us that ESIC (Nursing Officers, Sr. Nursing Officers,

Assistant Nursing Superintendent)(Recruitment Rules 2020) dated 19.10.2020 in supersession of ESIC Nursing Cadre posts Recruitment Rules 2010, No. A-12/11/1/RR-N.S./2017-Med.-VI, issued-

In exercise of the powers conferred by sub-section (1) of section 97, read with clause(xxi) of sub-section (2) and sub-section (2A) of the said section and sub-section (2) of section 17 of the Employees' State Insurance Act. 1948 (34 of 1948) and in supersession of the Employees State Insurance Corporation (Nursing cadres/Posts), Recruitment Regulations, 2010 in so far as they relate to the post of Staff Nurse, Nursing Sister and Assistant Nursing Superintendent, excepts as respects things done or omitted to be done before such supersession, the Employees' State Insurance Corporation hereby makes with the approval of the Central Government, the following regulations regulating the method of recruitment to the post of Nursing Officer, Senior Nursing Officer (erstwhile Staff Nurse and Nursing Sister respectively) and Assistant Nursing Superintendent in Employees' State Insurance Corporation, namely:-

Above are the application Rules and Regulations as of now.

(ii) The plea of the applicants that by virtue of change in nomenclature and re-classification of Nursing cadre officers, all India transfer liability is being imposed on them.

The above arguments is not sustainable in view of all India Transfer liability was incorporated in their appointment memorandum and expressly, appointees were directly to the effect that they would be governed by ESIC Regulations 1959 as amended from time to time.

(iii) Employees' State Insurance Corporation (Staff and Conditions of Service)

Regulations 1959 itself provides as under:-

2. *Definitions- In the regulations, unless the context otherwise requires-*

(e) **"Employee"** means a person appointed to or borne on the cadre of the staff of the Corporation;

(g) **"Post"** means a post under the Corporation and a post shall be deemed to be a post in Class I, Class II, Class III or Class IV, according as such post is specified in Class I, Class II, Class III or Class IV in the First Schedule;

(i) **"Service"** means a service under the Corporation;

4. *Appointing Authority- All appointments to posts shall be made by the Director General: Provided that the Standing Committee or the Director General may, by general or special order, delegate to any other authority or officer of the Corporation, powers to make appointments to any post or class of posts other than posts in Class I and Class II.*

8. (5) *The following terms occurring in the Central Government rules aforesaid shall have the meanings as assigned below to them in their application to the employees of the Corporation*

(v) (a) **"Government Service"** means service in the Corporation,

(b) **"Government servant"** means an employee of the Corporation.

(vi) **"Head of Department"** means the Director General, Employees' State Insurance Corporation,

9. *Control and Discipline - All employees of the Corporation shall be subject to the superintendence and control of the Director General and shall be governed by such rules of conduct, discipline and control as hereinafter provided or as the Director General may, from time to time, by general or special order, specify.*

12. *Disciplinary Authorities:-*

(1) *The Director General may impose any of the penalties specified in regulation 11 on any employee.*

(2) *Without prejudice to the provisions of sub-regulation(1) but subject to the provisions of sub-regulation(3), any of the penalties specified in regulation 11 may be imposed on any employee by the appointing authority or the authority specified in this behalf by a general or special order of the Director General.*

24. *Other Conditions of Service:- In respect of all other matters relating to the conditions of service of employees, for which no provision or insufficient provision has been made in these regulations, the rules applicable from time to time to the corresponding category of Central Government servants shall apply, subject to such modifications and variations or exceptions, if any, as the Director General may, with the approval of the Standing Committee, by order from time to time, specify.*

The plea of the applicants {Group (i),(ii) and (iii)} that they were appointed at regional level by Regional Directors, therefore, they are liable to serve within the region, also does not hold as Regional Directors were exercising merely delegated authority, drawn from Director General.

(iv) The applicants submit that Transfer Policy and Recruitment Rules 2020 can be made applicable only to the employees who have joined in service after 2020. The applicants who already joined in service in the year 2012 are bound by the Rules while entering service and they are not bound by the Transfer Policy which are subsequently notified and that can be made applicable only to persons who have been appointed after the notification of Recruitment Rules 2020.

Drawing from the judgement of the Hon'ble High Court of Punjab and Haryana in **Suchalal v. The Punjab State Power Corporation Ltd. and others** dated 19.09.2022 {2022(2) ILR Punjab and Haryana 1452} (*Supra*) we find no merit in the arguments of the applicants (except in OA No.552/2025). They are as stated above, the applicants are governed by the Rules in force at that point of time.

(v) Applicants in OA No.552/2025 submit that they are directly recruited to the posts that expressly carried all India transfer liability under appointment order. We find in their offer of appointment similar clause regarding their service, as governed by terms and conditions of service as laid down by

Regulations 1959 and as amended from time to time and initial order of appointment at ESIC hospital, Andheri but liable to be transferred anywhere in India.

(vi) From the above rival submission we hold that applicants who were directly recruited by ESIC have all India transfer liability. The clause to that effect was incorporated in their offer of appointment which takes precedence over recruitment notification and they are governed by ESIC Regulations as amended from time to time, which are in force as now.

8.2 All India Transfer liability of the applicants who were absorbed by ESIC, following take over of few ESI hospitals in Kerala by ESIC:-

(i) Group(ii) of employees who are Nursing Officers, were absorbed by ESIC following takeover of ESIC hospitals in Kerala plead that new Transfer Policy dated 17.12.2024 introduced all India transfer liability which is in direct contravention of the terms and conditions of absorption and option submitted by the applicants as contended in Annexure-A1 (of OA No.500/25). Relevant paragraphs 4, 5 and 10 of the terms of absorption are reproduced below:-

“4. Seniority of an employee absorbed in the Corporation will be determined either from the date from which one holds the post on

deputation or from the date one holds the post in equivalent grade on regular basis in the State Govt. service, whichever is earlier. Seniority of two or more State Govt. employees absorbed in the Corporation service would however, be fixed as per the seniority existing in the State Govt prior to their absorption. **Before absorption an employee will be free to opt for separate institutional seniority ie. seniority only for the particular hospital. In this case they will not be transferred outside the hospital even after absorption and the promotions will be based on the institutional seniority only subject to the vacancy in the hospital OR the individuals can also opt to be part of all India seniority, in which case they will be liable for all India transfer and all India promotional avenues.** If opting for institutional seniority, the all India posts and cadres to which they will not be eligible for promotion will be the Medical Superintendent of the Hospital and all officers in the pay scale of Rs.14300-18300 (current NFSG scale).

5. Employees on absorption would continue to work at ESIC Model Hospital_____ at the discretion of the Corporation, but they would be under all India transfer liability except for those who have opted for institutional seniority as stated in para 4 above.

10. An official on absorption in ESI Corporation service will be governed by ESIC (Staff & Conditions of Service) Regulations, 1959 as amended from time to time.”

As per the absorption order dated 30.03.2021 (Annexure-A2, OA 500/2025 produced by the applicants in this OA were required to submit an undertaking vide Annexure-A1 to Hqrs ESIC Office Order No.4/2021 (F.No.C-18/11/19/11/UM-Med.Integ.(Misc) dated 30.03.2021) where it was categorically stated in paragraph 5 that “.....Their failure to submit the undertaking in prescribed

proforma within 5 days from the date of receipt of this order will be taken as their unwillingness for absorption in ESIC and the offer for absorption shall stand lapsed. Consequently, immediate action will be initiated for their repatriation in respective parent department under Govt. of Kerala. If any employee feels that the conditions offered for absorption are less beneficial for them, they have the option to go back to their parent department and ESIC has not obstructed the way for their repatriation to Govt. of Kerala services.

The 'Undertaking' also included the following:-

“I, undertake to be abide by the decisions of the Corporation taken in its 174th (Agenda Item No. 4 & Sy. Agenda Item 9) and 175th meeting (Sy. Agenda Item No. 2) to regulate seniority of different category of staff.

I also undertake and accept that I shall be placed in All India Seniority if the analogous post offered to me and accepted by me is placed in Group B or Group A as applicable to directly recruited employee of the Corporation”

Having taken absorption voluntarily with above conditions, we find no merit in their argument regarding imposition of all India Transfer liability by New Transfer Policy at this point of time. It is also brought to our notice that the employees have already switched over to State seniority in terms of ESIC letter dated 06.08.2018 (Annexure R-14I in OA 500/2025). From the above we find there is no restrictive clause in their terms of absorption (Annexure-A1),

order of absorption (Annexure-A2) which supports their contention that they had no all India transfer liability.

8.3 Validity of Transfer Policy issued in the year 2022 and 2024 and its judicial review, identification of sensitive post, change of nomenclature and classification of nursing cadre officers:-

(i) The contentions of Group (i), (ii) and (iii) regarding new Transfer Policy rests on the following;-

(a) The Transfer Policy-2022 was pending consideration of this Tribunal in OA No.34/2023 and connected cases. While it stood for hearing on the disposal list on 04.02.2025, as per the order dated 03.12.2024 the official respondents published the new Transfer Policy on 17.12.2024 overlooking pendency of the OAs as well as the undertaking made before this Tribunal. The respondents also failed to consider the objections raised by the applicants in the pending OA while issuing the new Transfer Policy 2024.

(b) All India transfer liability which is likely to impact their promotion prospects as Nursing Officers who joined later than them in other States and got promoted prior to them, on account of pendency of multiple litigation in various

judicial fora in respect of seniority issues concerning applicants under Group (i), (ii) and (iii) employees, will come on transfer to Kerala and will occupy promotional posts thereby diminishing their chances of promotions.

(c) Through this new Transfer Policy, all India transfer liability has been introduced which is against recruitment notification and terms of absorption in case of Nursing Officers who were absorbed by ESIC.

(d) Certain provisions of Transfer Policy like lack of grievance redressal mechanism, immediate relieving as and when transfer order issued, policy permitting 365 days of transfer as a general rule, overlooking of Transfer Committee recommendations by administrative authority without assigning any reason etc.

(ii) The respondents drew our attention to Sec. 19(4) of the Administrative Tribunals Act, which does not debar it from issuing a new Transfer Policy of year 2024, only further action under Transfer Policy of year 2022 are expected to be kept on hold. Sec.19(4) is reproduced below:-

“19(4) Where an application has been admitted by a Tribunal under sub-section (3), every proceeding under the relevant service rules as to redressal of grievances in relation to the subject-matter of such application pending immediately before

such admission shall abate and save as otherwise directed by the Tribunal, no appeal or representation in relation to such matter thereafter be entertained under such rules.”

We find merit in the submission of the official respondents.

Respondents cited the judgment of Hon'ble Supreme Court in **Reserve Bank of India and Ors. v. N.C. Paliwal and others-** {(1976 4 SCC 838}, **Directorate of Film Festivals and others v. Gaurav Ashwin Jain and others-**{2007 (4) SCC 737} dated 11.04.2007 and the judgement of the Hon'ble Supreme Court in **Jacob Puliye v. Union of India** {2022 (3) KLT SN 55(Case No.43) dated 02.05.2022 wherein it was held that :-

*“21.....It is well settled that the Courts, in exercise of their power of judicial review, do not ordinarily interfere with the policy decisions of the executive unless the policy can be faulted on grounds of mala fide, unreasonableness, arbitrariness or unfairness etc. Indeed, arbitrariness, irrationality, perversity and mala fide will render the policy unconstitutional (Ugar Sugar Works Ltd. v. Delhi Administration (2001) 3 SCC 635 :: 2001 ICO 211. **It is neither within the domain of the courts nor the scope of judicial review to embark upon an enquiry as to whether a particular public policy is wise or whether better public policy can be evolved. Nor are the courts inclined to strike down a policy at the behest of a petitioner merely because it has been urged that a different policy would have been fairer or wiser or more scientific or more logical**(Villianur Iyarkkai Padukappu Maiyam v. Union of India (2009) 7 SCC 561:: 2009 ICO 1155). Courts do not and cannot act as appellate authorities examining the correctness, suitability and appropriateness of a policy, nor are courts advisors to the executive on matters of policy which the executive is entitled to formulate. The scope of judicial*

review when examining a policy of the Government is to check whether it violates the fundamental rights of the citizens or is opposed to the provisions of the Constitution, or opposed to any statutory provision or manifestly arbitrary (Directorate of Film Festivals v.Gaurav Ashwin Jain (2007) 4 SCC 737 :: 2007 ICO 1911)."

"23.....It was further held therein that the policy decision is subject to judicial review on the following grounds:-

- (a) if it is unconstitutional*
- (b) if it is de hors the provisions of the Act and the regulations*
- (c) if the delegatee has acted beyond its power of delegation*
- (d) if the executive policy is contrary to the statutory or a larger policy"*

(iii) We find that the Transfer Policy has been issued with the approval of the competent authority and falls within the provision of the Act, ESIC (Staff and Conditions of Service) Regulations 1959 and ESIC (Nursing Officers, Sr. Nursing Officers, Assistant Nursing Superintendent)(Recruitment Rules 2020). The Transfer Policy does not violate statutory rules and has been issued to achieve the stated objectives as enumerated under para 2 of the policy. No provision of the Transfer Policy is considered to be discriminatory or issued with any malafide.

As opposed to the contention of the applicants regarding round the year transfer, para 5(c) of the Transfer Policy states that transfer/posting under the Annual General Transfers (AGT) will be conducted once in a year and shall be

implemented in two rounds as indicated in clause 6 of the policy. As per para 6(b) of New Transfer Policy 2024, during the second round, after issuing AGT (Annual General Transfer) orders, mutual request transfer of Nursing Officers besides new vacancies that might have arisen after 1st round transfer are also to be considered. There is a provision of a Transfer Committee comprising senior officials of ESIC, tasked with recommending transfers and postings in accordance with the parameters outlined in the policy. Though it includes a clause that any employee can be transferred at any time during the year on account of public interest or administrative exigencies with the approval of the competent authority, which is expected to be exercised only in exceptional cases.

The apprehension of applicants under Group (i), (ii) and (iii) regarding sweeping reach of para 10(d) of Transfer Policy regarding powers of competent authority to approve/reject or modify the recommendations of Transfer Committee is considered misplaced as these powers are to be exercised by the competent authority in terms of para 10(e), which lays guidelines for exercising such powers.

Another contention of the applicant that the Transfer Policy provides for

immediate relieving from his or her place of posting and there is no redressal mechanism included in the Transfer Policy, as it was available in 2022 policy. We find the new Transfer Policy 2024 provides for prescribed joining time and retention of corporate accommodation /lease accommodation till the end of academic session if any child is studying at the previous station or spouse is employed at that station. We note provisions for grievance redressal do exist in statutory rules- ESIC (Staff and conditions of service) Regulations 2023 under clause 17(iv). **However we observe that inclusion of adequate grievance redressal mechanism would have alleviated the anxiety of the applicants. But on that ground new Transfer Policy cannot be invalidated as can be inferred from judgements of Hon'ble Supreme Court (supra).**

ESIC (Staff and Conditions of Service) Regulations 1959, clearly states under Rule 9 that all the employees of ESIC shall be under the control and superintendence of the Director General. The specific provision read as under:

“9 Control and Discipline- All employees of the Corporation shall be subject to the superintendence and control of the Director General and shall be governed by such roles of conduct, discipline and control as hereinafter provided or as the Director General may from time to time, by general or special order, specify.”

This provision clearly establishes that the Director General of ESIC is vested with the authority to issue, modify and implement policies, including transfer policies, in the interest of administrative efficiency and organizational requirements.

The apprehension of the applicant that large scale transfers from outside Kerala to State of Kerala is unfounded as the Transfer Policy itself limits the total number of transfers to be carried out in a transfer year will be limited upto 10% of total in-position strength of Nursing Cadre Employees in a unit.

(iv) It was also brought to our notice that similar matter before this Tribunal's Bangalore Bench in OA No.170/654/2023 in which applicants therein had challenged the Transfer Policy dated 17.12.2024. The Tribunal vide its order dated 18.11.2025 held as follows:

*"8. We are not inclined to adjudicate on the challenge made to the Transfer Policy dated 17.12.2024 (Annexure A42) issued by the 3rd Respondent, mainly for the reason that no transfer orders issued to the applicants are challenged herein. Transfer order affecting the rights of the applicants being *sine qua non*, in the absence of challenge to the transfer order, there is no cause of action for the applicants to challenge the Transfer Policy. Transfer Policy cannot be challenged in vacuum. Transfer Policy being a guideline, no direct infringement on a specific individual's legal right could be inferred unless it is translated into action with a specific transfer order. Hence, the OA is premature and is not maintainable.*

10. *There is no cavil on the well settled legal proposition that when a statute requires a particular thing to be done in a particular manner, it must be done in that manner or not at all, (Vide Taylor vTaylor (1875) LR 1 Ch D 426 approved by the Hon'ble Apex Court in Rao Shiv Bahadur Singh v. State of Vindhya Pradesh, (1954) 1 SCC 296), followed by Hon'ble Apex Court in catena of judgments referred to, in Rajat Infrastructure Private Limited and others, supra. Judicial review of the transfer policy would be permissible only in the event of the grievance of the applicants is put forth adversely affected by their transfer based on the impugned Transfer Policy not otherwise.*

11. *Hence by way of collective action, no blanket order could be claimed. There being no scope for us to analyse the legality of the impugned Transfer Policy sans any cause of action shown by the applicants, this application deserves to be dismissed. Moreover, the impugned Transfer Policy relates to transfer/posting of Group 'A' and 'B' Nursing and Para-Medical cadre employees having All India Service transfer liability in ESIC. The said policy is not challenged in its entirety. The challenge is based on lack of competency/approval of the competent authority, but is confined to prescribing the All India transfer of Group 'B' officers who have completed the tenure of 9 years. Acceptance of the transfer policy with respect to the other guidelines, if assumed to be valid notwithstanding such incompetency, the same cannot be construed as invalid only with respect to one aspect, merely on the ground of inconvenience caused to some of the employees."*

The official respondents cited the judgement of the Hon'ble Supreme Court in **M/s Gammon India Ltd. v. Commissioner of Customs, Mumbai**{ 2011(12) SCC 499} dated 06.07.2011

“24.....After noticing the decision of a co-ordinate Bench in the present case, they still thought it fit to proceed to take a view totally contrary to the view taken in the earlier judgment, thereby creating a judicial uncertainty with regard to the declaration of law involved on an identical issue in respect of the same Exemption Notification. It needs to be emphasised that if a Bench of a Tribunal, in identical fact-situation, is permitted to come to a conclusion directly opposed to the conclusion reached by another Bench of the Tribunal on earlier occasion, that will be destructive of the institutional integrity itself. What is important is the Tribunal as an institution and not the personality of the members constituting it.....”

We also concur with the view of the Bangalore Bench of this Tribunal. No transfer orders have been issued involving any of the applicant (except OA No.552/2025). They only have an apprehension that implementation of the Transfer Policy is likely to impact their seniority and their promotion prospects. Transfer Policy as such does not deal with issue of seniority and/or promotion. On that ground itself challenge to the Transfer Policy is premature and not maintainable.

(v) **Identification of sensitive posts:-** Applicants have challenged circular dated 14.12.2024 (Annexure-A14 in OA No.252/2025), which includes Nursing Officers in the list of sensitive posts . On an examination of the circular it is observed that this has been issued with the approval of the Director General,

ESIC who is the competent authority and sensitive posts have been identified on the basis of the recommendations of the Committee constituted for the said purpose. As per Annexure-B of the circular, all Nursing Officers posted in OT, Ward and Ward Stores/ any such critical areas have been included in the list of sensitive posts. It cannot be faulted with.

(vi) **Change of nomenclature and classification of Nursing cadre officers:-**

Applicants in OA No.14/2023 have challenged the order dated 10.12.2020 incorporating change of nomenclature and classification for the posts of Staff Nurse, Nursing Sister and Assistant Nursing Superintendent in ESI Corporation. On examination, we find that this order has been issued pursuant to notification of the revised Recruitment Rules 2020, which has not been challenged. These rules and regulations have been issued by the competent authority under the powers vested in the Act. Therefore, challenge to this order (Annexure-A12 in OA No.14/2023) is not sustainable.

8.4 (i) Circular calling for one time option dated 14.04.2025 and subsequent transfer order-validity:- Applicants {Group (i), (ii) and (iii)} have challenged transfer order dated 14.07.2025 issued following the circular calling

for one time option dated 14.04.2025 and 25.04.2025. The applicants contention is that it is in violation of this Tribunal's interim order dated 25.06.2025 in OA No.46/2025. The Tribunal's order dated 25.06.2025 is reproduced below:-

*“Instructions are still not available from the ESI Corporation. Having noticed the anxiety of the applicants that they are sought to be transferred throughout India by the new policy, we are inclined to direct the respondents to maintain the status quo in relation to Annexure A-19 transfer policy till the next posting date. Ordered accordingly.
Post on 13.08.2025”*

Respondents claim that the status quo pertains exclusively to Transfer Policy dated 17.12.2024. The transfer order dated 14.07.2025 has been issued under the one time option scheme circular dated 14.04.2025 and 25.04.2025, which was not covered by the above status quo direction. Moreover, no applicant in these OAs (except OA No.552/2025) was transferred out of their station pursuant to the one time option circular. Therefore, the applicants plea prohibiting official respondents from effecting transfer under the scheme is incorrect and legally untenable. The argument of the official respondents is sustainable.

(ii) The applicants also claim that the circular was not issued by the competent authority, it has been issued with the signature of Deputy Director

and does not have the approval of the competent authority i.e. Director General. During the course of oral hearing, the official respondents put up for our perusal the e-file noting {File No. Z-11011/9/2024-MED-VI (Computer No.849968)}, in which it was observed that the said circular has been issued after the approval of the Director General vide his noting dated 11.04.2025. We also note that this transfer order dated 14.07.2025 under the one time option has been issued with the approval of the Director General, which is specifically mentioned in the order itself. We observe that through this circular, one time option has been provided especially to nursing officials covered under DoPT guidelines (compassionate ground/EWD/ medical illness, spouse ground etc.) to address their long pending demand. The circular afforded one time opportunity in a transparent manner, to all nursing officers, irrespective of the region, including applicants. **Therefore, it cannot be held that it is discriminatory or abuse of power by respondents to scuttle their chances of promotion. Accordingly, the circulars and the transfer order following it are considered valid.**

We also observe, by this Tribunal's order dated 12.12.2025, we had clarified that interim order dated 25.06.2025 will not stand on the way of making appointment of newly recruited candidates in the post of Nursing Officers. In terms of transfer order dated 14.07.2025 under one time option circular,

applicants in OA No.552/2025 can be relieved from their current place of posting after joining of newly recruited Nursing Officers.

8.5 Issue of likely impact on the seniority of the Nursing Officers/Senior Nursing Officers already working in Kerala, arising out of implementation of New Transfer Policy and One Time option circular and subsequent transfer order

dated 14.07.2025 :- The main contention of the applicants/Nursing Officers (except OA No.552/2025) is that it is likely to adversely impact their seniority and their promotional aspects.

(i) Their contention is that due to multiple seniority related litigation pending in various judicial fora for over a decade, they have not been promoted. Whereas Nursing Officers recruited in other States have already been promoted. If these Sr. Nursing Officers, who have already been promoted by virtue of their appointment in other States come on transfer to Kerala, they will become senior to them and they will occupy senior level posts diminishing their chances of promotions. We find that these applicants are also responsible to an extent for delay in their promotions owing to their seniority disputes and resultant protracted litigation at various levels.

Delay in their promotion due to multiple litigation/Court case prosecuted

by them over the year in this Tribunal, Hon'ble High Court and Hon'ble Supreme Court cannot be a justification to prevent transfer of other nursing cadre officers, applicants in OA No.552/2025 and other similarly placed nursing cadre officers, who earned their promotion legally and are under valid order of transfer.

(ii) Applicants have mainly relied on Annexure A-4 dated 11.07.2008 (in OA No.500/2025) which is with regard to Nursing Officers who were absorbed by ESIC in the State of Rajasthan and which is a communication to the Medical Superintendent, ESIC Model Hospital, Ajmer Road, Jaipur. Para 3 of the communication is reproduced below:

“3. Right of absorbees to higher posts:- As a basic principle, the absorbed employees will have first right of promotion to higher vacant posts in the Hospital. If, however, no eligible absorbed employee is available for promotion and the exigencies of service require the filling up of that post, it may be temporarily filled up by transfer from other Hospitals/Regional Office but such persons shall be treated as on, deputation and they will be reverted to their parent office after the absorbees become eligible for promotion”

We observe that Annexure-A4 is not in respect of absorption of applicants in these OAs instead it is in respect of erstwhile employees of Rajasthan who were absorbed by ESIC, the terms of which cannot be taken aid of by the applicants. Moreover this Annexure-A4 is in the form of guidelines to

other set of nursing officers who are not applicants here and guidelines do not have force of statutory rules. Evidently, Annexure-A1 draft terms of absorption as also Annexure-A2 order of absorption in respect of the applicants do not contain any such recital. In contrast to the recitals at Annexure-A4, Clause 10 of Annexure-A1 draft terms of absorption as regards the applicants contain the specific recital that *“an official on absorption in ESI Corporation service will be governed by ESIC (Staff and Conditions of Service) Regulations, 1959 from time to time.”*

It is also noted that an undertaking was furnished by Group (ii) Nursing Officers regarding acceptance of all India seniority and absorbed in terms of undertaking furnished by them.

In the light of the Apex Court judgement in **State of Himachal Pradesh v. Rajkumar** { (2023) 3 SCC 773}, the observation of the Apex Court is applicable in the instant case:-

'It is now a settled proposition of law that a candidate has a right to be considered in the light of the existing Rules, which implies the 'rule in force' as on the date consideration takes place. The right to be considered for promotion occurs on the date of consideration of the eligible candidates'

Flowing from which, the applicants who have not been actually promoted to the posts to Sr. Nursing Officers yet, they can neither claim seniority in the

State Posts from anterior date nor have any right to justify their claim for promotion, in terms of Rules and Regulations which no longer exist and have been superseded.

(iii) Judgement of the Hon'ble Supreme Court in **State of Himachal Pradesh v. Rajkumar** { (2023) 3 SCC 773}, findings and analysis is applicable in the subject matter:

"1.1.....Applying the said principles, we have held that the broad proposition formulated in **Rangaiah** does not reflect the correct constitutional position. We have thus allowed the appeals following the principles that we have laid down."

"9. It is in this background that the employment of a public servant is to be understood. **Though the relationship between the employee and the State originates in contract, but by virtue of the constitutional constraint, coupled with the legislative and executive rules governing the service, the relation attains a unique position. Identifying such a relationship as being a 'status', as against a contract, this Court in Roshan Lal Tandon v. Union of India (Roshan Lal Tandon v. Union of India 1968 (1) SCR 185), explained what such a 'status' constitutes. We have extracted hereinbelow the exposition of the concept of 'status' as explained by the Constitution Bench for ready reference.** In this case, the petitioner Roshan Lal Tandon was appointed as Train Examiner -Grade 'D'. At the time when he joined the service, the promotion to the next post in Grade 'C' was governed by certain rules which later came to be amended. Questioning the amendment, he contended that he had a right to be promoted to Grade 'C' when he joined the service and such a right could not have been altered by way of a subsequent amendment. Rejecting this argument, this Court explained the relationship of Government employment as a

'status' as under:

6. We pass on to consider the next contention of the petitioner that there was a contractual right as regards the condition of service applicable to the petitioner at the time he entered Grade 'D' and the condition of service could not be altered to his disadvantage afterwards by the notification issued by the Railway Board. It was said that the order of the Railway Board dated January 25, 1958, Annexure 'B', laid down that promotion to Grade 'C' from Grade 'D' was to be based on seniority cum suitability and this condition of service was contractual and could not be altered thereafter to the prejudice of the petitioner. In our opinion, there is no warrant for this argument. It is true that the origin of Government service is contractual. There is an offer and acceptance in every case. **But once appointed to his post or office the Government servant acquires a status and his rights and obligations are no longer determined by consent of both parties, but by statute or statutory rules which may be framed and altered unilaterally by the Government.** In other words, the legal position of a Government servant is more one of status than of contract. The hall - mark of status is the attachment to a legal relationship of rights and duties imposed by the public law and not by mere agreement of the parties. The emolument of the Government servant and his terms of service are governed by statute or statutory rules which may be unilaterally altered by the Government without the consent of the employee. It is true that Art.311 imposes constitutional restrictions upon the power of removal granted to the President and the Governor under Art.310. But it is obvious that the relationship between the Government and its servant is not like an ordinary contract of service between a master and servant. The legal relationship is something entirely different, something in the nature of status. It is much more than a purely contractual relationship voluntarily entered into between the parties. The duties of status are fixed by the law and in the enforcement of these duties, society has an interest...

7. **We are therefore of the opinion that the petitioner has no vested contractual right in regard to the terms of his service and**

that Counsel for the petitioner has been unable to make good his submission on this aspect of the case."

"36. Analysis:

A review of the fifteen cases that have distinguished Rangaiah would demonstrate that this Court has been consistently carving out exceptions to the broad proposition formulated in Rangaiah. The findings in these judgments, that have a direct bearing on the proposition formulated by Rangaiah are as under:

1. **There is no rule of universal application that vacancies must be necessarily filled on the basis of the law which existed on the date when they arose, Rangaiah's case must be understood in the context of the rules involved therein** (Deepak Agarwal v. State of U. P., 2011 (6) SCC 725, Para 26; Union of India v. Krishna Kumar, 2019 (4) SCC 319, Para 10).

2. **It is now a settled proposition of law that a candidate has a right to be considered in the light of the existed rules, which implies the "rule in force" as on the date consideration takes place. The right to be considered for promotion occurs on the date of consideration of the eligible candidates** (Deepak Agarwal v. State of U. P., 2011 (6) SCC 725, Para 26; Union of India v. Krishna Kumar, 2019 (4) SCC 319, Para 10).

3. **The Government is entitled to take a conscious policy decision not to fill up the vacancies arising prior to the amendment of the rules. The employee does not acquire any vested right to being considered for promotion in accordance with the repealed rules in view of the policy decision taken by the Government** (K. Ramulu v. Suryaprakash Rao, 1997 (3) SCC 59, Paras 12 and 13, Shyam Chandra Das v. State of Orissa, 2003 (4) SCC 218, Para 9, State of Punjab v. Arun Kumar Aggarwal, 2007 (10) SCC 402, Para 38; Deepak Agarwal v. State of U. P., 2011 (6) SCC 725, Para 28). There is no obligation for the Government to make appointments as per the old rules in the event of restructuring of the cadre is intended for efficient working of the unit (G. Venkateshwara Rao v. Union of India, 1999 (8) SCC 455, Para 4). The only requirement is that the policy decisions of the Government must be fair and reasonable and must be justified on the touchstone of Art. 14 (Rajasthan Public Service Commission v. Charan Ram, 1998 (4) SCC 202. Para 15: K.

Ramulu v. Suryaprakash Rao, 1997 (3) SCC 59, Para 15).

4. The principle in Rangaiah need not be applied merely because posts were created, as it is not obligatory for the appointing authority to fill up the posts immediately (In Delhi Judicial Services Association v. Delhi High Court, 2001 (5) SCC 145, Para 5).

5. When there is no statutory duty cast upon the State to consider appointments to vacancies that existed prior to the amendment, the State cannot be directed to consider the cases (Deepak Agarwal v. State of U. P., 2011 (6) SCC 725, Para 25)."

From the above judicial pronouncement and the facts of the cases, we conclude that mere apprehension of the applicants regarding likely impact on the seniority and chances of their future promotion in these OAs (except OA No.552/2025) do not justify quashing of new Transfer Policy 2024 and one time option circulars and subsequent transfer order dated 14.07.2025.

8.6 (i) On the basis of discussions, analysis and conclusions OA No.14/2023, OA No.92/2023, OA No.43/2025, OA No.46/2025, OA No.70/2025, OA No.252/2025, OA No.495/2025, OA No.497/2025, OA No.500/2025 and OA No.501/2025 fail and are dismissed. CP No.No.33/2025 in OA No.252/2025 is closed.

(ii) OA No.552/2025 is allowed and the respondents are directed to implement the transfer order (Annexure-A21) in respect of the applicants within

a period of 30 days from the date of receipt of copy of this order. No costs.

(Dated the 10th February, 2026.)

BRAJ MOHAN AGRAWAL)
ADMINISTRATIVE MEMBER

(JUSTICE K. HARIPAL)
JUDICIAL MEMBER

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Annexures OA No./180/14/2023

Annexure-A1: True photocopy of the notification issued by the 2nd respondent inviting applications for appointment to the post of Staff Nurse in the ESIC Hospital in different States including the State of Kerala.

Annexure-A2: True photocopy of the appointment order dated 05.09.2012 issued by the 4th respondent to the 1st applicant.

Annexure-A3: True copy of the: appointment order dated 05.09.2012 issued by the 4th respondent to the 2nd applicant.

Annexure-A4: True photocopy of the appointment order dated 05.09.2012 issued by the 4th respondent to the 3rd applicant.

Annexure-A5: True photocopy of the: appointment order dated 05.09.2012 issued by the 4th respondent to the 4th applicant.

Annexure-A6: True photocopy of the notification dated 01.01.2014 of the Government of India amended the Central Civil Services (Classification, Control and Appeal) Rules, 1965.

Annexure-A7: True photocopy of the order dated 12.01.2018 issued by the Head Quarters of the ESIC.

Annexure-A8: True photocopy of the amendment proposed to be introduced to the post of Staff Nurse.

Annexure-A9: True photocopy of the order dated 26.02.2018 in O.A. No. 180/199/2018 of the Central Administrative Tribunal, Ernakulam Bench.

Annexure-A10: True copy of the judgment dated 12.04.2018 in O.P. (CAT) No. 64/2018 of this Hon'ble High Court.

Annexure-A11: True photocopy of the Revised Recruitment Rules in the Gazette dated 11.12.2020.

Annexure-A12: True photocopy of the order F. No. A-12/11/1/RR-NS/2017-Med.VI dated 10.12.2020 of the 2nd respondent.

Annexure-A13: True photocopy of the order A-24/11/Policy Seniority Nurs. Cdr/2021/ Med.VI dated 16.12.2021 sent by the 2nd respondent to the 3rd respondent.

Annexure-A14: True photocopy of the proceedings No. 31/A/24/14/ Paramedical & Nursing/ Med.Admn. dated 01.02.2021 published by the Regional Assistant Director, Regional Office, Maharashtra.

Annexure-A15: True photocopy of the draft seniority list of the Staff Nurse of Telangana Region as on 31.03.2018.

Annexure-A16: True photocopy of the Order No. 52.A/33/19/2020-Estt.1 dated 12.08.2020 promoting the staff nurse to the post of Nursing Sister, now re-designated as Senior Nursing Officer.

Annexure-A17: True photocopy of the: promotion No.53.A.33.13.01.2018. NS.RO/Med(Admn) dated 22.04.2022 (Office Order No. 13(MA) of 2022).

Annexure-A18: True photocopy of the Office Memorandum F.No.Z/11/11/1Misc./2021-Med-VI dated 21.04.2022 together with Draft Transfer Policy.

Annexure-A19: True photocopy of the objection dated 02.05.2022 submitted by the 1st applicant against the draft transfer policy.

Annexure-A20: True photocopy of the Transfer Policy for transfer/posting of Group-A and B dated 24.12.2022 issued the 4th respondent.

Annexure-A21: True photocopy of the Circular No.C-11/30/111/2019-Vig. Dated 01.11.2019 issued by the ESI Corporation.

Annexure-A22: True copy of the RTI question and reply dated 17.09.2020.

Annexure-A23: True copy of the Inter Region Transfer Policy published on

21.10.2010 by the 2nd respondent Corporation.

Annexure-A24: True copy of the Revised Inter Region Transfer Policy dated 12.06.2022 issued by the 2nd respondent Corporation.

Annexure-A25: True copy of the revised inter region transfer policy dated 27.02.2013 published by the 2nd respondent Corporation.

Annexure-A26: True copy of the offer of appointment of Smt. Sasikala Sudananda dated 17.03.2011 issued by ESIC Super Speciality Hospital, Hyderabad.

Annexure-A27: True copy of the offer of appointment dated 22.06.2013 of Mr. Ciby Devassy issued by ESIC Model Hospital, Bangalore, Karnataka.

Annexure-A28: True copy of the offer of appointment dated 25.02.2011 issued by ESI Model Hospital, Gurgaon (Haryana).

Annexure-A29: True copy of the : Circular No. Z-11/11/1/Misc/2021 Med.VI (efile-688) dated 27.10.2023 issued by ESIC

Annexure-A29A: True copy of the Circular No. C.11/30/111/2019-Vig. dated 14.02.2024 issued by the Director (Vigilance) of ESI Corporation together with Annexures-A, B and C.

Annexure-A30: True copy of the transfer policy Comp. No. 849968 File No.Z-11011/9/2024-MED-VI dated 17.12.2024 issued by the 2nd respondent.

Annexure-A31: True copy of the Circular No. Z-11011/9/2024-MED-VI (Comp. No. 849968) (Med.-7) dated 24.01.2025 issued by the ESI Corporation.

Annexure R2(a): True copy of the DOPT Office Memorandum dated 8-12-2017 issued by the Govt.of India.

Annexure R2(b): True copy of the representation dated 7-2-2023 submitted by Margaret.C.L to the 3rd respondent.

Annexure R2(c): True copy of the order dated 12-1-2018 issued by the Medical Commissioner, ESI Corporation.

Annexures OA./180/92/2023

Annexure A1: True copy of the transfer policy bearing No. Z-11/11/1/Misc/2021-Med.VI, dated 24.12.2022.

Annexure A2: True copy of the Memorandum No. 542-A 20-11-109 MHA Adm., dated 28.01.2009 issued to the 6th applicant.

Annexure A3: True copy of Office Order No. 248 of 2020 dated 09.10.2020 issued from the office of the 4th respondent.

Annexure A4: True copy of the Employees' State Insurance Corporation (Nursing Officer, Senior Nursing Officer and Assistant Superintendent) Recruitment Regulations, 2020 published in the Gazette of India December 5-December 11, 2020.

Annexure A5: True copy of the - order F. No: A-12/11/1/RR-NS/2017-Med.VI, dated 10.12.2020 issued by the 2nd respondent.

Annexure A6: True copy of the order No. A-24/11/Policy Seniority Nurs. Odr/2021/Med-VI, dated 16.12.2021.

Annexure A7: True copy of the objection submitted by the 1st applicant dated 'Nil' addressed to the 3rd respondent.

Annexure A8: True copy of Circular No. Z-11/11/1/Misc/2021-Med-VI-688 dated 31.01.2023 issued by the 2nd respondent.

Annexure A9: True copy of Intra-Region Transfer Policy bearing E-file No. Z-11011/6/2022-MED-VI, dated 07.12.2022, issued by the 2nd respondent.

Annexure A10: True copy of the Office Memorandum OM No. Z-11025/011/2022-Admn.I dated 04.02.2022, issued by the 1st respondent.

Annexure A11: True copy of the Memorandum No.A-12011/19/2023-MED-VI, dated 01.12.2023, along with the proposed Recruitment Regulations, issued by the 2nd respondent.

Annexures OA/180/43/2025

Annexure A1 - A true copy of transfer policy Comp No.:849968 File No: Z-11011/9/2024-MED-VI circulated as per letter signed dated 17.12.2024 issued on behalf of the 1st Respondent

Annexure A2 - A true copy of the notification dated Nil issued by the 1st Respondent in the year 2011

Annexure A3 - A true copy of the order Memo no. 542.A12.12(R.ec.Cell) MHA2011 Vol IV dated 05.09.2012 issued to one of the candidates

Annexure A4 - A true copy of Notification No.11012/7/2008-Esst(A) dated 18.06.2014 issued by the Department of Personnel and Training

Annexure A5 -A true copy of the revised Recruitment Regulations notified in the gazette dated 05.12.2020

Annexure A6 -A true copy of the Circular No. C-11/30/111/2019-Vig dated 01.11.2019 issued on behalf of the 1st Respondent

Annexure A7 - A true copy of the RTI request No. ESICO/R/E/21/03433/7 and reply letter No. 523-Z/17/20/RTI/2021-Admn dated 18.01.2022 issued by the Deputy Director of ESIC, Telangana region

Annexure A7(a) - A true copy of the relevant pages of the gradation list of Nursing Officer, Maharashtra Region issued as per proceedings No. 31/A/24/14/Paramedical & Nursing/Med. Admn dated 01.02.2021 by the ESI Corporation, Regional Office, Maharashtra

Annexure A7(b) - A true copy of the seniority list circulated as per proceedings No. 53/A-24/14/3/2018/R.O/Med.(Adm.) Vol-II dated 30.05.2019 issued by the ESIC, Regional Office, Karnataka

Annexure A8 - A true copy of transfer policy circulated as per letter dated 24.12.2022 issued on behalf of the 1st Respondent

Annexure A9 - A true copy of the Email dated 03.05.2022 along with the objection submitted by one of the Applicants to the 1st Respondent

Annexure A10 -A true copy of the E File No. Z-11/11/1/Misc./2021-MED-VI/C No. 688 dated 02.01.2023 issued on behalf of the 1st Respondent

Annexure A11 - A true copy of the interim order dated 01.02.2023 in O.A. No. 34/2023 of this Tribunal

Annexure A12 - A true copy of the Circular No. Z-11/11/1/Misc/2021-MED-VI-688 dated 31.01.2023 issued on behalf of the 1st Respondent

Annexure A13 -A true copy of the interim order dated 14.02.2023 in M.A. No. 136/2023 of this Tribunal

Annexure A14 - A true copy of the Circular No. Z-11/11/1/Misc/2021 Med. VI (efile-688) dated .10.2023 digitally signed on 27.10.2023 at 10:07:24 issued on behalf of the 1st Respondent

Annexure A15 - A true copy of the Circular No. Z-11/11/1/Misc/2021 Med. VI (efile- 688) dated .10.2023 digitally signed on 27.10.2023 at 09:58:14 issued on behalf of the 1st Respondent

Annexure A16 - A true copy of the interim order of this Court on 09.11.2023 in O.A. No. 522 of 2023 filed by the Applicants herein

Annexure A17 -A true copy of the Circular No. C-11/30/111/2019-Vig dated 14.02.2024 published by the Director (Vigilance) ESIC Headquarters, New Delhi

Annexure A18 -A true copy of the interim order dated 06.11.2024 in O.A. No. 522 of 2023 of this Tribunal

Annexure A19 - A true copy of the interim order dated 03.12.2024 in O.A. No. 522/2023 and connected cases of this Tribunal

Annexure A20 - A true copy of the vacancy position published as per letter No.

Z-11011/9/2024-MED-VI (E-849968) dated .01.2025 digitally signed on 22.01.2025 at 09:43:50 published on behalf of the 1st Respondent

Annexure A21 - A true copy of the Circular No. Z-11011/9/2024-MED-VI (E-849968) (Med.-7) dated .01.2025 digitally signed on 24.01.2025 at 14:17:00 issued on behalf of the 1st Respondent

Annexures OA./180/46/2025

Annexure-A1: True copy of the draft terms of absorption issued by the 1st respondent office dated nil.

Annexure-A2: True copy of the sample formats of options and technical resignation exercised by the applicants.

Annexure-A3: True copy of the Order No. A-11/11/18/09 Med-VI (Udyogamandal) dated 12/02/2010 issued by the 1st respondent

Annexure-A4: True copy of the Letter No:U-11/12/Misc/Jaipur/1/2006-Med- VI dated 11.07.2008 issued by ESIC Headquarters.

Annexure-A5: True copy of the promotion office order no 832 of 2013 dated 30.12.2013 issued by ESIC Model Hospital Andheri Mumbai.

Annexure-A6: True copy of the Office Order No:04/2021) F.No.C-18/11/19/11/UM-Med.Integ (Misc) dated 30.03.2021 issued by the 1st respondents to the applicants.

Annexure-A7: True copy of the interim order of the Tribunal in O.A No. 627/2015 dated 26.10.2016

Annexure-A8: True copy of the order of the Hon'ble Supreme Court of India in S.L.P No. 5722-5725 of 2022 dated 08.4.2022.

Annexure-A9: True copy of the Order No. 54-A.24/14/1/2018-Med.Adm.REG.SL.3/10 dated 03.11.2021 issued by the 3rd respondent office.

Annexure-A10: True copy of the order no: 54-C.18/12/19-Med.Adm.Vol.II dated 06.05.2022. issued by the 3rd respondent.

Annexure-A11: True copy of the order no: A-12/11/1/RR-NS/2017-Med VI dated 10.12.2020 issued by the 1st respondent.

Annexure-A12: True copy of the relevant pages of Recruitment Special Advertisement No. 52/2024 issued by UPSC dated 07.03.2024.

Annexure-A13: True copy of the Order No. A-24/11/Policy Seniority Nurs. Cdr/2021/Med-VI dated 16.12.2021 issued by the 1st respondent.

Annexure-A14: True copy of the Circular 33014/1/2022-MED-VI/dated 29.03.2022 issued by the 1st respondent.

Annexure-A15: True copy of the File No:Z-17012/368/2023-Med-VI dated 11.12.2023 issued by the 1st respondent.

Annexure-A16: True copy of the promotion Order No. 140 of 2024 dated 13.05.2024 issued by the 3rd respondent office.

Annexure-A17: True copy of the order of the Tribunal in O.A. No. 76/2023 dated 15.02.2023.

Annexure-A18: True copy of the order of the Tribunal in O.A. No. 76/2023 dated 03.12.2024.

Annexure-A19: True copy of the transfer policy Comp. No. 849968 File No.:Z-11011/9/2024-MED-VI dated 17.12.2024 issued by the 1st respondent.

Annexure-A20: True copy of the grievance dated 02.01.2025 submitted against Annexure A19 by the 1st applicant.

Annexure-A21: True copy of the circular issued vide File No. Z-11011/9/2024-MED-VI(E-849968((Med-7) dated 24.01.2025 issued by the 1st respondent.

Annexure-A22: True copy of the Order of the Hon'ble Supreme Court of India in SLP No. 17363/2021 dated 12.08.2025.

Annexure-A23: True copy of Absorption Order dated 25.05.2011 issued by the 4th respondent.

Annexure-A24: True copy of the old transfer policy dated 24.12.2022 issued by the 2nd respondent.

Annexure-A25: True copy of the DOPT letter No. 11012/7/2008-Estt. (A) Dated 18.06.2014, along with the Gazette Notification dated 01.01.2014.

Annexure-A26: True copy of the Transfer/posting policy for Social Security Officers/Mangers (Grade II)/Superintendent/Personal Assistant dated 18.12.2024 issued by ESIC.

Annexure-A27: True copy of the Transfer/posting policy for clinical posting of doctors in ESIC dated 20.06.2022 issued by 2nd respondent.

Annexures OA./180/70/2025

Annexure A1: True copy of the Policy for Transfer/posting of Nursing Cadre in Employees State Insurance Corporation bearing File No. Z-11011/9/2024-MED-VI, dated 17.12.2024 issued from the office of the 2nd respondent.

Annexure A2: True copy of the Memorandum No. 542-A 20-11-109 MHA Adm., dated 28.01.2009 issued to the 6th applicant.

Annexure A3: True copy of Office Order No. 248 of 2020 dated 09.10.2020 issued from the office of the 4th respondent.

Annexure A4: True copy of the Employees' State Insurance Corporation (Nursing Officer, Senior Nursing Officer and Assistant Superintendent) Recruitment Regulations, 2020 published in the Gazette of India 05.12.2020.

Annexure A5: True copy of the order F. No: A-12/11/1/RR-NS/2017-Med.VI, dated 10.12.2020 issued by the 2nd respondent.

Annexure A6: True copy of the order No. A-24/11/Policy Seniority Nurs. Odr/2021/Med-VI, dated 16.12.2021.

Annexure A7: True copy of the transfer policy bearing No. Z-11/11/1/Misc/2021-Med. VI. dated 24.12.2022.

Annexure A8: True copy of the common Interim Order dated 15.03.2023 in O.A No. 92 of 2023 and connected case rendered by this Tribunal.

Annexure A9: True copy of the objection submitted by the 1st respondent dated Nil addressed to the 3rd respondent.

Annexure A10: True copy of Circular No. Z-11011/9/2024/MED-VI (E-849968) (Med-7) dated 24.01.2025 issued by the 2nd respondent.

Annexure A11: True copy of which No. 542/A/22/14/MHA/06/Adm, dated 31.01.2025.

Annexure MA1: True copy of the Office Order No. 6 of year 2025 dated 28.03.2025 issued by the ESIC.

Annexure R7 (a)- True copy of the Circular No. Z-11011/9/2024-MED-VI (Med. VII) Comp. No. 849968 dated 14.04.2025 issued by the Office of the Director General, ESIC.

Annexure R 7 (b)- True copy of Circular F. No. Z-11011/9/2024-MED-VI (E-849968) (Med. VII) dated 25.04.2025 issued from the Office of the Director General, ESIC.

Annexure R 7 (c)- True copy of the relevant pages of transfer order dated 14.07.2025 by vide Circular No. Z 11011/9/2024-MED-VI (Med-VII) Comp.No. 849968 office order No.17 of the year 2025 of the Assistant Director with the order of the Director General ESIC.

Annexure R7 (d)- True copy of the relevant pages of recruitment notification issued by ESIC Directorate (Medical) Delhi.

Annexure R 7 (e) - True copy of the of recruitment notification issued by ESI PGIMSR and Model Hospital ESIC, dated 31.12.2011.

Annexure R7(f)- The true copy of the appointment memorandum NO.EMHA-Mumbai/Recruit/S.N/ 6.6/2009 issued by ESIC Model Hospital, Andheri, Mumbai, dated 25.08.2009.

Annexures OA./180/252/2025

Annexure-A1: True copy of the notification issued from the office of 2nd respondent inviting applications for appointment to the post of Staff Nurse in the ESIC Hospital in different States including the State of Kerala.

Annexure-A2: True photocopy of the Appointment Order No. 542.A12.12 (R.ec.Cell)MHA 2011 Vol.IV dated 05.09.2012 issued by the ESIC Asramam to the 1st applicant.

Annexure-A3: True copy of the Appointment Order No. 542.A12.12 (R.ec.Cell) MHA 2011 Vol.IV dated 19.07.2012 issued by the ESIC Asramam to the 2nd applicant.

Annexure-A4: True copy of the Order No. 545/A/22/11/CHE/2010(1)(Admn.) dated 31.05.2019 transferring and posting the 2nd applicant to ESIC Hospital, Udyogamandal.

Annexure-A5: True copy of the notification dated 01.01.2014 of the Department of Personnel & Training of the Government of India amending the Central Civil Services (Classification, Control and Appeal) Rules, 1965.

Annexure-A6: True copy of the order dated 12.01.2018 issued by the Head Quarters of the ESIC.

Annexure-A7: True copy of the judgment dated 12.04.2018 in O.P. (CAT) No. 64/2018 of this Hon'ble High Court of Kerala.

Annexure-A8: True copy of the Revised Recruitment Rules in the Gazette dated 19.10.2020.

Annexure-A9: True copy of the order F. No. A-12/11/1/RR-NS/2017-Med.VI dated 10.12.2020 of the Deputy Director ESIC (MA).

Annexure-A10: True copy of the order A-24/11/Policy Seniority Nurs. Cdr/2021/Med.VI dated 16.12.2021 sent by the Deputy Director,ESIC to the 3rd respondent.

Annexure-A11: True copy of the Draft Seniority list of the Staff Nurse of Telangana Region as on 31.03.2018.

Annexure-A12: True copy of the Order No. 52.A/33/19/2020-Estt.1 dated 12.08.2020 promoting the Staff Nurse to the post of Nursing Sister, now re-designated as Senior Nursing Officer.

Annexure-A13: True copy of the Circular: No.C-11/30/111/2019-Vig. dated 01.11.2019 issued by the ESI Corporation, New Delhi.

Annexure-A14: True copy of the Circular C.11/30/111/2019-Vig. dated 14.02.2024 issued by the Director (Vigilance) of ESI Corporation together with Annexures-A, B and C.

Annexure-A15: True copy of the transfer policy Comp. No. 849968 File No.:Z-11011/9/2024-MED-VI dated 17.12.2024 issued by the 4th respondent.

Annexure-A16: True copy of the Circular: No. Z-11011/9/2024-MED-VI (Comp. No. 849968) (Med.-7) dated 24.01.2025 issued by the ESI Corporation.

Annexure-A17: True copy of the Circular: No. Z-11011/9/2024-MED-VI (Med.VII) Comp. No. 849968 dated 14.04.2025 issued from the office of the 2nd respondent.

Annexure-A18: True copy of the Circular F. No. Z-11011/9/2024-MED-VI (E-849968) (Med. VII) dated 25.04.2025 issued from the office of the 2nd respondent.

Annexure-A19: True copy of the Revised Inter Region Transfer Policy No.

A-33/12/2/2011-Med.VI dated 27.02.2013 issued by the ESI Corporation.

Annexure-A20: True copy of the Order No. 34 2019 (F.No. A-22/15/2/IRT/ of 2019/Med.VI) dated 08.07.2019 issued by the ESI Corporation.

Annexure-A21: True copy of Circular F. No. A-22/15/2/IRT/2018/Med.VI along with list of applications dated 18.04.2018.

Annexure-A22: True copy of the relevant extract of the transfer list of Senior Nursing Officers.

Annexure-A23: True copy of the Selection List of ESI Delhi dated 29.04.2011.

Annexure-A24: True copy of the Memorandum dated 25.08.2025 showing the joining of Smt. Bincy Joji as Nursing Officer in ESI, Udyogamandal.

Annexure R 6(a): The true copy of the relevant pages of the transfer order dated 14.07.2025 by vide Circular No. Z-11011/9/2024-MED-VI(Med-VII) Comp. No. 849968 office order No. 17 of the year 2025 of the Assistant Director with the order of the 3rd respondent Director General.

Annexure R 6(b): The true copy of the ESIC order, File No.:Z-11011/9/2024-MED-VI Z-11011/9/2024-MED-VI (Med-7) (Comp No.849968) issued by ESIC, dated 28.03.2025.

Annexure R6(c): The true copy of the relevant pages of recruitment notification issued ESIC Directorate (Medical)Delhi.

Annexure R6(d): The true copy of relevant pages of recruitment notification issued by ESIC PGIMSR.

Annexure R6(e): The true copy of the appointment order /No.512-A/12/16/1(Admn)/2012 issued by E.S.I.C, K.K. Nagar, Chennai dated 10.10.2012.

Annexure R6(f): The true copy of the appointment memorandum NO.EMHA-Mumbai/Recruit/S.N/ 6.6 /2009 issued by ESIC Model Hospital, Andheri, Mumbai, dated 25.08.2009.

Annexure R6(g):A true copy of the relevant recruitment notification issued by ESIC PGIMSR and Model Hospital No. 532/A/12/30/2011-2012.Estt, dated 16.11.2012.

Annexure R6(h):True copies of the relevant pages of the notification issued by ESIC, Delhi.

Annexure R6(i): The true copy of the relevant pages of the Recruitment Special Advertisement No.52/2024 issued by the Union Public Service Commission.

Annexure R6(j): A true copy of the table showing the vacancies in the Nursing Cadre in the Kerala Region.

Annexure R6 (k): The true copy of order of Central Administrative Tribunal, Hyderabad Bench in OA 688/2023 dated 12.03.2024.

Annexure R6 (l):The true copy of the order dated 26.03.2025 of the Central Administrative Tribunal, Bangalore bench allowing MA 75/2025 to amend OA 654/2023.

Annexure R6 (m):The true copy of the order of the Central Administrative Tribunal Bangalore Bench dated 18.11.2025 in OA NO. 654/2023.

Annexure R6(n):The true copy of the judgment of Central Administrative Tribunal Bangalore Bench dated 18.11.2025 in OA 654/23.

List of Annexures in C.P No.33/2025 in OA No.252/2025

Annexure P1-True copy of the Interim Order dated 14.02.2023 in O.A.No.14/2023 of this Tribunal

Annexure P2-True copy of the Interim Order dated 10.11.2023 in MA No.966/2023 in OA No.14/2023 of this Tribunal

Annexure P3-True copy of the revised transfer policy Comp.No.849968 file No.Z-11011/9/2024-MED-VI dated 17.12.2024 issued by the 2nd respondent

Annexure P4-True copy of the Circular No.Z-11011/9/2024-MED-VI (MED.VII) Comp. No.849968 dated 14.04.2025 issued from the office of the 1st respondent

Annexure P5-True copy of the Circular F.No.Z-11011/9/2024-MED-VI (E-849968) (Med.VII) dated 25.04.2025 issued from the office of the 1st respondent

Annexure P6-True copy of the Interim Order dated 25.06.2025 in OA No.252/2025 of this Tribunal

Annexure P7-True copy of the Order F.No.Z-11011/9/2024-MED-VI(Med.VII) dated 14.07.2025 passed by the Assistant Director (MA)

Annexures OA./180/495/2025

Annexure A1: True copy of the Memorandum No. 542-A 20-11-109, MHA Adm., dated 28.01.2009 issued to the 7th applicant.

Annexure A2: True copy of Office Order No. 248 of 2020 dated 09.10.2020 issued from the office of the 7th respondent.

Annexure A3: True copy of the Employees' State Insurance Corporation (Nursing Officer, Senior Nursing Officer and Assistant Superintendent) Recruitment Regulations, 2020 published in the Gazette of India 05.12.2020.

Annexure A4: True copy of the order F. No: A-12/11/1/RR-NS/2017-Med. VI, dated 10.12.2020 issued by the 5th respondent.

Annexure A5: True copy of the order No. A-24/11/Policy Seniority Nurs. Cdr/2021/Med-VI, dated 16.12.2021.

Annexure A6: True copy of the transfer policy bearing No. Z-11/11/1/Misc/2021-Med. VI, dated 24.12.2022.

Annexure A7: True copy of the intra region Transfer Policy bearing E-file No. Z-11011/6/2022-MED-VI, dated 07.12.2022,.

Annexure A8: True copy of the Transfer/posting of Nursing Cadre officers/Employees in ESIC, F.No. Z-11011/9/2024-MED-VI, dated 17.12.2024.

Annexure A9: True copy of office order No. 6 of 2025, dated 28.03.2025.

Annexure A10: True copy of the Circular No. Z-11011/9/2024-MED-VI (Med-VII) Comp. No. 849968. dated 14/04/2025 issued by the 5th respondent.

Annexure A11: True copy of the Circular F.No. Z-11011/9/2024-MED-VI (E-849968) (Med VII), dated 25.04.2025 issued by the 6th respondent.

Annexure A12: True copy of the Office Order No. 17 of 2025 dated 14.07.2025 issued from the office of the Director General.

Annexures OA./180/497/2025

Annexure A-1- True copy of the Employees' State Insurance Corporation (Nursing Officer, Senior Nursing Officer and Assistant Superintendent) Recruitment Regulations, 2020

Annexure A-2- True copy of the Policy for Transfer/posting of Nursing Cadre in Employees' State Insurance Corporation bearing File No.Z 11011/9/2024-MED.VI dated 17.12.2024

Annexure A-3- True copy of the Circular F No.Z-11011/9/2024-MED-VI (E-849968)(Med VII) dated 14.4.2025 issued by the Assistant Director (MA), ESIC Headquarters

Annexure A-4- True copy of the Circular F No.Z-11011/9/2024-MED-VI (E-849968)(Med VII) dated 25.04.2025 issued by the Assistant Director (MA) ESIC Headquarters

Annexure A-5- True copy of the relevant portions of the Office Order No.17 of 2025 dated 14.07.2025, issued by the office of the 3rd respondent

Annexures OA./180/500/2025

Annexure A-1- True copy of the draft terms of absorption issued by the 1st respondent office dated nil.

Annexure A-2- :True copy of the absorption order vide Office Order No:04/2021) F.No.C-18/11/19/11/UM-Med.Integ (Misc) dated 30.03.2021 was issued by the 1st respondent

Annexure A-3- True copy of the Order No. A-11/11/18/09 Med-VI (Udyogamandal) dated 12/02/2010 issued by the 1st respondent.

Annexure A-4- True copy of the Letter No:U-11/12/Misc/Jaipur/1/2006-Med VI dated 11.07.2008 issued by ESIC Headquarters.

Annexure A-5- True copy of the promotion - office order no 832 of 2013 dated 30.12.2013 issued by ESIC Model and Super Specialty Hospital, Andheri.

Annexure A-6- True copy of the promotion - office order no: 88 of 2008 dated 21.05.2008 issued by 6th Respondent, MS ,ESIC Hospital Ashramam.

Annexure A-7- True copy of the final seniority list of staff nurse w.e.f 01.04.2009 to 31.03.2010 by Order No.54-A.24/14/1/2018-Med.Adm.REG.SL.3/10 dated 03.11.2021 issued by the 3rd respondent.

Annexure A-8- True copy of the Comp No: 849968 File no: Z-11011/9/2024 MED VI dated 17.12.2024 issued by the 1st respondent.

Annexure A-9- True copy of the order of this Tribunal in OA 46/2025 dated 25.06.2025

Annexure-A10- True copy of the Transfer order (Office Order 17 of 2025) dated 14.07.2025 issued by the 1st respondent.

Annexure R11 (A): True copy of notification dated 1.1.2014 issued by the Department of Personnel and Training, Government of India classifying civil posts under Rule 6 of the Central Civil Services (Classification, Control and Appeal) Rules, 1965

Annexure R11 (B): True copy of Office Memorandum bearing No. F.No.11012/10/2016 -Estt.A-III issued on 8.12.2017 by the Department of Personnel & Training, Government of India Ministry of Personnel, Public Grievances and Pensions along with enclosure therein

Annexure R11(C): True copy of the Employees State Insurance Corporation (Staff and Conditions of Service) Regulations, 1959 (corrected upto 18.01.1992)

Annexure R11 (D): True copy of Notification No. A-27/17/1/ 7th CPC/2016-E.III dated 23.11.2016, issued by the ESI Corporation substituting the 1st schedule to Employees State Insurance Corporation (Staff and Conditions of Service) Regulations.

Annexure R11 (E): True copy of notification No. A-12/11/1/RR-N.S/2017-Med-VI dated 19.10.2020 issued by the Employees State Insurance Corporation, Ministry of Labour and Employment and published in Gazette of India dated 5.12.2020.

Annexure R11(F): True copy of order No. F.No.A-12/11/1/RR-NS/2017 Med.VI dated 10.12.2020 was also issued by the Deputy Director (M.A), Head Quarters, ESI Corporation New Delhi.

Annexure R11(G): True copy of Notification No. Z 24/14/1/2020-DPC (E.I) dated 12.06.2023.

Annexure R11(H): True copy of the order dated 18.11.2025 in OA 170/00654/2023.

Annexure R11(I): True copy of the Office Order No. 15 of 2009 dated 13.01.2009 whereby the 11th respondent herein was appointed as Staff Nurse in the ESI Hospital cum ODC, Andheri(E), Mumbai-93

Annexure R11(J): True copy of the facing sheet, first and last pages of Annexure A of the Final Result Notice bearing No. F.1/36(II) /2023-R.1/SPC-II dated

16.07.2025 issued by the UPSC evidencing the brief synopsis of the entire selection process to the post of Nursing Officers in the ESI corporation pursuant to advertisement published on 07.03.2024 the results of successful candidates

Annexure R11(K): True copy of Circular no.Z-11011/9/24-MED-VI(Med. -7) dated 24.01.2025 issued by the Headquarters, ESI Corporation.

Annexure R11(L): True copy of Office Order No. 6 of 2025 dated 28.03.2025 issued by the Headquarters, ESI Corporation.

Annexure R11(M): True copy of Circular No. Z-11011/9/2024-MED.-VI (Med. -VII) Comp No. 849968 dated 14.4.2025 was issued by the Headquarters, ESI Corporation.

Annexure R14(a): The true copy of the appointment memorandum NO.EMHA-Mumbai/Recruit/S.N/6 6/2009 issued by ESIC Model Hospital, Andheri, Mumbai. Dated 25.08.2009.

Annexure R14(b): The true copy of the appointment memorandum NO.EMHA-Mumbai/Recruit/S.N/74/2009 issued by ESIC Model Hospital, Andheri, Mumbai dated 25.08.2009.

Annexure R14(c): The true copy of Office memorandum No.11012/7/2008-Estt. (A) dated 17.04.2009.

Annexure R14(d): The True copy of Gazette notification dated 05.12.2020

Annexure R14(e): The True copy of HQ Office Order No: A-12/11/1/RR-NS/2017-Med-VI, dated 10.12.2020.

Annexure R 14(f): The True copy of OM No. Z-11025/01/2022-Adm.I dated 04.02.2022.

Annexure R14(g): The True copy of Office Order No. Z-11/11/1/Misc/2021-Med. VI dated 24.12.2022.

Annexure R14(h): The True copy of office Order No 6 of 2025 dated 28-03-2025

with File No. Z-11011/9/2024MED(Med-7) (Comp No. 849968).

Annexure R14(i): The True copy of the Circular No. :Z-11011/9/2024- MED-VI(Med.VII) Comp. No.:849968 dated 14.04.2025 issued by the Deputy Director.

Annexure R14(j): A True copy of the Circular F.No. Z-11011/9/2024-MED-VI (E-849968) (Med VII) dated 25.04.2025 issued from the office of the Deputy Director

Annexure R14(k): The true copy of the Order No. 222 of 2024, No. 54.A.22/15/3/2023-Med.Adm. Dated 23.07.2024.

Annexure R14(l): The true Copy of Order. No. A-11/12/15/2014 dated 06.08.18 with corrigendum NoA-11/12/15/2014 dated 06.08.2018.

Annexure R14(m): The True copy of recommendations dated 28.10.2024

Annexure R14(n): The True copy of interim order dated 25.06.2025 in OA 46 of 2025.

Annexure R14(o): The True copy of judgment dated 18.11.2025 of CAT, Bangalore Bench in OA No. 170/654/2023.

Annexure R14(p): The true copy of the order dated 09.09.2015.

Annexures OA./180/501/2025

Annexure A1: ESIC Transfer Policy vide Comp.No.849968 in File No.Z-11011/9/2024-MED-VI dated 17-12-2024.

Annexure A2: True copy of the order A-21 /12/1/2009 Med-VI dated 04-10-2010 by ESIC

Annexure A2(a): vide No.A-11/11/1/2019-Med VI issued by ESIC HQ on 07-08-2019

Annexure A3: True copy of the Office Order in File No.Z-11/11/1/Misc/2021-Med

VI dated 14-03-2022

Annexure A3(a): True copy of the Circular vide Comp.No.342934 in File No.Z 17012/368/2023-MED VI dated 11-12-2023

Annexure A4: ESIC HQ Circular No. Z-11011/9/2024-MED-VI(Med. VII) dated 14-04-25

Annexure A4(a): Office Order No. 17 of 2025 in file No.Z-11011/9/2024-MED-VI (Med.VII) dated 14-07-2025.

Annexures OA./180/552/2025

Annexure A-1- The true copy of the appointment memorandum No.EMHA-Mumbai/Recruit/S.N/6.6/2009 issued by ESIC Model Hospital, Andheri, Mumbai dated 25.08.2009

Annexure A-2- The true copy of the appointment memorandum No.111-A-13/15/440/2011 E-I(M) dated 03.06.2011

Annexure A-3- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure A-4- The true copy of the appointment memorandum No.EMHA-Mumbai/Recruit/S.N/74/2009 issued by ESIC Model Hospital, Andheri, Mumbai dated 25.08.2009

Annexure A-5- The true copy of the appointment memorandum No.EMHA-Mumbai/Recruit/S.N/56/2009 issued by ESIC Model Hospital, Andheri, Mumbai dated 25.08.2009

Annexure A-6- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure A-7- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure A-8- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure A-9- The true copy of the appointment memorandum No.512-A/12/16/1(Adm)/2012 issued by ESIC K.K. Nagar, Chennai dated 10.10.2012

Annexure-A10- The true copy of the notification dated 31.12.2011 issued by ESI PGIMSR and Model Hospital Employees' State Insurance Corporation (ISO 9001-2008 certified) K.K. Nagar Ashok Pillar Road Chennai-600 078

Annexure-A11- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure-A12- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure-A13- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure-A14- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure-A15- The true copy of the appointment memorandum No.532/A/12/30(A)/2012-2013-GLB issued by ESIC Model Hospital, Rajaji Nagar, Karnataka dated 22.06.2013

Annexure-A16- A true copy of the transfer Policy Comp. No.849968 File No.Z-11011/9/2024-MED-VI dated 17.12.2024 issued by the 2nd respondent

Annexure-A17- True copy of the Circular No.Z-11011/9/2024-MED-VI (Comp. No.849968) (Med.-7) dated 24.01.2025 issued by the ESI Corporation

Annexure-A18- The true copy of Office Order No.6 of 2025 with File No.Z-11011/9/2024-MED-VI Z-11011/9/2024-MED-VI(Med-7) (Comp No.849968) dated 28.03.2025 issued by ESIC dated 29.03.2025

Annexure-A19- A true copy of the Circular No.Z-11011/9/2024-MED-VI (MED VII) Comp. No.849968 dated 14.04.2025 issued by the 5th respondent

Annexure-A20- True copy of the Circular F.No.Z-11011/9/2024-MED-VI (E-849968) (MED VII) dated 25.04.2025 issued from the office of the 3rd respondent

Annexure-A21- The true copy of the transfer order dated 14.07.2025 by vide Circular No.Z-11011/9/2024-MED-VI(Med-VII) Comp. No.849968 office order No.17 of the year 2025 of the Assistant Director with the order of the 3rd respondent Director General

Annexure-A22- A true copy of the Interim order dated 25.06.2025 in OA No.252 of 2025 by this Tribunal

Annexure-A23- A true copy of the relevant pages of the Recruitment Special Advertisement No.52/2024 issued by the Union Public Service Commission

Annexure-A24- The true copy of the transfer order No.211-A-18/13/Misc File / 2025-NH dated 25.08.2025

Annexure-A25- The true copy of the circular No.C-11/30/111/20190-Vig. Dated 14.02.2024

Annexure-A26- The true copy of the letter No.543.A-22/11/1/2024-Adm issued by the Deputy Director E.S.I.C Employees' State Insurance Corporation dated 22.09.2025

Annexure-A27- The true copy of the order of the Tribunal Bangalore Bench allowing MA 75/2025 at amend OA 654/2023 dated 26.03.2025

Annexure-A 27(a)- The true copy of the reply statement filed by the ESIC in MA No.75/2025 dated 12.03.2025

Annexure-A28- The true copy of the order of Tribunal Bangalore Bench dated 18.11.2025 in OA No.654/2023

Annexure-A29- The true copy of the table showing the vacancies in nursing cadre in Kerala Region

Annexure-A30- The true copy of the judgment of Central Administrative Tribunal Bangalore Bench dated 18.11.2025 in OA No.654/23
